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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL MEETING

May 7, 2026

WEBVTT

1
00:00:06.730 --> 00:00:26.709
Boardroom: Okay, hello everyone, good evening!

2
00:00:26.910 --> 00:00:31.210
Boardroom: I'm gonna have you quiet down, please. Thank you.

3
00:00:31.760 --> 00:00:33.010
Boardroom: Okay.

4
00:00:34.400 --> 00:00:49.190
Boardroom: I'm calling to order a special meeting of the Berkeley City Council. Today is Thursday, May 7th, 2026. It is 5.09 p.m. Clerk, can you please take the roll? Okay, Councilmember Kesarwani? Here. Taplin?

5
00:00:49.190 --> 00:00:50.040
Terry Taplin: Presence.

6
00:00:50.500 --> 00:01:04.959
Boardroom: Bartlett is currently absent. Tregeb? Present. O'Keefe? Here. Blackaby? Here. Unapara? Here. Humbert? Present. And Mayor Ishii? Here. Okay, quorum is present.

7
00:01:05.300 --> 00:01:07.640
Boardroom: Okay, so,

8
00:01:07.660 --> 00:01:32.390
Boardroom: Folks, tonight, we have two items on our action calendar. One is the Public Safety Technology, Surveillance technology ordinance and Police Equipment Ordinance Approvals, policy updates, and contract authority. And 1B is the social justice implications of contracts with the immigration data broker Flock Safety, which came from the Peace and Justice Commission. This is a continuation from a meeting that we had on March

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00:01:32.390 --> 00:01:34.270
Boardroom: 24th, 2026.

10
00:01:34.270 --> 00:01:37.299
Boardroom: A few things I want to say before we get started.

11
00:01:37.300 --> 00:01:48.040
Boardroom: One, I know there are a lot of folks here, and there's a lot of energy in the room, but I really want to ask you all to continue to be respectful as people are speaking, and allow them to speak.

12
00:01:48.040 --> 00:01:56.090
Boardroom: Of course, you're welcome to cheer and clap and stuff when someone speaks and says something you want, but I ask you not to boo.

13
00:01:56.090 --> 00:02:08.029
Boardroom: It's both disrespectful and against our, our rules of procedures. So, the other thing, is that, as we are going this evening.

14
00:02:08.030 --> 00:02:26.030
Boardroom: If you have public comment and you're coming with a group, we encourage you, you don't have to, but we encourage you, if you're speaking, in a group, that you speak, maybe have one person, and then the other folks come up, if you agree already with what they're saying, because that will allow for more people to speak this evening.

15
00:02:26.070 --> 00:02:29.270
Boardroom: Okay, so, last…

16
00:02:29.270 --> 00:02:54.179
Boardroom: meeting, one of the things that we did was we heard from our Berkeley Police Department, we heard from the… from our PAB, our Police Accountability Board, and then we heard all of the different supplementals, that were presented from the last meeting. So we don't have any presentations tonight. What we're going to be focused on are first the questions, first the questions from the Council, and then we'll take public

17
00:02:54.180 --> 00:03:10.700
Boardroom: comment, and then we will have Council comments and any motions that happen, so just so folks have a sense of what's going to happen this evening. That's our little roadmap, and so what I do want to do is just go ahead and start, if anyone from the Council has any questions.

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18
00:03:27.520 --> 00:03:29.909
Boardroom: Come on, I know folks have questions.

19
00:03:33.910 --> 00:03:39.859
Boardroom: Okay, so I, I will start with a question, and

20
00:03:40.550 --> 00:03:46.400
Boardroom: One question that I had from last time was that oh.

21
00:03:46.560 --> 00:03:50.050
Boardroom: Sorry, my question list got adjusted.

22
00:03:51.860 --> 00:04:06.099
Boardroom: If you could, if BPD, if you could speak to the difference between, our current… our current, community registry program and the proposed, CVS.

23
00:04:08.880 --> 00:04:28.409
Boardroom: Yeah, absolutely. So CVS, Community Video Streams, it's our proposal to, it's really an expansion, and a deepening of our current camera registry program. So currently what we do is, if a business has a set of cameras that they want us to be aware of in the case that we're investigating a crime that occurs nearby.

24
00:04:28.450 --> 00:04:39.599
Boardroom: then we know that that camera is there, and we can more quickly obtain the evidence that we need to do the investigation. So, the community video streams proposal, would build on that, and would give

25
00:04:39.740 --> 00:04:44.149
Boardroom: Businesses the, opportunity to opt in

26
00:04:44.390 --> 00:04:55.680
Boardroom: To a system where we could directly access that video footage, if they, if they allow us to. And so our proposal for that program would be that we,

27
00:04:55.900 --> 00:05:05.320
Boardroom: Go through an inspection process of the cameras, before we would connect to them, to make sure that they're not pointing anywhere that we shouldn't be able to have access to.

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00:05:05.350 --> 00:05:17.030
Boardroom: We would publish on our website the location of all those cameras, and we would, require appropriate signage near those cameras so that the public is aware that they are connected to our system.

29
00:05:18.150 --> 00:05:23.999
Boardroom: Can I just want to add one more thing. One of the challenges we have with our current camera system, the way it works.

30
00:05:24.000 --> 00:05:48.259
Boardroom: is that a lot of times we'll be investigating a crime, we'll be in the moment of investigating the crime, and the manager is the only person that has access to the room that has the camera. Or there's a reader that's associated with being able to download the file and then view it once it's taken. So this would allow us to both have that access, regardless of whether or not there was a manager on site, but also not run into the challenges we have with evidence collection.

31
00:05:48.260 --> 00:05:55.339
Boardroom: Right now, we're forced sometimes to use a phone and videotape the screen as it's playing. Obviously, there's a degradation of the evidence when we do it that way.

32
00:05:55.570 --> 00:06:08.069
Boardroom: Thanks, Chief. And a follow-up question on that. Can you speak to the community video surveillance process? What has been done so far to help the community understand what, this system would look like?

33
00:06:10.440 --> 00:06:13.470
Boardroom: Yeah, we… Nothing.

34
00:06:14.340 --> 00:06:29.669
Boardroom: We've gone through, the surveillance technology ordinance process, as required by, 2.99, and we've submitted, use policies, our acquisition report, and that's what, Council is considering tonight.

35
00:06:29.800 --> 00:06:49.110
Boardroom: And if you remember, we talked about it at both two community meetings. Additionally, we covered it in a presentation, talking to PAB about what that technology looks like. We've had a number of Neighborhood Watch meetings where we've gone and talked about the different technologies, really, and we showed that in the March 24th meeting with Council when we talked about that technology.

36
00:06:49.760 --> 00:07:00.879

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Boardroom: Thank you. And I'm gonna go ahead and jump to my Councilmember colleagues, since they've now, joined the queue, and I might have some more questions later. Let's go to Councilmember Tracob.

37
00:07:01.840 --> 00:07:13.739
Boardroom: Thank you. I want to, delve into the, unmanned… unmanned aerial system, policy 1303,

38
00:07:13.880 --> 00:07:21.660
Boardroom: Could you speak to, your perspective around, If there were,

39
00:07:23.350 --> 00:07:27.760
Boardroom: Limitations in the policy that were,

40
00:07:28.130 --> 00:07:42.829
Boardroom: restrictive around, the ability of, such, UAS systems, I guess this is DRFDs, to surveil,

41
00:07:44.220 --> 00:07:49.330
Boardroom: Areas of mass gatherings, like protests,

42
00:07:49.900 --> 00:08:00.330
Boardroom: Other than subject to exigent circumstances, which would be something like a medical emergency or an active shooter situation.

43
00:08:04.140 --> 00:08:20.399
Boardroom: I'm sure, I'm not sure I'm completely tracking your question. Is your question that, would we use this technology to oversee a, lawful gathering or a protest action absent there being an exigent circumstance?

44
00:08:21.170 --> 00:08:31.609
Boardroom: The question is… I actually trust you that you wouldn't. However, in my reading of the policy.

45
00:08:31.810 --> 00:08:36.690
Boardroom: However, in my reading of the policy, it does not…

46
00:08:37.020 --> 00:08:44.470
Boardroom: in my reading of it, it does not specifically preclude, a future, PD from…

47
00:08:44.470 --> 00:09:04.579

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Boardroom: doing that. Could you speak to, the policy and where… Sure. So, 1303.3 prohibited uses, UAS shall not be used to conduct random or arbitrary surveillance activities. This prohibition includes, but is not limited to, First Amendment assemblies in accordance with Policy 428, First Amendment assemblies.

48
00:09:04.720 --> 00:09:08.829
Boardroom: So there's a specific prohibited use. That would be a prohibited use.

49
00:09:09.120 --> 00:09:17.980
Boardroom: Okay. Elsewhere in the policy, 1303, there's mention of… Boom.

50
00:09:18.600 --> 00:09:21.510
Boardroom: Yeah, tourists… so there's,

51
00:09:21.710 --> 00:09:34.509
Boardroom: examples to respond to active criminal activity at mass gatherings or special events. Is there a place for active criminal activity, mass gathering, and special events, are defined?

52
00:09:38.440 --> 00:10:01.300
Boardroom: So, as you know, lawful assemblies happen, and we're guided by the number of people who are there, maybe the issues that they're discussing, and our officers respond to those and have a goal of keeping the peace. And when a critical incident occurs, right, there's language defining what a critical incident is, an event that occurs that is beyond normal capacity or normal responses.

53
00:10:01.340 --> 00:10:12.989
Boardroom: And so those are our industry standard terms. Some of those are embedded in different places in our use of force policy, and, are embedded in our 428 First Amendment assembly policies as well.

54
00:10:13.630 --> 00:10:20.329
Boardroom: Okay, thank you. I have one question, for the City Attorney,

55
00:10:21.660 --> 00:10:33.100
Boardroom: In terms of the amount, for violation, that the council, if the Council chooses to go that route,

56
00:10:33.140 --> 00:10:46.040

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Boardroom: Would it be a policy decision for us to say, maybe not 75 and maybe not 150, but maybe looking at Richmond's 290 or Oakland's $200K for violation?

57
00:10:46.430 --> 00:11:01.869
Boardroom: Yes, that's squarely, a policy decision that you get to make. Okay. And my last question for now has to do with the, and I think this might be for the city manager, but, let me know.

58
00:11:03.490 --> 00:11:10.940
Boardroom: On the staff supplemental for procurement, there is mention, or there's language that says.

59
00:11:11.730 --> 00:11:17.440
Boardroom: Flock's full catalog is available for purchase on the Region 4 ESC contract.

60
00:11:21.280 --> 00:11:38.430
Boardroom: How, if at all, does this relate to Flock's, promised discount if the procurement was completed, by July, which is something that I also read, elsewhere.

61
00:11:38.700 --> 00:11:42.069
Boardroom: In the document, or in a different document.

62
00:11:44.300 --> 00:11:49.689
Boardroom: Yeah, so the… the… that procurement had the price and terms that…

63
00:11:49.840 --> 00:11:55.249
Boardroom: flock proposed via the procurement. They are always free to

64
00:11:55.820 --> 00:12:01.180
Boardroom: You know, negotiate, discount, however they wish, with any potential vendor.

65
00:12:02.600 --> 00:12:03.860
Boardroom: Okay, and…

66
00:12:03.980 --> 00:12:11.779
Boardroom: Right. That was my penultimate question. This will be my last question. Can you speak to,

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67
00:12:12.050 --> 00:12:28.809
Boardroom: what, this piggyback contract was based at, based on, I, I did hear, or it was my understanding that it was based on a school district in Texas, and,

68
00:12:29.210 --> 00:12:33.420
Boardroom: If so, how… May the…

69
00:12:34.170 --> 00:12:37.920
Boardroom: Can you speak to the comparisons between…

70
00:12:38.420 --> 00:12:48.120
Boardroom: a USD in Texas, with probably different operational needs than a medium-sized city like Berkeley.

71
00:12:48.880 --> 00:13:02.339
Boardroom: Yes, thank you for the question. Our finance director is also on the line, so he may want to chime in here, but essentially, when you're piggybacking off a contract, you're looking at the product, in this case, that you're seeking to procure, and the price.

72
00:13:02.570 --> 00:13:14.890
Boardroom: And so, as long as it's the same product, and they've bid it out at a competitive price, then you're… then… and there's a process that they went through, an RFP process, and put that forth.

73
00:13:15.110 --> 00:13:20.019
Boardroom: Then, if our securing that product,

74
00:13:20.020 --> 00:13:36.130
Boardroom: complies with their… it's the same product that we're trying to secure that they, bid for, then that satisfies it. So… and this is a common practice in the city, where, we will procure things like a earth mover, or a truck, or something like that.

75
00:13:36.350 --> 00:13:44.380
Boardroom: from a procurement that is either… could be from a state, could be from a county, somewhere in the country. Excuse me.

76
00:13:44.550 --> 00:14:03.329
Boardroom: For the purposes, they do a procurement, and they say, here's all the price and terms, or here's the terms that we're looking for, and

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the use and the product. If, if that entity applies to the solicitation, and the product that we want to procure is what they proposed.

77
00:14:03.380 --> 00:14:13.900
Boardroom: then we have the ability to procure it. So just because, like, for example, an earth mover that is school, a big school district procurement,

78
00:14:14.110 --> 00:14:32.419
Boardroom: was part of doesn't mean that, like, the fact that they're moving Earth on a school ground rather than a park doesn't make a difference. The fact that they're procuring a camera to do security somewhere in their school district, doesn't mean that we couldn't procure the exact same camera to do a security in the city.

79
00:14:36.480 --> 00:14:38.259
Boardroom: Thank you. Councilmember O'Keefe.

80
00:14:40.570 --> 00:14:45.349
Boardroom: Thank you. Thanks for going first, Councilmember Taguep. I wasn't quite ready.

81
00:14:45.500 --> 00:14:55.819
Boardroom: Couple questions for, the Berkeley Police representatives. I just would like to ask you a couple questions to get on the record,

82
00:14:56.090 --> 00:15:01.899
Boardroom: Hopefully, a greater understanding of the nuances of the way the data is shared and the different kinds of data that are at stake.

83
00:15:02.210 --> 00:15:13.589
Boardroom: So first of all, the ALPR data generates, like, a searchable spreadsheet of, license plates and locations and times, essentially, is that correct?

84
00:15:17.300 --> 00:15:32.489
Boardroom: Yeah, so the ALPR data allows us to search across exactly a database of those images that have been captured and identify whether that plate appears, you know, within our retention period of 30 days. Right, yeah, 30 days. Thank you.

85
00:15:32.600 --> 00:15:39.750
Boardroom: And can you, briefly describe the process that,

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86
00:15:39.890 --> 00:15:56.959
Boardroom: let's say another officer in a jurisdiction that we share our data with. By the way, if you could also just say quickly, like, who we share with and what the rules are about that. And then I'd also love if you could, walk us through what it would look like for an officer from one of those jurisdictions to search our data.

87
00:15:58.240 --> 00:16:04.829
Boardroom: So, so first, we only share, with agencies within the nine Bay Area counties in Sacramento County,

88
00:16:04.950 --> 00:16:15.549
Boardroom: an agency within those counties, and if they've signed a letter of agreement with us agreeing to comply with state law and our sanctuary city ordinance.

89
00:16:15.610 --> 00:16:20.040
Boardroom: Once they've signed that letter, we will give them access to search across our network.

90
00:16:20.040 --> 00:16:36.799
Boardroom: And if they have a lawful reason to search, they will input a case number, they'll select a statute that the investigation is associated with, and they'll define the networks that they want to search across, and so if it includes ours, then

91
00:16:36.800 --> 00:16:43.719
Boardroom: That search will occur, and it'll appear on our audit log, so we'll be able to verify the information that they submitted.

92
00:16:44.000 --> 00:16:46.939
Boardroom: Okay. And what other options

93
00:16:47.290 --> 00:17:00.290
Boardroom: Like, do they just type in whatever reason they want, or what? They'll give a case… they're required to give a case number, they're required to select a statute, and then they have the option to write in additional information.

94
00:17:00.430 --> 00:17:01.220
Boardroom: Okay.

95
00:17:01.400 --> 00:17:19.019

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Boardroom: And are there… I think I… I just want to confirm this with you. There's no immigration-related justification, right? Because that's… none of the statutes are… No, that's not available on the drop-down reasons. It's also against state law and against our local policies. Right, so all of the given reasons that they would have to state are all in compliance with our sanctuary laws. Correct, correct.

96
00:17:19.020 --> 00:17:29.830
Boardroom: Thank you for clarifying that. And then, can you talk a little bit about how that differs from the data that would be recorded by the, the video cameras, which you're proposing to…

97
00:17:29.900 --> 00:17:32.079
Boardroom: To acquire? Because that's, that's different.

98
00:17:32.080 --> 00:17:55.640
Boardroom: Yeah, that's completely different. We would not be sharing that with other agencies in the same way, except for, in the same way that we share other types of evidence, when there's an active investigation, they come to us, they ask us, do we have this piece of evidence? If we did have some footage that was relevant, then we would download that and process it in the same way that we would with any other piece of evidence that we'd share.

99
00:17:56.410 --> 00:18:09.990
Boardroom: But just to be clear, it would be only, Berkeley police officers who would be actually doing the searching and be in complete control of the data sharing? Correct. There would be no case where another agency was,

100
00:18:10.100 --> 00:18:29.730
Boardroom: given access to search through, our footage that we have. Yeah, and just, like, because it's, like, not really searchable, you can't really type in a face, right? So it's… Exactly. It's not exactly the same, yeah. I think it's important to clarify the different kinds of, different kinds of data that we're talking about, and how they differ in terms of, exposure.

101
00:18:30.150 --> 00:18:51.790
Boardroom: Those are my… I think I might have some more questions later, but those are my questions for the police. I did want to just pivot a little bit and say I did actually have a supplemental that wasn't, presented last time, and if I could just… it's not, like, a big one, so would it be okay, Madam Mayor, if I just talked about it for a minute? I proposed… it's published in the packet, it was published yesterday,

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00:18:51.850 --> 00:18:58.119
Boardroom: Some minor changes to the, the drone use policy.

103
00:18:58.260 --> 00:19:01.429
Boardroom: I don't… we don't have it up or anything, but I could…

104
00:19:02.160 --> 00:19:05.929
Boardroom: I can read it into the main changes into the record,

105
00:19:07.010 --> 00:19:17.040
Boardroom: The idea with my supplemental was… I… I don't… I'm not personally comfortable with the drones being sent out for every call, or just kind of…

106
00:19:17.990 --> 00:19:22.809
Boardroom: for no reason, like, I think that that was the vision that was presented, and I think I understand it, but…

107
00:19:23.050 --> 00:19:24.659
Boardroom: I think drones…

108
00:19:25.520 --> 00:19:36.680
Boardroom: I'm not really interested in normalizing them as a police tool yet. I think that would be a big change. It's a kind of surveillance that we don't have now, and I'm open to exploring it, and I can see that they have a value.

109
00:19:36.890 --> 00:19:47.559
Boardroom: In, certain situations, but I… I would like… I'm proposing in my supplemental that we restrict the, times when they can be sent out to… I'll read this,

110
00:19:47.860 --> 00:20:02.360
Boardroom: Times when the suspect is believed to be on the scene or in the immediate area of the scene, and could reasonably cause harm to those present, so this is sort of an emergent safety situation, or a crime involving suspected physical violence.

111
00:20:02.550 --> 00:20:15.170
Boardroom: or there's an imminent risk of physical injury, due to a crime or a medical issue. So, basically, the vision here is that we do send them out, but only when it really could make the difference in a really,

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00:20:15.170 --> 00:20:29.250
Boardroom: really critical safety situation, and not, as was previously described, when, you know, just to sort of check out a call to see if it's… see what's going on, which I do understand the utility of that, but I'm not personally comfortable with that. So that's…

113
00:20:29.670 --> 00:20:38.489
Boardroom: one of the big changes my supplemental is proposing, and then, just to mention, it also says, no microphone or audio sensing device shall be activated at any time, and I think that's…

114
00:20:38.500 --> 00:20:56.680
Boardroom: already understood as part of the expectation, but I did want that written into the law, because I don't think that drones should be able to listen to people. That's another kind of surveillance we do not have right now, and I don't want to invite it into our city. So that's my supplemental, we can, you know, table that now, but I wanted to get a chance to present that.

115
00:20:57.210 --> 00:21:16.299
Boardroom: And, yeah, I might have more questions, but I will… I will yield to other people. Thank you so much. Thank you, and I appreciate you mentioning that. Apologies for leaving that out. And we did resubmit our supplemental as well, but mostly just to reorganize it so it was more aligned, structurally with the staff, so it could make more sense when we were comparing them.

116
00:21:16.300 --> 00:21:22.450
Boardroom: So, I'm curious, actually, is Flock, represented, is there a flock representative on?

117
00:21:22.790 --> 00:21:25.880
Boardroom: He is on his way. Oh, okay.

118
00:21:26.020 --> 00:21:35.050
Boardroom: So, because I think there are some folks that have questions for them, so… shh, folks, please? Alright. So, go ahead, Councilmember Bartlett.

119
00:21:36.630 --> 00:21:40.789
Boardroom: Thank you, thank you. Anna, it's good to be back, good to be back.

120
00:21:41.000 --> 00:21:54.500

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Boardroom: Question, my questions really, at this point, are around, the video cameras, the fixed cameras, and particularly… I guess, so tell… walk me through the process of how they're used.

121
00:21:56.030 --> 00:22:15.730
Boardroom: Just high level, briefly. Are you talking about the fixed PTZ cameras? Right, so, you know, if you recall, originally, they were placed in intersections. That was pre-us deploying the ALPRs, into the community, and what we realized, after that first deployment at Sixon University was that, they weren't, able to capture

122
00:22:15.730 --> 00:22:38.809
Boardroom: from the distance they were capturing, really capture pedestrian activities and things like that. We came back to Council and explained, one, we had, power-related issues around putting them with PG&E around the Vigilon cameras, and two, we wanted to place them in pedestrian-heavy areas in our business districts to provide that, ability to deter crime and solve crimes that occurred in those areas.

123
00:22:38.810 --> 00:22:56.319
Boardroom: So, they would be deployed in the locations that Council approved, with signage that says that the camera is there and that it's recording, and would be a tool that we would use, access pursuant to the policy, for very specific uses, that would, then provide us with another investigative tool and a deterrent tool.

124
00:22:56.360 --> 00:23:07.450
Boardroom: Okay, so I guess, so, there's an incident, a robbery, or what have you, we know it's this time, this location, so then what, you go, you rewind, you go into the footage to that moment?

125
00:23:08.410 --> 00:23:21.579
Boardroom: Yeah, that's correct. If we believe that there's evidentiary value on that video, the detectives would go and go through a process to create an audit trail that they're looking at video at a certain camera, certain time, for a certain kind of crime.

126
00:23:21.760 --> 00:23:30.779
Boardroom: So, at that point, and this is what I'm getting at here, is the, the facial recognition software. Are we deploying that at all?

127
00:23:31.370 --> 00:23:32.640
Boardroom: No, we're not.

128
00:23:33.460 --> 00:23:34.940

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Boardroom: Thank you.

129
00:23:36.080 --> 00:23:49.340
Boardroom: Thank you. I also wanted to make sure folks knew that our interim director of police accountability, Kathy Lee, is also sitting at the table, so just so folks know who you are, since you weren't here the last time. Thank you for…

130
00:23:49.670 --> 00:24:06.740
Boardroom: Thanks for joining. So if you have some… some big Kathy fans… Okay, so if you can, also, if folks have… if folks have any questions, then you can ask her as well. Okay, so moving forward to… oh, Councilmember Luna Parra, but really quickly, I have…

131
00:24:07.010 --> 00:24:18.429
Boardroom: Apparently, someone dropped a set of keys and a credit card outside. So if you have dropped your keys or a credit card,

132
00:24:18.500 --> 00:24:29.229
Boardroom: maybe give a wave on this side of the barrier, and, we'll try to get back to you. Okay. Alright, so, Councilmember Lenovarra, go ahead.

133
00:24:30.320 --> 00:24:31.320
Boardroom: Thank you.

134
00:24:31.520 --> 00:24:34.360
Boardroom: And thank you for being here.

135
00:24:34.660 --> 00:24:41.529
Boardroom: Can you explain why the NOVA software doesn't have a use policy or acquisition report?

136
00:24:43.300 --> 00:24:58.380
Boardroom: Yeah, so, that software, just collates information that we already have access to, so since it's not adding a new sensor or a new collection of data, then that doesn't qualify for the surveillance technology ordinance.

137
00:24:59.400 --> 00:25:01.420
Boardroom: Thank you.

138
00:25:02.150 --> 00:25:20.299

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Boardroom: As brought up by the PAB, can you explain the scope of prohibition on First Amendment assemblies? If, for example, a crowd doesn't disperse, is that criminal activity that would warrant the use of drones? Are there other instances of criminal activity at protests that would warrant the use of drones?

139
00:25:22.290 --> 00:25:47.269
Boardroom: So, no, we would not deploy a drone because the crowd didn't disperse. The drone would be deployed if there's a risk of injury, or there's ongoing injury, felony violence occurring against someone in the crowd, then we would absolutely… an active shooter, people being assaulted, we would absolutely want to have the drone up to be able to go and record, identify who the responsible are. Some of the things we've learned in past, activities like this is that the safest

140
00:25:47.270 --> 00:26:11.379
Boardroom: way to resolve instances like that is to figure out who the problematic person is, and then when there's a safe space to be able to take that person and arrest them without, negatively affecting the lawful assembly, then that's a goal. And so having that recording of the criminal activity that's happening for a prosecutable case, as well as, identifying and apprehending someone in a safer manner with that tool.

141
00:26:11.380 --> 00:26:24.690
Boardroom: kind of situation where I would expect that you would see, drone flying in that, and we would not be flying to, simply be at a First Amendment protest or a mass gathering just to collect who's there at the location.

142
00:26:25.310 --> 00:26:34.759
Boardroom: I think it would be helpful to add… to be more specific in the policy to, make sure that we know when… when they could be used and when they couldn't.

143
00:26:35.070 --> 00:26:46.710
Boardroom: Can you elaborate on the 6 officer positions, that are associated with this, technology?

144
00:26:46.990 --> 00:27:11.979
Boardroom: Are those positions currently staffed? Yeah, it's a great question, and it got a little convoluted, because if you recall, we brought this first item when we were much earlier in the budget process. And so, if you look at just how much it would cost for this technology in comparison to salary and benefits of an individual officer, it's roughly two officers. And, however, in conversations with the union, who we consult with when we're making decisions about

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145
00:27:11.980 --> 00:27:17.610
Boardroom: about staffing levels and, and, and, work status, where, we discuss, like.

146
00:27:17.610 --> 00:27:26.960
Boardroom: Hey, we want to come to the table, we know these technologies will bring us efficiencies, we'd like to propose that it could do the work of 6 positions.

147
00:27:26.960 --> 00:27:51.760
Boardroom: And so that's how we landed in the 6. The number 6 was in that kind of discussion, so that's what we brought forward. We've already moved past the space, in the budget process where the city manager has made a proposal that identifies unnecessary cuts to our staffing. So we instead are now looking to, what would be affected by bringing on this technology. And what you would see is, instead of officers having to go physically to a location to gather video.

148
00:27:51.830 --> 00:28:13.929
Boardroom: or to do neighborhood canvases, or, to, we'd have more officers on staff, because you can't clear calls for service, because, you have to go individually to calls. We believe that we could recognize the savings in overtime and reduce our overtime budget to the equivalent of, and in addition to, the costs that we would save by the implementation.

149
00:28:13.930 --> 00:28:14.730
Boardroom: So that…

150
00:28:15.070 --> 00:28:21.520
Boardroom: We're in a different space in the budget, and that's why we're talking about different numbers of officers and different cost savings.

151
00:28:21.740 --> 00:28:28.270
Boardroom: So, to clarify, the cost savings would be in… In overtime, not in positions.

152
00:28:29.150 --> 00:28:36.809
Boardroom: Well, the proposal that's up already sees a reduction of police officers' positions, so those are happening separate from…

153
00:28:36.890 --> 00:28:39.260
Boardroom: Funding a technology process.

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154
00:28:39.260 --> 00:29:00.030
Boardroom: And so those positions are either going to be preserved or, eliminated, pursuant to this Council's desires around the budgeted positions for the department. If we are looking for ways to pay for a new technology that's going to cost money, the place that I will be looking at to pay for it is not from new funds, which our city doesn't have right now, but from a reduction in my existing overtime budget.

155
00:29:00.850 --> 00:29:07.740
Boardroom: Okay, last year, the police department went over the overtime budget.

156
00:29:08.350 --> 00:29:15.430
Boardroom: How does this… how… how would this play into… into those numbers? Would it cut the overall…

157
00:29:15.960 --> 00:29:18.760
Boardroom: Budget allocation, or the actual spending?

158
00:29:19.210 --> 00:29:20.000
Boardroom: Both…

159
00:29:20.110 --> 00:29:39.109
Boardroom: Both. I think you would see both. I will share that our driver of that overage in our overtime was almost all directly related to our severe staffing shortage in the communications center. And so, right now, the amount of money we're spending on overtime to ensure that we have the ability to answer calls that are coming in from the public.

160
00:29:39.110 --> 00:29:55.109
Boardroom: It's, you know, you lose… it's 1.5%, or 1.5 times an office… a position, a dispatcher position, that you're charging in overtime in order to fill those spots. And so, we saw almost an additional $2 million this year, we're anticipating, in overtime as a result of that shortage.

161
00:29:55.110 --> 00:30:16.209
Boardroom: And so, we know there's gonna be that reduction. Then, once we bring technology on board, and we have these greater efficiencies, we're able to reduce our minimum staffing number as we deploy and patrol, with the technology, we think we can drive that number down even farther. Obviously, we can't control things like special events or emergency situations that happen that sometimes unexpectedly raise our overtime.

162
00:30:16.210 --> 00:30:29.689

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Boardroom: But, looking at the numbers and the way our shift extensions, have run in overtime, we believe we can drive that down with minimum staffing level changes that are only possible with technology that supports those… that reduction.

163
00:30:31.860 --> 00:30:38.060
Boardroom: Okay, thank you. I'm curious what the training requirements are for operating drone technology.

164
00:30:43.650 --> 00:31:00.770
Boardroom: So there are certain requirements from the FAA, for drone pilots, and then we'll have additional, training available to, anybody that's gonna be operating a drone, be it a drone first responder or a patrol, trunk-deployed drone.

165
00:31:00.840 --> 00:31:06.100
Boardroom: To, to be… to safely operate, in those situations.

166
00:31:07.680 --> 00:31:13.160
Boardroom: Will that be required? Yes, yes, yeah. Okay, thank you.

167
00:31:13.460 --> 00:31:19.960
Boardroom: What protocols are in place to prevent the misuse of drone technology?

168
00:31:20.520 --> 00:31:24.610
Boardroom: Such as unauthorized surveillance beyond the specific deployed use case.

169
00:31:27.320 --> 00:31:42.490
Boardroom: So, I mean, there are several layers here. One is the hardware limitations and, how they're, set to, for example, to point at the horizon as they're flying to a scene, and only to point down when they arrive at a scene.

170
00:31:42.600 --> 00:31:48.260
Boardroom: Another layer is, our policies, and…

171
00:31:48.440 --> 00:31:51.040
Boardroom: And another layer is the…

172
00:31:51.300 --> 00:31:58.900

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Boardroom: Logging that occurs of each flight, and that gets published shortly after the flight, so the public will be able to see.

173
00:31:59.050 --> 00:32:03.620
Boardroom: Where a drone went, shortly after it comes back.

174
00:32:03.710 --> 00:32:19.299
Boardroom: And so, there's a number of layers of scrutiny available to each drone deployment, so that we can investigate any complaints, but also monitor as, as these drones are getting used.

175
00:32:21.470 --> 00:32:30.349
Boardroom: Okay, thank you. And my last question is, do all of the law enforcement agencies within the nine Bay Area counties that share our data

176
00:32:30.500 --> 00:32:34.330
Boardroom: Have written sanctuary city policies, or sanctuary policies?

177
00:32:36.210 --> 00:32:48.140
Boardroom: I'm not aware of every single agency. I know many of them do, but that was certainly part of our intent, by limiting the agencies that we share with to, the local region.

178
00:32:48.240 --> 00:33:07.050
Boardroom: to maximize the public safety value without exposing ourselves to other agencies whose policies we're not in control of. And just to be clear, we are a sanctuary state. We have laws that protect us as a state. Every single law enforcement agency in the state of California has policies in place that says you cannot violate state law.

179
00:33:07.520 --> 00:33:08.549
Boardroom: But they do!

180
00:33:09.360 --> 00:33:23.790
Boardroom: Folks, please. Thank you. Yeah, I know, our local… our local sanctuary is stronger than the state's, so, which is why I… I asked. Thank you. Those are my questions for, BPD, but I do have more for Flock.

181
00:33:24.690 --> 00:33:47.049
Boardroom: Just to clarify real quick, so in order for another agency to look across our data, they have to agree to follow our sanctuary city policy, not whatever their city sanctuary policy is. So yeah, we hold them to that higher standard in order for us to share with them. We would

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cut off access if they were doing something that did not comply with our city's sanctuary city policy. Thanks, Chief.

182
00:33:47.330 --> 00:34:06.319
Boardroom: Okay, so we're moving on to Councilmember Blackaby, but I know there's a lot of folks standing. If you would like to sit, there are some seats throughout. Don't… don't feel bad about asking someone to move their belongings. I just want to make sure everyone can sit if they want to. Yeah, go ahead. Great, thanks, Madam Mayor. Could I ask, is the flock rep here?

183
00:34:06.480 --> 00:34:10.810
Boardroom: Oh, awesome, okay, great, thank you. Thank you.

184
00:34:11.170 --> 00:34:20.310
Boardroom: From the outset, No worries. I'll start with questions for… Okay, folks, please, that's not appropriate.

185
00:34:22.840 --> 00:34:27.409
Boardroom: Yeah. Mayor?

186
00:34:27.520 --> 00:34:31.929
Boardroom: Mayor, we need to take a 5-minute audio-visual.

187
00:34:32.050 --> 00:34:32.889
Boardroom: Break.

188
00:34:33.650 --> 00:34:41.940
Boardroom: to check on some things. Okay. Sorry about that. Alright, we will be taking a 5-minute break for audio-visual reasons. Thank you.

189
00:34:45.270 --> 00:34:51.739
Boardroom: Walk out!

190
00:35:57.450 --> 00:36:20.359
Boardroom: As we all know, sometimes shit gets out.

191
00:36:20.890 --> 00:36:39.400
Boardroom: Test.

192
00:36:39.690 --> 00:36:47.850
Boardroom: Test, test. Test, test.

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193
00:37:21.100 --> 00:37:31.079
Boardroom: Audio's fine on the Zoom, but now BCM doesn't have an idiot.

194
00:37:37.030 --> 00:37:37.930
Boardroom: Look at your eyes.

195
00:45:20.430 --> 00:45:44.409
Boardroom: Test, test, sound check.

196
00:45:44.410 --> 00:45:57.700
Boardroom: Testing, testing, sound check.

197
00:47:44.260 --> 00:48:07.850
Boardroom: Oh, okay. Test, test, audio, test, test, test, test… test, test, test, test… Yeah, Rose muted it after that, so… Ned, is there, is it… are you getting audio?

198
00:48:08.180 --> 00:48:30.529
Boardroom: Test, test, test, will you go… will you go in there and talk to him? Rose, will you go in there? Where Ned is, and ask him if it's working?

199
00:48:31.540 --> 00:48:55.110
Boardroom: Test, test, test, audio, test, test, test, test. BCM audio test.

200
00:48:55.210 --> 00:49:00.180
Boardroom: But can you hear me, David?

201
00:49:00.360 --> 00:49:16.620
Boardroom: Okay. Okay.

202
00:49:17.070 --> 00:49:32.270
Boardroom: Okay. Test, test, test, test, test, test, test… Okay, Rose is saying that Ned has thumbs. Okay, alright, so I think we're okay to resume. Alright.

203
00:49:32.670 --> 00:49:45.540
Boardroom: Stay close.

204

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00:50:01.210 --> 00:50:08.409
Boardroom: She's looking out for your instance, Ben. I think this thing…

205
00:50:15.120 --> 00:50:18.880
Boardroom: I love my car.

206
00:50:42.300 --> 00:50:54.580
Boardroom: Hello, testing!

207
00:50:55.350 --> 00:51:00.799
Boardroom: Okay, folks! If you can hear me clap once, if you can hear me clap twice!

208
00:51:00.910 --> 00:51:02.779
Boardroom: If you can hear me clap 3 times!

209
00:51:03.420 --> 00:51:13.649
Boardroom: Woo! Very good! Alright, thank you everyone for your patience, I'm so sorry. It seems that we are back up and running again, so I will call this meeting back to order.

210
00:51:16.410 --> 00:51:19.510
Boardroom: Alright, and where we left off…

211
00:51:19.810 --> 00:51:36.370
Boardroom: was that Councilmember Blackaby was just about to ask his questions. Five minutes back, alright. Go ahead, Councilmember, and we've just also introduced a new person to our table, too, so perhaps, you want to introduce yourself. Yes, Mayor and Council, my name is Trevor Chandler, I'm the Senior Director of Public Affairs at Flock.

212
00:51:36.370 --> 00:51:42.540
Boardroom: Thank you. Okay, folks, please. Respect. Go ahead. Great,

213
00:51:42.720 --> 00:51:50.069
Boardroom: Chief, Chief Lewis, W Chief Tate, Mr. Moltenberg, I just wanted to appreciate your being here, bringing the path forward,

214
00:51:50.300 --> 00:51:56.880
Boardroom: I wanted to say from the outset that I fully support your effort to provide our officers with the tools they need to keep us safe, but…

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215
00:51:57.040 --> 00:52:00.380
Boardroom: I do have questions about who we choose to contract with.

216
00:52:00.510 --> 00:52:03.690
Boardroom: And how we build the public trust around the process.

217
00:52:04.290 --> 00:52:05.620
Boardroom: So,

218
00:52:05.950 --> 00:52:15.759
Boardroom: So I want to start with a couple of questions for the department, and then I have some questions for Mr. Chandler. I wanted to focus on the community video streams piece of it, because I think that's the part we've…

219
00:52:16.080 --> 00:52:31.839
Boardroom: talked about, I think, not as much as some of the others. And just from my understanding, what are the circumstances under which you will activate those cameras? Are there protocols around when you use them, when you don't? Are they always on? Are they not always on? How does that part work?

220
00:52:32.290 --> 00:52:34.519
Boardroom: Yeah, only…

221
00:52:36.260 --> 00:52:50.460
Boardroom: Didn't realize there. Yeah. Only in response to a specific incident or active investigation, so we won't just be monitoring them, it'll only be, in response to something specific. Okay. So, in the RTIC, so the idea is not…

222
00:52:50.550 --> 00:53:04.429
Boardroom: here's all the community video stream cameras and running all the… it's basically, hey, there's an event happening at the Apple store, we need to activate the cameras to monitor what's going on, and… Correct. Okay, so it's some particular event that activates, okay.

223
00:53:04.560 --> 00:53:17.580
Boardroom: how does this kind of, video access, you know, how does it compare with how we're monitoring the other fixed cameras? Is it a similar… how do you think about that? Is it a similar approach in terms of when they're activated? I'm just trying to kind of square the…

224

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00:53:17.600 --> 00:53:33.430
Boardroom: the cameras that the city would be operating versus the ones that we'd be asking partners about. Yeah, they're very similar use policies that we've proposed. Okay. So they would be under the same permitted uses and prohibited uses and so on. Okay. And the retention time, is it the same retention period for both?

225
00:53:33.430 --> 00:53:50.959
Boardroom: So, with the community video streams, we wouldn't be retaining any footage. This would just be whatever that… since these cameras already exist, right? The organization's already paying for them, and so whatever their retention policy is, is how long they would retain that video footage for, and then they would decide whether to give us access

226
00:53:50.960 --> 00:54:04.539
Boardroom: to only, the live footage, or to any period of the routine video? So, if there was some evidentiary value from something, you might take that and hold onto that for the purpose of doing an investigation. Sorry, but otherwise.

227
00:54:04.760 --> 00:54:29.640
Boardroom: Go ahead. Yeah, think about it this way. So, if we learned there was a robbery at a business, and they had video, we would, capture that video, we would log in, capture that video, it would get uploaded into our evidence collection system and held pursuant to the retention period for that kind of crime. If, for some reason, we learned that a crime happened at that particular business a month ago, two months ago, 6 months ago, we would contact them and say, you know, do you have

228
00:54:29.820 --> 00:54:46.769
Boardroom: do you have video going back that far? And if the answer's yes, then we would be able to collect it and get that information. Okay. So there's some kind of real-time monitoring in the moment for an event, but it's just turned on for a particular event and then turned off when you don't need it. And after the fact.

229
00:54:46.770 --> 00:55:01.529
Boardroom: you might ask for footage and then use it for evidentiary, but again, so you're only retaining the footage of stuff that has evidentiary value, is that right? Okay. And are there any circumstances under which you'd be sharing any of that video with other jurisdictions or not?

230
00:55:01.730 --> 00:55:05.230
Boardroom: Same situation with the,

231
00:55:05.230 --> 00:55:29.930

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Boardroom: fix… our fixed cameras that we own. We would never allow access to another agency to get in and do some searching, but if we got contacted and said, hey, we're working this series of robberies, we believe somebody was in that store that fits the description of such and such, right, then we could access… we would access and understand whether that evidence was there, and would only turn that evidence over to them if it fit within the parameters of, you know, related to an investigation. Right, and similarly, it's like, so you have

232
00:55:29.930 --> 00:55:39.160
Boardroom: rules in terms of who you do or don't share with, and again, never shared with for, immigration enforcement purposes and all that? Absolutely. Okay.

233
00:55:39.160 --> 00:55:48.839
Boardroom: And if, if, if another jurisdiction needed access to information at, like, oh, again, maybe they have a suspect.

234
00:55:48.920 --> 00:56:03.969
Boardroom: from their jurisdiction who is involved in something at the Apple store in Berkeley, do they come through us? So, how do they get that footage? Again, does it come through you guys making that request, and then you decide whether or not to share it, or do they go directly to that, business?

235
00:56:07.290 --> 00:56:30.419
Boardroom: I mean, I would say either. I mean, there's nothing that precludes them from going to the Apple store and saying, hey, we're investigating this case, can we have it? And a private business would share in whatever manner they wanted to, but if we were approached and asked for evidence from someone in our city, it has to go through a review process. The captain of the investigations would approve the collection of that and the release of that to another jurisdiction. Great, thank you.

236
00:56:30.450 --> 00:56:41.269
Boardroom: Couple questions for Mr. Chandler, and again, thank you for being here in the hot seat. From the outset, I just want to say, because I think this is something I've, you know, I've felt a while, and I think a lot of us

237
00:56:41.270 --> 00:56:50.549
Boardroom: feel this, that, you know, I've just been really, you know, disappointed and frustrated, to watch how Flock has sort of handled this sort of drip, drip, drip.

238

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00:56:50.550 --> 00:57:07.220
Boardroom: of complaints and reports about problems with unauthorized data sharing, with sort of the mistakenly checkboxes, with pilot programs, with CBP, and sort of other agencies that give them access to these broad lookup features without the permission of the local agencies.

239
00:57:07.390 --> 00:57:17.100
Boardroom: And I'll just say, you know, as someone who, before I had this job, I've spent a lot of years in public affairs and politics, it's, you know, it's really been a case study.

240
00:57:17.220 --> 00:57:27.240
Boardroom: in, like, crisis communications done poorly, just to be perfectly frank with you. Anyway, so again, my frustration is that rather than getting out ahead of it and taking responsibility.

241
00:57:27.330 --> 00:57:40.050
Boardroom: it's been kind of put on the local jurisdictions to sort of defend what's happened, which I don't think has really been fair to a lot of these local jurisdictions. And in a lot of cases, I thought the first response seemed to be.

242
00:57:40.050 --> 00:57:51.189
Boardroom: you know, blaming these agencies for faulty configuration without acknowledging that, you know, one error is a user error, but multiple errors is a product flaw. You know, that's a flock, that's a flock issue.

243
00:57:51.280 --> 00:57:52.230
Boardroom: So…

244
00:57:52.480 --> 00:58:03.969
Boardroom: Again, I'm not doing… I'm just doing this because, you know, I feel like we need to get this on the table, because, you know, that's a frustration I think we all are feeling as policymakers who are being asked to make this sort of decision.

245
00:58:04.120 --> 00:58:11.580
Boardroom: So my question, I know we've talked about this in the past, but are you willing, and can you acknowledge today that, you know, Flock has made

246
00:58:11.780 --> 00:58:14.719
Boardroom: you know, these mistakes. These have been mistakes. These aren't just…

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247
00:58:14.770 --> 00:58:20.429
Boardroom: jurisdictions kind of making a mistake. This is… this has been a flock piece, too, and I just… I wanted you to kind of

248
00:58:20.430 --> 00:58:43.569
Boardroom: talk about that and help us understand how you view that. Absolutely, and I genuinely appreciate those remarks, Councillor, so thank you for bringing it up. We have made, and our CEO has made public that we could have and should have done many things better. When we started addressing these, issues a little over a year ago, up to that point.

249
00:58:43.570 --> 00:59:08.570
Boardroom: we had been providing compliance… the tools to be compliant, rather than simply mandating compliance like we could have, and making sure… make it just easier for all of our customers, especially here in California, in other states that have, laws that would have just been easier for us to do that. We have since shifted in our entire business model, to start to mandate compliance. Now, it is not

250
00:59:08.570 --> 00:59:32.409
Boardroom: possible for a single California agency to share outside the state. In addition, to make sure that is not allowed, we've also put in place immigration search filters, we've put in place reproductive health search filters, and we've removed all and any sharing with any federal, whether it's any federal, whether it's a national park, whether it's the post office. And so, these are things that we acknowledged, one.

251
00:59:32.410 --> 00:59:56.830
Boardroom: we could have communicated the compliance features better, and that's on us. We take full responsibility for that. And we could have done compliance as default, rather than simply providing the tools and letting agencies go on a case-by-case basis. So, we're extremely proud of what we've done last year. Now, we have probably, I will say, definitely, of all the LPR providers, we are the only LPR, major LPR provider.

252
00:59:56.830 --> 01:00:09.030
Boardroom: without a contract with ICE. I think that's very important to note. There is no relationship there that distinguishes us from Axon, Motorola, everyone else. There is no contract with ICE. We are the only one without a contract with ICE.

253
01:00:09.030 --> 01:00:33.619
Boardroom: And we have put in place groundbreaking and industry-leading transparency and accountability features, including additional audit

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transparency that proactively provides potential misuse, potential irregularities, so people don't have to wait until they run their audit next. I'm happy to go through more of that. Yeah, yeah, that's great. But, yes, appreciate your comments. Yeah, yeah. There is much we could have done better, and we are working to earn that trust by

254
01:00:33.620 --> 01:00:40.849
Boardroom: by doing even more than that. Appreciate that. In, one of the things we talked about, you know, in the past was, I think, in March.

255
01:00:40.920 --> 01:00:52.689
Boardroom: March 2026, there was a blog post that outlined a lot of those new safeguards. So this is the… California agencies can't share out of state or with the feds, that the federal government is not part of the California State Lookup Network.

256
01:00:52.690 --> 01:01:15.630
Boardroom: that you require the offense type in sort of the drop-down to do a search, and that the city's, again, this is a confirmation this is the city's data and not, you know, Block's data. When did those safeguards actually go into effect? Like, when did those come online? I believe those… most of the… they came online in various, iterations. I believe most of them came online in August.

257
01:01:15.630 --> 01:01:22.570
Boardroom: And I can get the… Yeah, I can get the specific dates for you. So it's, like, August of 25, plus or minus, and then, sort of.

258
01:01:22.570 --> 01:01:41.840
Boardroom: there was some communication about that, I know, in March, that kind of just laid… Yes. Okay. Since those safeguards, a lot of my questions are around, like, the timeline of this process, because if you look at, sort of, news reports about Flock and what's going on, a lot of what happens is we're also talking about things that may have happened a year ago, right? Yes. Because it's an audit that caught… so…

259
01:01:41.840 --> 01:01:49.229
Boardroom: My question, sort of, is, since those safeguards went into effect, you know, have you… have any customers reported issues

260
01:01:49.230 --> 01:02:11.980
Boardroom: that those safe… you know, so, safeguards went into effect, you locked down this sort of piece, what's happened since the safeguards, and what can you look at in terms of the track record since that time? We've been notified of no, instances where the previous examples have happened again. So, I know that's the case. I was just on a call, with,

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261
01:02:11.980 --> 01:02:20.319
Boardroom: the other day with another California city with a 100%, clean audit. There are no issues, and, I have not been made aware of

262
01:02:20.320 --> 01:02:39.369
Boardroom: any additional issues since these fixes have been put in place. Let me pivot a little bit to some of these kind of operational questions. Part of these are, you know, in the draft contract, part of it is in, and I'll try and be judicious with my time. Question about, you know, if… if the FBI comes to you with a judicial warrant.

263
01:02:39.380 --> 01:02:55.280
Boardroom: asking you for access to some of Berkeley's data. What's… what's the flock's operating procedure now? Councilmember, you can have some of my time. Okay, I'll be just, I think, a minute or two more. Okay, sorry. We are contractually obligated to notify the City of Berkeley of that request.

264
01:02:55.280 --> 01:03:11.150
Boardroom: And internally, our process is to let that subpoenaing authority know that we do not own the data, because contractually, we do not own the data, and direct them to the City of Berkeley. Okay. And then back to the chief, so if that comes to you, then what's kind of the city's response? So, you know.

265
01:03:11.150 --> 01:03:25.669
Boardroom: if Flock comes to us and said, we've got this subpoena, just again, to kind of confirm how the process would work from there. Right, so the minute that we got that subpoena, we'd be in consultation with the, city manager and the city attorney's office about, the proper ways for us to fight that subpoena. Okay.

266
01:03:25.780 --> 01:03:39.789
Boardroom: And then similarly, if instead of the FBI with a judicial warrant, if it was ICE with an administrative warrant that came to ICE and asked for access to Berkeley's data, what would… how would that play out? Is that any different? How does that play out if it's a…

267
01:03:39.790 --> 01:03:49.259
Boardroom: ICE administrative warrant versus, like, an FBI judicial warrant? For us, there's no difference. We would still direct them to you, and we would alert you to that request. Okay.

268
01:03:49.320 --> 01:03:54.089

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Boardroom: And then it would be a similar process for us. That's correct. Okay, great.

269
01:03:54.090 --> 01:04:09.460
Boardroom: Okay. Good. Well, thank you. I… look, I appreciate your being here and willing to sort of answer the… answer those questions. I… and I appreciate this discussion. I think, you know, as we move forward, and I'm interested in hearing from colleagues, interested in hearing from the public, you know, I… I do want to make sure that

270
01:04:09.600 --> 01:04:12.170
Boardroom: You know, we're really thinking about

271
01:04:12.250 --> 01:04:29.300
Boardroom: who and, you know, what we're contracting, with whom, for what, as we move forward. And so that'll be something I think I want to come back to later, just to make sure that we're making the best choice, because again, you know, I have full confidence in what the department's doing. I think we just need to make sure that our tools

272
01:04:29.380 --> 01:04:44.840
Boardroom: you know, meet those expectations as well. So, anyway, thank you. Thank you. Thank you, Councilmember. So, there are follow-up questions, I think, from Councilmembers Tragub and O'Keefe, for you, for the FLAC representatives. So, Councilmember Trey Gub, do you want to go first?

273
01:04:45.780 --> 01:04:54.589
Boardroom: Thank you so much. Well, first, I actually, I did want to, Director Lee, thank you for being here,

274
01:04:55.080 --> 01:05:12.550
Boardroom: My first question is for you. I know it's been some time since March. Could you recapitulate, the four principal concerns, from the PAB? And has anything changed on, on that front since the last time, this was discussed?

275
01:05:15.490 --> 01:05:23.639
Boardroom: Thank you. So, from March… The concerns broadly, were about the MSA with…

276
01:05:25.420 --> 01:05:28.730
Boardroom: The concerns broadly were about the MSA with Flock.

277

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01:05:29.220 --> 01:05:39.149
Boardroom: The policies governing drones, the community, the policies concerning drones, video… community video streams, and fixed cameras.

278
01:05:39.610 --> 01:05:49.039
Boardroom: And the drone acquisition report… oh, sorry, and the integrated platform, of surveillance services, in one vendor.

279
01:05:50.020 --> 01:05:55.329
Boardroom: Those, those were the four concerns for March. Since then.

280
01:05:55.830 --> 01:06:08.319
Boardroom: There's been additional research done about the procurement process, and that's what, the PABS letter to you of, May 4th, which is in the Supplemental 2 packet, outlines.

281
01:06:08.760 --> 01:06:12.890
Boardroom: So, I don't know if you want me to go into that right now, or…

282
01:06:13.100 --> 01:06:21.540
Boardroom: Yeah, maybe a little later, but I do want to make sure I have time to ask,

283
01:06:22.110 --> 01:06:31.039
Boardroom: Trevor some questions, and thank you for being here. so my first question is, and this might also be

284
01:06:31.280 --> 01:06:39.680
Boardroom: for staff. There's been a lot of discussion about, this, lookup tool, and…

285
01:06:40.200 --> 01:06:45.309
Boardroom: Are you willing at this point, to make a commitment that, it could…

286
01:06:45.580 --> 01:06:52.039
Boardroom: If Berkeley was to enter into a contract with Flock, it would be disabled entirely.

287
01:06:53.970 --> 01:06:59.220
Boardroom: Are you talking about… Are you talking about, national lookup?

288

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01:06:59.550 --> 01:07:07.549
Boardroom: Yes. Yes, absolutely. It's already done. It is impossible for any agency in California to enter into the national search feature.

289
01:07:07.900 --> 01:07:25.909
Boardroom: And we are willing, if you would like to put that in the contract, absolutely, 100%, we would be comfortable with that. As of what date did, that change on your end? Approximately around August. So I can double-check on the specific date, but that change has already been made.

290
01:07:26.180 --> 01:07:37.080
Boardroom: Okay. What is the highest poor violation term, if there is a breach of contract that you're willing to accept, which means it's $290K?

291
01:07:37.360 --> 01:07:40.759
Boardroom: Oakland's is $200K. I…

292
01:07:41.120 --> 01:07:53.120
Boardroom: We have on file, the response from Flock that you're willing to accept $150K. I'm wondering if, just your thoughts around, the,

293
01:07:53.520 --> 01:08:01.490
Boardroom: There's actually no monetary value that can be placed on a human life being impacted on this, so…

294
01:08:01.840 --> 01:08:03.390
Boardroom: I just wanted to ask.

295
01:08:11.270 --> 01:08:12.700
Boardroom: What's that, a question?

296
01:08:13.510 --> 01:08:15.000
Boardroom: What is the highest…

297
01:08:15.460 --> 01:08:31.179
Boardroom: per violation term that you're willing to accept? I can't speak to the highest. As you said, we have the examples of Oakland and Richmond, and I imagine we could, be amenable to a similar per violation standard here.

298
01:08:32.729 --> 01:08:46.979

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Boardroom: Thank you. Folks. It'll be… I believe it's important to note, since implementing those, we have never been subject, to any of those fines for any potential, missharing. Okay.

299
01:08:47.859 --> 01:08:52.879
Boardroom: Thank you. I think this… okay.

300
01:08:53.210 --> 01:09:03.970
Boardroom: Do you currently, I appreciate what you said about, not working with ice. That counts for a lot in my book.

301
01:09:04.350 --> 01:09:15.450
Boardroom: Do you currently have any contracts, MOUs, or other agreements with other federal agencies, such as CBP? We have federal contracts, but not with CBP.

302
01:09:17.250 --> 01:09:30.600
Boardroom: Can you elucidate on other federal contracts that you do have? Yes. Absolutely. We have national park contracts, United States Postal Inspection Service, those sorts, yes.

303
01:09:31.120 --> 01:09:40.240
Boardroom: But we… we do not have a contract with ICE, and we, do not currently have any contracts with entities under the Department of Homeland Security.

304
01:09:41.350 --> 01:09:48.529
Boardroom: Okay. What was the date at which any of those contracts were discontinued?

305
01:09:48.580 --> 01:10:10.139
Boardroom: We never had a contract with CBP. We had a pilot agreement. That lasted for approximately 4 months, and was focused on human and fentanyl, narco-trafficking, and that was suspended around, September of 2025. I can get a specific date on that, that's an estimation.

306
01:10:10.600 --> 01:10:12.469
Boardroom: Okay, thank you.

307
01:10:14.100 --> 01:10:25.839
Boardroom: This might be a question for, actually, both the Chief and, Mr. Chandler. There has been discussion around, well.

308

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01:10:27.860 --> 01:10:39.050
Boardroom: Let me put it that… Councilmember, how many… I'm just curious how many more questions you have, since I think you've actually… this is your second time… your second period of questions. This will be my last question. Okay, thank you.

309
01:10:40.760 --> 01:10:51.890
Boardroom: I understand that Flock is currently testing out, the utilization of machine learning as part of its system. Can you speak to,

310
01:10:53.480 --> 01:11:11.759
Boardroom: how that would be prescribed? Are there, would you be agreeable to, terms in a contract or MOU that might, preclude the use of machine learning specific to Berkeley?

311
01:11:12.200 --> 01:11:36.080
Boardroom: Yeah. Yes. Thank you, Councillor. So, we do use machine learning to increase accuracy, so as new vehicles come onto the market, a new Camry, any number of things, we take accuracy very seriously, because we don't want… we want to minimize misidentifications of vehicles and license plates as much as possible. As new license plates come on the market. We use machine learning to improve that accuracy. We have, such as in Oakland.

312
01:11:36.080 --> 01:11:57.749
Boardroom: Some cities have decided they want to opt out of participating in that, out of an extra abundance of caution, and we would absolutely be amenable if Berkeley would want to opt out of the machine learning process. Obviously, we want to continue to hopefully improve, but if that's something that Berkeley doesn't want to be a part of, then we would absolutely opt the city out of it.

313
01:11:58.340 --> 01:11:59.470
Boardroom: Thank you so much.

314
01:12:00.790 --> 01:12:02.450
Boardroom: Thank you, Councilmember O'Keefe.

315
01:12:03.490 --> 01:12:07.249
Boardroom: Thanks for giving me another bite of the apple here.

316
01:12:07.830 --> 01:12:24.309
Boardroom: First of all, I want to say, Ms. Lee, I'm just so happy you're here, and I'm just… thank you so much, it's really important, you're an important voice, and just welcome to this… welcome to this world. Back to

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this world. And I guess there's not going to be a presentation from the PAB? Is that… is that right?

317
01:12:24.310 --> 01:12:35.080
Boardroom: Are you prepared to… No, I'm not aware that we will have any other presentations. Okay, I guess I don't have specific questions, but I am curious to hear more about your perspective on

318
01:12:35.080 --> 01:12:45.089
Boardroom: the issues that were raised by the PAB letter. So I think Councilmember Tracob also asked about that, but you were gonna ask more later? You're asking about the recent PAB letter. Yeah.

319
01:12:45.090 --> 01:13:04.639
Boardroom: So, yes, Director, if you could speak to that recent PAP letter. Yeah, I would love to hear your current thoughts. My take on it? I would agree with it, pretty much, substantively. There was a lot of research done, a very deep dive into, the series of contracts

320
01:13:04.640 --> 01:13:20.809
Boardroom: that the department had entered into, and how it seems that we ended up sort of piecemealing the various components. And, a concern that is noted is having an integrated architecture without

321
01:13:20.870 --> 01:13:25.709
Boardroom: A real sense of, really analyzing

322
01:13:26.360 --> 01:13:43.780
Boardroom: whether that's needed, whether it needs to be, provided by one vendor, and the research, that the PAB members did was, revealed that there are other jurisdictions that do use,

323
01:13:44.210 --> 01:13:49.900
Boardroom: different… Surveillance technologies from different vendors and…

324
01:13:50.020 --> 01:13:58.109
Boardroom: use some other type of, platform to integrate it all. And I think,

325
01:13:58.930 --> 01:14:14.879
Boardroom: there is a concern to me about having everything rely on one vendor, and this is really… and I want to emphasize that this is really separate and apart from Flock as a vendor.

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326
01:14:15.190 --> 01:14:25.910
Boardroom: All the procurement issues, And… Having a single vendor provide All of your systems

327
01:14:26.270 --> 01:14:31.940
Boardroom: As the memo outlines, could be a great danger if…

328
01:14:32.230 --> 01:14:38.980
Boardroom: Something fails, that means everything could be failing, without any sort of backup.

329
01:14:39.330 --> 01:14:41.170
Boardroom: And so that…

330
01:14:41.290 --> 01:14:52.290
Boardroom: that is a major concern. Sorry, just to clarify, you're talking about the technology itself failing, like, not working anymore? Right. Or a breach of security? What do you mean by failing?

331
01:14:52.710 --> 01:15:06.469
Boardroom: Actually, it could be either. Okay, right. Yeah. Okay. Well, thank you so much. Okay. And yeah, we might have… I hope you're involved in the continuing discussion, but I really appreciate you being here once again. Two more questions,

332
01:15:06.830 --> 01:15:21.709
Boardroom: Actually, this one is for, I actually want to thank Councilmember Blackaby for asking the great questions of our flock representative. I think that was really helpful, and I think after hearing about that, I would like to hear a little more from our police about our auditing process.

333
01:15:21.720 --> 01:15:27.700
Boardroom: How often is it done? What do you check for? If you could just help us understand how that looks a little bit more.

334
01:15:29.190 --> 01:15:33.660
Boardroom: Yeah, so, our policy requires that we audit,

335
01:15:33.670 --> 01:15:48.029
Boardroom: our ALPR system, twice a year. And, so that entails going into those logs of when other network… other agencies have searched across our

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network, and evaluating the… the reasons and the information that they provided.

336
01:15:48.030 --> 01:15:54.330
Boardroom: As well as looking at the searches that we've done internally and making sure that they comply with all of our policies.

337
01:15:55.820 --> 01:16:18.789
Boardroom: Yeah, I just want to share, that's our formal auditing process, but we have 3 administrators that have access to change any features in the Flock system, the ALPR system. Those users are in the system on a regular basis, whether it's every day or every other day, certainly during the business week. That's how we caught that one issue that we had that we located where we had a term that we weren't sure about.

338
01:16:18.790 --> 01:16:23.329
Boardroom: And then we were able to chase down, so it's not like we're waiting till the end of a 6-month period and then looking back.

339
01:16:23.390 --> 01:16:29.449
Boardroom: We're in that system regularly, doing that informal auditing, looking for irregularities, looking for connectivity issues, and things like that.

340
01:16:30.490 --> 01:16:39.300
Boardroom: Thanks so much for clarifying that. And the last question, I… I'm sorry, I think somebody may have already asked about this, but I wanted to get it clear, and actually maybe our flock representative can,

341
01:16:39.420 --> 01:16:58.910
Boardroom: comment on this as well. It has to do with the facial recognition for the video cameras, which is… I understand there's machine learning for recognizing the images of cars, but I think there's a lot of concern about facial recognition. So, can you clarify if we use facial recognition if we're… what it says in the contract, and then…

342
01:16:59.250 --> 01:17:21.589
Boardroom: I'd also be interested in, sort of, the technical ways of managing whether that's on or off. Sure. By policy, we do not allow facial recognition technologies. Okay. And then, Flock, can you explain how that's achieved, technically? Yes, Flock does not have facial recognition. Oh, don't have it or not. So, it can't even be turned on or off. Great. It does have individual recognition, because, some of these cameras.

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343
01:17:21.590 --> 01:17:25.100
Boardroom: What does that mean? So, if a… it…

344
01:17:25.420 --> 01:17:46.480
Boardroom: If a goose were to fly in front of a camera, we wouldn't want your law enforcement to constantly be getting alerts about, you know, a goose flying in front of a camera. So, some of our pan, tilt, zoom cameras, they do… can identify that there is a person there, so… or they can look for, you know, you can look for a yellow shirt, but there is no facial recognition.

345
01:17:47.550 --> 01:17:48.570
Boardroom: Okay.

346
01:17:49.420 --> 01:17:58.520
Boardroom: That's… that's helpful. Can you say a little more… when you say yellow shirt, like, that does sound like it's describing some aspects of the person? Can you say a little more about where is that line?

347
01:17:58.520 --> 01:18:21.390
Boardroom: cut off. Yeah, so there… I mean, put it… frankly, there is no facial recognition. There is none. There is the ability to recognize that there is a person in front of a camera, so if you are looking for a suspect with a yellow shirt, these searches do not base on gender or race. They are on characteristics such as, is there someone wearing a hat? Is there someone wearing a yellow shirt?

348
01:18:21.390 --> 01:18:35.839
Boardroom: So that is what is able to be detected, but there is no facial recognition. Okay, so it's, it's folks… Just to make it… I'm trying to make sure I understand you. So, would it be fair to say you can ask for descriptions of color and…

349
01:18:35.900 --> 01:18:45.609
Boardroom: items of clothing. Yes. But nothing more specific than that. Correct. You cannot ask for gender or race or protected characteristics. Okay. Or, well…

350
01:18:47.660 --> 01:18:50.460
Boardroom: What I… that's different than what I said. What I said is.

351
01:18:51.170 --> 01:18:57.929
Boardroom: is the limit of the search terms… is it limited to things like color and clothing item? Yes.

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352
01:18:58.290 --> 01:19:07.499
Boardroom: That's it? Yes. Okay. Alright, and that's just to confirm, that's… we… our version of the system has that capability. Or will, I guess we don't have this yet, but…

353
01:19:07.580 --> 01:19:08.630
Boardroom: Is that right?

354
01:19:08.630 --> 01:19:31.180
Boardroom: Or do we have this turned off also? Yeah, we don't have that feature on the current cameras that we run, nor would we turn that feature on. So, the question comes up about, let's say a new camera exists next week, right, or next year, and it has that capability, but we don't turn those features on, right? So that's how we… we're guided by our use policy, and so if technology moves past.

355
01:19:31.290 --> 01:19:35.059
Boardroom: What we, originally acquired.

356
01:19:35.180 --> 01:19:40.889
Boardroom: And, a capability exists on a technology now. We don't… we will either turn that function off.

357
01:19:41.010 --> 01:19:57.299
Boardroom: Right? Or if there was no way to turn it off and it was going to become part of what would be a routine thing we would see, then we would come back to Council and say, hey, this thing that we have now has this extra feature, do you want us to stay using this technology and expand it, or do we need to look for a new vendor?

358
01:19:57.750 --> 01:19:59.709
Boardroom: Okay, but…

359
01:20:01.410 --> 01:20:19.930
Boardroom: So we're talking… you're talking about the use policy for the pen tilt zoom cameras we have now, and of course, right now we're discussing whether we're gonna be acquiring these flock cameras. So, I guess my question is, if we were to get these flock cameras that have this ability for… to search for, you know, basic, descriptions of people.

360
01:20:19.990 --> 01:20:26.179
Boardroom: would… would that… that would not be allowed under the use policy if we acquired these cameras? Is that what I'm understanding?

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361
01:20:26.870 --> 01:20:45.060
Boardroom: No, we would… we would be able to use a feature that allowed us to say, in this footage right here, can you find us a suspect that was wearing a yellow shirt? Okay. We would not… they don't have, and we would not use, even if it was available, any kind of facial recognition, or… yeah. Got it, okay, yeah, thank you, and I appreciate that clarity.

362
01:20:45.180 --> 01:20:50.169
Boardroom: Those are my questions. Thanks again for… Thank you. Moving back to Councilmember Lunapara.

363
01:20:51.000 --> 01:21:08.760
Boardroom: Thank you. I have a… some more questions… I have some questions for… for Flock Representative. Can you speak to Flock Safety's obligation to their investors? I'm specifically interested in Flock's biggest investor and the firms and founders.

364
01:21:08.900 --> 01:21:20.850
Boardroom: Let me finish. Hold on, she… let her get her question out. And its founders, anti-immigrant, anti-DEI, and pro-Trump views in support of surveillance deregulation, how that may influence flock's practices and obligations.

365
01:21:26.300 --> 01:21:42.859
Boardroom: Is there a specific investor that you're referring to? It's a… we have a number of investors. I'm more curious about how, how Flock Safety engages with its investors, and to what extent, the views of the investors is going to affect how the company operates.

366
01:21:42.860 --> 01:22:05.499
Boardroom: The company operates within the law, and that's… that's the most important aspect. Just like folks… Just as here in California, where we have SB34, we have… we have fully shut off any sharing or any… or disabled any sharing outside of the state or with federal agencies. We are guided by the laws of the

367
01:22:05.500 --> 01:22:12.240
Boardroom: country, of the state, and of the localities that we work in. Those are the people we answer to, are the legislators.

368
01:22:12.600 --> 01:22:16.010
Boardroom: So, yeah. Oh, no, I was just gonna say, I…

369

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01:22:16.030 --> 01:22:38.049
Boardroom: don't think that she was asking whether or not Flock operates within the law. She's asking you about how you interact with your investors. So could you speak to that, please? Yeah, I mean, we interact with our investors similarly to any company. We have board meetings, where we provide earnings reports, so that is… that is how we engage with our investors, same as any other company.

370
01:22:39.440 --> 01:22:48.310
Boardroom: Okay, there… They're… There are, federal and state and local laws that don't necessarily align.

371
01:22:48.310 --> 01:23:13.229
Boardroom: And that have conflicting perspectives on the law, so how does Flock take that into consideration? Exactly. Thank you so much for asking that question, because I think California is the precise example of that, where California has a very explicit law with SB34 that this state prohibits the sharing of license plate reader data outside of the state, so we have prevented that from happening. We are additionally providing, groundbreaking, industry-leading.

372
01:23:13.230 --> 01:23:38.020
Boardroom: Again, I want to say industry-leading, because no other license plate reader provider has implemented the additional changes above and beyond what we have, which allows cities and states to be able to choose who they share with and how they share with, including, again, if there is a sanctuary state law, if there are limits on data sharing regarding reproductive health information. We have put in groundbreaking, in many cases not even required by law.

373
01:23:38.030 --> 01:23:54.849
Boardroom: guardrails to make sure that community values do not have to come at the expense of community safety. And what's happened here in California is exactly that. We have completely shut it off, so that no state, no city in California is able to share with the federal authorities, or with any state or entity outside the state of California.

374
01:23:56.840 --> 01:23:58.860
Boardroom: Okay, well, I'm… the…

375
01:23:58.970 --> 01:24:07.309
Boardroom: that… I'm honestly not satisfied by that, given that Flock already has violated, or allowed cities to violate.

376
01:24:07.610 --> 01:24:12.100
Boardroom: state law. But my next question… is…

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377
01:24:12.110 --> 01:24:15.880
Boardroom: is, similar to Councilmember Trey Gubb's question.

378
01:24:15.880 --> 01:24:40.859
Boardroom: around, violations and fines for violations. How sure are you that the City of Berkeley data privacy will not be violated, and how much money do you think the City should be awarded if it is violated? Similar to Councilmember Tregeb's question, I think that we have a couple numbers that are out there. As was mentioned, we have an agreement with City of Oakland that's $200,000.

379
01:24:40.950 --> 01:24:55.980
Boardroom: So, again, I would just, provide to you all, you are the legislators, you are, you are the city council, to have that conversation about what is, what you view as, necessary.

380
01:24:56.130 --> 01:25:02.930
Boardroom: How would you define, an individual violation?

381
01:25:03.150 --> 01:25:15.579
Boardroom: So those are outlined in the contract, as well as under state law. So that would be a violation of sharing that flock is responsible for, that, goes against the… Yeah, I guess I'm asking if,

382
01:25:15.690 --> 01:25:18.049
Boardroom: If there is a… a…

383
01:25:18.150 --> 01:25:29.430
Boardroom: a violation of the contract, that… that ends up with multiple people being affected, is each individual person's being affected? Is that each individual

384
01:25:29.430 --> 01:25:51.829
Boardroom: instance of violation? Or are they all one violation? I will yield to your city attorney, on that, specifically when it comes to the legal interpretation of the contract. I understand. I'm curious what Flock's interpretation is. Again, I would yield to your city attorney, because I know our attorneys have been talking with your attorneys, and I would feel, that that would be a question that's better answered by the attorney.

385
01:25:51.830 --> 01:25:57.970

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Boardroom: So you're not willing to answer? I would prefer that your city, your city attorney answer that question. Okay.

386
01:25:58.230 --> 01:26:00.099
Boardroom: Thank you. Those are my questions.

387
01:26:01.160 --> 01:26:21.009
Boardroom: Okay, Councilmember Bartley, did you have follow-up questions? Oh, yeah, thank you. Yeah, yes, thank you, Madam Mayor, and thank you, Mr. Flock? Sorry, what's your name again? Sorry, what's it? Tim Apple. Mr. Apple. Thank you, Mr. Apple. Meet the Flockers, I think it's the movie. So, now that you're here, I just want to ask you quickly, as I go, so…

388
01:26:21.010 --> 01:26:33.619
Boardroom: This comes up a lot in conversation, the Foreign Intelligence Service Surveillance Act, or FISA, warrants, or other sort of secret federal directives. Yep. What's that process like for… in our situation?

389
01:26:33.710 --> 01:26:58.240
Boardroom: So the FISA warrants are the same for any company everywhere. These are typically, confidential warrants, that I personally do not have any knowledge of. What I can say, and what many experts in the field have said, is if someone, if there was something of importance of… a FISA warrant is an exceptional warrant. It goes significant

390
01:26:58.240 --> 01:26:59.190
Boardroom: process.

391
01:26:59.190 --> 01:27:24.100
Boardroom: If someone is going through, or if someone in the government is going through the process to acquire a FISA warrant for something, a point-in-time image of a vehicle that is potentially 30 days old is not likely the most effective use of a situation like that. Obviously, I can't speak to every situation, but it's more likely that it would be used on a phone, on a laptop, on something that someone carries with them all the time.

392
01:27:24.100 --> 01:27:28.340
Boardroom: A 30-day-old picture of a point in time of a particular vehicle.

393
01:27:28.350 --> 01:27:31.060
Boardroom: Okay, alright, and then,

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394
01:27:31.160 --> 01:27:41.159
Boardroom: So, regarding the third-party platforms involved in the Flock ecosystem, you know, what are the steps you can describe for us to take,

395
01:27:41.410 --> 01:27:45.050
Boardroom: Take care of our data, so there's no data leakage from one of your partners.

396
01:27:45.250 --> 01:27:58.119
Boardroom: When you say partners, well, you're talking about the Amazon web servers, and… The servers, the camera companies, the transport companies, the… you know, there's a whole host of, application providers.

397
01:27:58.120 --> 01:28:06.679
Boardroom: That, make up, you know, any product flow, including yours. So I'm curious, just, you know, how do you maintain operational security

398
01:28:06.690 --> 01:28:29.850
Boardroom: With these players? Absolutely. So we make all our own cameras. These are not… we don't, you know, buy from a Nokia factory or a camera factory. We make all of our cameras in-house. In addition to our software, all of it is in-house. We do use Amazon web servers. We have a robust data security mechanism, including our new chief of information security officers.

399
01:28:29.850 --> 01:28:54.790
Boardroom: We have a new, partnership that does penetrative testing on our servers. We have SOC 2 Type 2 ISO 2701. We go above and beyond to make sure that the data that we are protecting stays, stays protected. And that includes regular audits, independent audits, which we make available on our Trust website for all of our customers.

400
01:28:54.790 --> 01:29:05.060
Boardroom: to download, and to… which we update regularly. Most of them are annual, some of them are more than annual, but it's something we take extremely seriously.

401
01:29:05.070 --> 01:29:05.869
Boardroom: Thank you.

402
01:29:06.760 --> 01:29:11.819
Boardroom: Thank you. So, at this time, if there are no more questions, I'd like to move us on to public comment.

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403
01:29:11.890 --> 01:29:26.700
Boardroom: There is… there are a significant number of people in this room, and there are some folks online as well, but we were limiting… we will be limiting public comment to 3 hours. That will be 2 hours in person and 1 hour online.

404
01:29:26.700 --> 01:29:32.250
Boardroom: So, I would ask that if you have public comment on this item, if you could please come forward.

405
01:29:32.250 --> 01:29:51.289
Boardroom: And a reminder to folks, if you didn't hear me say earlier, if there's someone that's speaking on behalf of your group, you're welcome to have that person speak and stand behind them, and as usual, you can also give your minute of time to folks. Could you please be quiet while I'm giving the overview, so that folks can hear?

406
01:29:51.290 --> 01:29:58.849
Boardroom: Thank you. So, as usual, you can give a minute of your time to another individual, only one time.

407
01:29:58.850 --> 01:30:19.200
Boardroom: And one person can speak for up to 4 minutes, so that means 3 people would be giving them a minute of their time. I ask that you please try and organize that ahead of time, so that we're not trying to figure out who's giving you the minute in the time, because it eats away from the comment period. So, yes? Did you?

408
01:30:19.390 --> 01:30:34.290
Boardroom: Sorry, yes, so I would like to make a motion to suspend the rules and limit the comment period to 3 hours, and a second from Councilmember Trajka. Okay. Can I ask one question? Yes. Is there a mechanism? Do you want to… is it all…

409
01:30:34.290 --> 01:30:58.670
Boardroom: in person first, and then online, or… It will be, yeah, I was saying, so 2 hours in person, 1 hour online. Is there any interest in doing any alternating? That's the only other thing… Is anyone interested in alternating? If not, I don't… I… Okay, I'm willing to go… It's your discretion within… Yeah, I'm willing to go… yeah, I'll accept… yeah, sorry. Okay, go ahead. Can we take the roll, please? Okay, on the motion regarding the public comment procedures, Councilmember Kesarwani? Yes.

410
01:30:59.030 --> 01:30:59.820
Boardroom: Kaplan?

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411
01:30:59.820 --> 01:31:00.140
Terry Taplin: Aye.

412
01:31:01.100 --> 01:31:04.180
Boardroom: Bartlett? Yes. Trego? Aye.

413
01:31:04.380 --> 01:31:11.560
Boardroom: Councilmember O'Keefe is currently absent. Blackaby? Yes. Luna Parra? Yes.

414
01:31:11.830 --> 01:31:18.650
Boardroom: Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Okay, thank you. Please come on up.

415
01:31:19.290 --> 01:31:21.930
Boardroom: Okay, so 640.

416
01:31:25.220 --> 01:31:46.410
Boardroom: Good evening to everyone. My name is Brenda Grisham, and I just had, to make one statement. This is my second time here, and I have never heard anybody ask how many lives have flocks saved? How many girls have they stopped from being trafficked? How many businesses they have recovered their property. Haven't heard any of that. We all care about the immigrants.

417
01:31:46.410 --> 01:31:47.130
Boardroom: But…

418
01:31:47.160 --> 01:32:06.359
Boardroom: there are residents here that want safety, and we want you guys to take that into account. My daughter and my grandchildren live here, and I want to be sure that their lives and the things that go on with them is important. My son was murdered in Oakland, his case is unsolved, and I guarantee you, I'm fighting for flock cameras in any city I can. Thank you.

419
01:32:06.940 --> 01:32:08.640
Boardroom: Thank you.

420
01:32:08.820 --> 01:32:09.750
Boardroom: Come on up.

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421
01:32:18.290 --> 01:32:20.489
Boardroom: My name is Veterika Fuchsen.

422
01:32:20.720 --> 01:32:32.999
Boardroom: I want to thank all of you for the questions you've asked. I think all of you mean well, you care about all of us in this community. You're committed to this community. I think, however.

423
01:32:33.050 --> 01:32:49.019
Boardroom: It's naive to be listening to what has been said to you and think that cities have canceled because there's no… there's no good reason. Cities have canceled El Cerrito last night. The last thing I want to say…

424
01:32:49.420 --> 01:32:52.990
Boardroom: The very last thing I want to say is that

425
01:32:53.120 --> 01:32:59.930
Boardroom: Flock needs Berkeley more than Berkeley needs Flock. Flock?

426
01:33:00.440 --> 01:33:02.849
Boardroom: Flock needs Berkeley.

427
01:33:03.080 --> 01:33:09.409
Boardroom: A sanctuary city as a poster boy for a community

428
01:33:09.680 --> 01:33:22.979
Boardroom: that people care… in which people care about their population, to do business with this company. Flock is not the only company. Please, be thinking about this. Thank you.

429
01:33:23.300 --> 01:33:27.029
Boardroom: Thanks so much. We don't want to be another advertisement. Thank you.

430
01:33:27.270 --> 01:33:29.379
Boardroom: Come on, Linda, come on up.

431
01:33:33.810 --> 01:33:43.560
Boardroom: Good evening, Council. My name is Linda Olivenbaum, and I'm reading a statement from Friends of Adeline, which… would everyone from Friends of Adeline please stand? Or wave?

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432
01:33:43.830 --> 01:33:52.690
Boardroom: Thank you. Friends of Adeline strongly opposes the Berkeley Police Department's proposed expansion of its flock surveillance camera network.

433
01:33:52.760 --> 01:34:04.480
Boardroom: This proposal represents the largest expansion of surveillance infrastructure in the city's history, and directly undermines Berkeley's long-standing commitment to being a sanctuary city.

434
01:34:04.480 --> 01:34:16.049
Boardroom: Approving this contract moves Berkeley toward a more militarized model of policing, with serious and disproportionate consequences for the people of our Black, Brown, and immigrant communities.

435
01:34:16.050 --> 01:34:26.749
Boardroom: Expanding surveillance does not make our communities safer. It increases the risk of over-policing, data misuse, and civil rights violations.

436
01:34:26.840 --> 01:34:37.859
Boardroom: Flock's track record raises significant concerns, despite what we've heard tonight. It is well documented that this company shares data with federal law enforcement agencies. Thank you. Thank you both. Thanks, Linda.

437
01:34:54.030 --> 01:34:56.200
Boardroom: Hello, my name is Sally Nelson.

438
01:34:57.920 --> 01:35:02.719
Boardroom: You're right to be concerned about providing safety for all of Berkeley.

439
01:35:03.810 --> 01:35:14.680
Boardroom: The recent announcement by the ACLU reveals that Flock now claims that all data gathered by its surveillance belongs to Flock, and not to the City of Berkeley.

440
01:35:15.050 --> 01:35:23.589
Boardroom: FLAC may then share that data with any agency or person of its choosing, including ICE, in the CBP.

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441
01:35:24.030 --> 01:35:26.590
Boardroom: This makes all of us less safe.

442
01:35:26.800 --> 01:35:42.500
Boardroom: Whether we are people of color, or undocumented immigrants, naturalized citizens, or citizens by birth whose beliefs may be too progressive for Ferlock's opinions, we are all at risk for being detained, imprisoned, or subjected to violence.

443
01:35:42.650 --> 01:35:50.039
Boardroom: We all want Berkeley to be more safe, end the contract with Flock. The safety of your constituents

444
01:35:50.330 --> 01:35:57.409
Boardroom: depends upon your voting no on having any contract with Florida. Thank you. Thanks for your comment.

445
01:35:58.470 --> 01:35:59.510
Boardroom: Thank you.

446
01:36:08.350 --> 01:36:09.550
Boardroom: Hello.

447
01:36:10.540 --> 01:36:30.260
Boardroom: I'm James Scannellberry from the… If you could speak into the mic, please. Jane Scannellberry from the Commission on Labor, and in a meeting recently, we unanimously voted to urge the City to suspend its contract with Flock, and to halt any further expansion of the program.

448
01:36:30.870 --> 01:36:50.340
Boardroom: Because due to the company's well-documented use of overseas sweatshop labor. These are some examples from the letter. In 2009, first of all, just about the sweatshop procurement ordinance. In 2009, the Berkeley City Council passed the Sweatshop Free Procurement Ordinance.

449
01:36:50.870 --> 01:37:01.749
Boardroom: While the ordinance is specific to the procurement of apparel, the wording is an expression of Berkeley's fundamental values as a municipality.

450
01:37:01.880 --> 01:37:15.749
Boardroom: The City of Berkeley, and this is from the, the ordinance, the City of Berkeley recognizes a public interest in avoiding payments to

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vendors who maintain sweatshop… Rose, this person is giving their minute, too. Thank you.

451
01:37:15.990 --> 01:37:23.050
Boardroom: Including below substance wages, excessive long working hours, etc.

452
01:37:25.320 --> 01:37:41.699
Boardroom: As documented in both international media and academic studies, Flock outsources much of its work to low-paid gig workers in the Philippines. These contractors do data annotations, often referred to as crowd work, in which workers view

453
01:37:41.700 --> 01:37:53.820
Boardroom: thousands of hours of video annotating the data to help train the AI algorithms. This is low-wage, monotonous, yet high-pressure work, and the workers doing this analysis

454
01:37:54.520 --> 01:38:09.629
Boardroom: are exposed to substandard labor conditions, including extremely low rates of pay and lack of labor rights and protections. To outsource much of its data analysis to low-paid workers in the Global South, companies like Flock

455
01:38:09.630 --> 01:38:16.809
Boardroom: can maximize their own profits by evading U.S. minimum wage and working condition protections. Thank you.

456
01:38:29.760 --> 01:38:31.199
Boardroom: My name is Martino.

457
01:38:32.860 --> 01:38:39.360
Boardroom: I know that some of you will be voting against this contract extension.

458
01:38:40.120 --> 01:38:43.909
Boardroom: But that most of you will probably vote for it.

459
01:38:44.190 --> 01:38:50.580
Boardroom: And I want to say that what that means is you are standing in opposition

460
01:38:50.580 --> 01:39:04.780

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Boardroom: to the momentum of other cities in this area that are voting it down, and that you are standing against this, the tendency in history to get rid of this kind of,

461
01:39:04.840 --> 01:39:14.719
Boardroom: socialist… Whatever it is. And, that… You are,

462
01:39:15.980 --> 01:39:21.800
Boardroom: Well, you are standing in the way of history.

463
01:39:22.200 --> 01:39:29.629
Boardroom: And I want to say to you that if you are going to vote for this contract extension

464
01:39:29.810 --> 01:39:34.320
Boardroom: What you need to do… Thank you. …is resign. Thanks so much. Right now.

465
01:39:34.560 --> 01:39:36.050
Boardroom: Thanks for your…

466
01:39:41.780 --> 01:39:45.810
Boardroom: Hello, so my ally, Rhonda, is actually gonna be giving me a minute.

467
01:39:45.970 --> 01:39:49.830
Boardroom: Can you raise your hand? Oh, there you are. Okay, go ahead. Alright, cool.

468
01:39:49.870 --> 01:40:09.860
Boardroom: So, hello, my name is Manny, I've actually been a part of taking down Flock in six jurisdictions, and I hope that you can be the seventh. Alright, so I'm gonna start off addressing the lie that he said. Their patent, their own patent that they filed to the U.S. Patent Office clearly states that their technology is capable of categorizing people based on height and weight.

469
01:40:09.860 --> 01:40:32.259
Boardroom: race and gender, clothes and accessories worn, and animals and bicycles and cars, which is how they advertise themselves. Furthermore, their 2021 DHS policy actually requires that all ALPR vendors, including Flock, not leave a trail of ice in any audit logs, except in audit logs made available only to ICE.

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470
01:40:32.260 --> 01:40:36.810
Boardroom: So when you go and do an audit, and you don't find ICE in there, that's a false negative.

471
01:40:36.860 --> 01:40:38.100
Boardroom: Furthermore.

472
01:40:38.100 --> 01:41:02.840
Boardroom: In your… in Section 4 of your contract, there is a Worldwide Rights Clause, and like my ally alluded to earlier, the reason why it's there is because they share… they send the data overseas so that Filipino gig workers can analyze it for the training of the AI system. Also, another lie that he said was that no more California agencies are sharing data nationally. That is not true. El Cajon

473
01:41:02.840 --> 01:41:16.340
Boardroom: is very much still sharing data nationally, and they're actually countersuing the state of California because they want to keep sharing nationally. And if you guys want an anecdote on how Border Patrol has used this technology.

474
01:41:16.350 --> 01:41:25.630
Boardroom: an elementary school teacher named Marimar Martinez was tracked and hunted down using flock cameras for over two weeks.

475
01:41:25.630 --> 01:41:45.340
Boardroom: They shot her 5 times, and then bragged about it with each other over text messages, saying that they shot her 5 times, and she had 7 bullet holes. Put that in your book, boys. Why do we have to wait for someone in our community to be harmed by this technology to get rid of it? We should just get rid of it. Please vote no on flock.

476
01:41:55.100 --> 01:42:14.430
Boardroom: Is the city of Berkeley really gonna pass a MAGA plan to create a surveillance city? That's what we're really asking here today. I want to read a quote from Edward Snow. No system of mass surveillance has existed in a society that we know of to this point that has not been abused.

477
01:42:14.430 --> 01:42:28.579
Boardroom: And so we can expect that kind of thing. And when the police say this is gonna save us money, how many police officers are going to get laid off so that we can pay for this project, you know? None are getting laid off, so it's not saving us any money. And those who would give up essential

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478
01:42:28.580 --> 01:42:35.939
Boardroom: liberty to purchase a little temporary safety deserve neither liberty nor safety. That's Ben Franklin, so we should think about that.

479
01:42:36.130 --> 01:42:43.989
Boardroom: This is Big Brother here in the latest expansion of the surveillance state. This is an investor-driven plan

480
01:42:44.170 --> 01:43:00.520
Boardroom: Much like the expansion of the prison state in the 90s. So let's be clear, Flock is the hardware that shuts down free speech, so when you guys vote for this, you're shutting down free speech, because this is gonna be a surveillance system on all of us. Thank you.

481
01:43:05.820 --> 01:43:25.730
Boardroom: Hello, my name is Johnny Kocher, and I'm a member of Bay Area Juice for Justice, and I'm here today to reject the proposal, to urge you to reject the proposal to use flock surveillance technology. In April 2025, the California Highway Patrol conducted a search on behalf of ICE that simultaneously reached 845 separate California agency databases through

482
01:43:25.730 --> 01:43:40.339
Boardroom: Flock's sharing network. Because of how Flock's architecture works, it connected to all connected agencies and functioned as a dragnet, touching the camera data of nearly every California law enforcement Flock customer, including communities throughout Contra Costa County.

483
01:43:40.470 --> 01:43:46.220
Boardroom: This is a centralized Orwellian dragnet surveillance technology that makes our immigrants less safe.

484
01:43:46.340 --> 01:43:52.389
Boardroom: This is a… and it's against our sanctuary city policy. I urge you to vote no on this contract. Thank you. Thank you.

485
01:43:57.160 --> 01:44:04.239
Boardroom: Good evening, my name's Karina Jagger. I'm a resident of… long-time resident of District 2, a nearly 30-year resident of Berkeley.

486
01:44:04.730 --> 01:44:19.699

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Boardroom: It's heated, and we live in a really polarized world right now, and it's really easy for folks to back into their corners and entrench and kind of plug your ears and start, say, you know, entrenching in your position, right?

487
01:44:20.110 --> 01:44:32.190
Boardroom: And I wanna… we're not all on the same side, we have a real substantive difference of opinion, but we are all here because we care about this community. We care about each other, and we want Berkeley residents to be safe.

488
01:44:32.390 --> 01:44:46.199
Boardroom: And the question is, how can we best do that? It is an absolutely false dichotomy to set up this, you know, safety versus civil liberties. We deserve, and we can have both.

489
01:44:46.220 --> 01:45:00.840
Boardroom: And so, when Councilmember O'Keefe here is saying that she doesn't feel personally comfortable with certain elements of the drone, usage, there's a whole lot of people that aren't comfortable with many parts of this. Thank you. Thanks so much.

490
01:45:07.380 --> 01:45:10.849
Boardroom: Hi. I'm Rebecca Kenny, the suspect in the yellow shirt.

491
01:45:10.850 --> 01:45:30.129
Boardroom: I live in El Cerrito, but I grew up in Berkeley. My parents still live here, my partner works here, and I maintain deep connections to this city. On Tuesday, the El Cerrito City Council voted to end its contract with Flock. And here… here are some concerns, our council members cited. First, our city was initially presented with a new contract, which we were told was better.

492
01:45:30.130 --> 01:45:36.810
Boardroom: But then our police chief recommended we retain the old contract instead, with no reason given. Clearly, Flock did not negotiate in good faith.

493
01:45:36.880 --> 01:45:44.270
Boardroom: Second, we live under an authoritarian federal government. The Supreme Court could change the law at the drop of a hat through the shadow docket to compel FLAC to share data.

494
01:45:44.330 --> 01:45:58.969

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Boardroom: California law won't protect us either. The state is currently being compelled to share information about undocumented immigrants with driver's licenses. If the state can't protect itself, how can it protect us? Is this political environment a safe time to be using experimental mass surveillance?

495
01:45:58.970 --> 01:46:11.710
Boardroom: Third, Flock only fixes issues after other groups call out their failures. They do not make proactive fixes. Fourth, Flock claims its product as the cameras, but it's actually the mass aggregation of data. Cerrito, cancel the contract. Thank you.

496
01:46:18.140 --> 01:46:43.090
Boardroom: Good evening, my name is Erin, I am a resident of District 3. I am angry, I am embarrassed that we even have to be here because our council might prioritize the interests of Flock's corporate tech and police brutality over the constituents who voted for you. If BPD won't even be honest about basic facts about Flock, we have no reason to trust how and why they'll use it. Two PAB members resigned, citing BPD actively makes their job impossible by obstructing records of BPD misconduct.

497
01:46:43.090 --> 01:46:59.909
Boardroom: Frankly, I don't trust SLOC to be held accountable if BPD refuses to be held accountable. BPD has made it clear that they do not represent Berkeley lives and safety. Council members know that a vote for Block betrays the people of Berkeley in favor of your own comfort of safety that doesn't even exist. Thank you.

498
01:46:59.950 --> 01:47:01.180
Boardroom: Thank you.

499
01:47:05.460 --> 01:47:30.109
Boardroom: Hi, I'm just gonna be really honest here. I don't think anyone wants to be here tonight. We've been doing this for months and months and months. So please, just do your job and listen to your constituents. We have been telling you for months to not vote for this. So if you don't do your job, we can always not re-elect you. If you're not up for re-election, we can recall you, so please, just

500
01:47:30.110 --> 01:47:31.250
Boardroom: Do your job.

501
01:47:31.510 --> 01:47:32.490
Boardroom: Thank you.

502

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01:47:33.530 --> 01:47:34.710
Boardroom: Thank you.

503
01:47:39.260 --> 01:47:44.869
Boardroom: Hello, my name is Nagin Mossad, and I'm a small business owner in Berkeley and a long-time resident.

504
01:47:45.110 --> 01:47:58.129
Boardroom: The reality is that militarized policing and surveillance technologies only assist to our slide into fascism. As we know by the plight of the Palestinian people, as in Gaza.

505
01:47:58.450 --> 01:48:01.200
Boardroom: The quick murder of

506
01:48:01.720 --> 01:48:20.360
Boardroom: educators, organizers, and key figures in Gaza in cold blood within the matter of a few months was only possible through surveillance technology. The Israeli fascist government operates by exterminating those, and what separates us

507
01:48:20.360 --> 01:48:36.200
Boardroom: from Gazans. We are people just like they are. And with this slide to fascism that is quickly descending upon us, I don't trust any of these surveillance technologies, and I don't trust the future of a militarized police state. I hope you vote no against this.

508
01:48:36.640 --> 01:48:37.910
Boardroom: Sorry, thank you.

509
01:48:44.720 --> 01:48:51.680
Boardroom: How many people in this room are for flock? Who's for flock? Who's not for flock?

510
01:48:56.310 --> 01:48:57.650
Boardroom: All right.

511
01:48:58.850 --> 01:49:05.380
Boardroom: So, we know we have a council member that went to the 47th's inauguration.

512
01:49:05.710 --> 01:49:15.540

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Boardroom: And it seems like y'all are trying to be fascists right here in Berkeley. And we are not accepting that. Are we accepting fascism and surveillance?

513
01:49:18.120 --> 01:49:21.840
Boardroom: So… no to flock.

514
01:49:22.920 --> 01:49:28.180
Boardroom: I know you can't trust what anybody up here said except for this one person on the end here.

515
01:49:28.440 --> 01:49:30.350
Boardroom: For the PAB.

516
01:49:31.270 --> 01:49:32.210
Boardroom: Otherwise.

517
01:49:32.770 --> 01:49:41.620
Boardroom: I don't know if Mr. Flock is lying or what, but he's been called out! So don't believe the hype! Know to Flock!

518
01:49:42.250 --> 01:49:44.330
Boardroom: with me! No!

519
01:49:45.460 --> 01:49:46.759
Boardroom: Thank you. To fly!

520
01:49:57.110 --> 01:50:03.940
Boardroom: Would anyone like to give me a minute? Yeah, 1, 2… Thank you. I think that's all I need. Thank you.

521
01:50:06.510 --> 01:50:09.189
Boardroom: Oh. Who raised their hand real quick?

522
01:50:09.900 --> 01:50:23.390
Boardroom: There's 1, 2, 3… Wait, sorry, are you taking… how many minutes? Are you taking three? I'm just taking 3. Okay, so sorry. 1, 2… I missed the third person. 3 total? Okay, go ahead.

523
01:50:24.720 --> 01:50:40.139
Boardroom: Thank you, Mayor and Councilmembers. Thank you, former Councilmember Cheryl Davila, for your testimony. Thank you,

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Councilmembers Bartlett, Trey Goob, O'Keefe, who isn't here, and Blackaby and Luna Parra for your testimony. I appreciate it.

524
01:50:40.140 --> 01:50:46.589
Boardroom: This is really about whether Berkeley normalizes a future where ordinary public life becomes permanently searchable.

525
01:50:46.800 --> 01:50:57.999
Boardroom: We're told that these systems are narrow, temporary, and only for serious crime, but history shows us the same pattern again and again. Today's exception becomes tomorrow's standard.

526
01:50:58.480 --> 01:51:12.799
Boardroom: And meanwhile, the underlying conditions people are actually struggling with remain unresolved. Surveillance doesn't lower rent, it does not house people, it does not fix inequality, it does not rebuild trust in public institutions.

527
01:51:13.370 --> 01:51:18.070
Boardroom: Thank you. Technology is not a substitute for good governance.

528
01:51:18.510 --> 01:51:26.670
Boardroom: What it does do is expand systems of monitoring over ordinary civic life. And when cameras are placed on telegraph.

529
01:51:26.670 --> 01:51:40.170
Boardroom: Bancroft and Durant and District 7. This is no longer some narrowly targeted security measure. These are major public corridors, bus stops, economic streets, and some of the most accessible civic spaces in Berkeley.

530
01:51:40.180 --> 01:51:47.549
Boardroom: Students, workers, immigrants, unhoused residents, organizers, shoppers, and neighbors move through these spaces every single day.

531
01:51:47.920 --> 01:51:50.980
Boardroom: Privacy is a part of public safety.

532
01:51:51.000 --> 01:52:09.969
Boardroom: A democratic city should not normalize mass data collection without strict limits, independent oversight, public transparency, and proof that these systems actually improve public safety, instead of simply expanding surveillance infrastructure. And if I'm being honest,

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they really shouldn't be used at all. The burden is not on the public to accept being watched.

533
01:52:09.970 --> 01:52:13.540
Boardroom: The burden is on government to justify why it should.

534
01:52:13.540 --> 01:52:26.960
Boardroom: Thank you for your time and your testimony. I do want to say really quickly that I do believe that surveillance technology should be limited. I do believe the City of Berkeley should be the ones that own this technology and encrypt it end-to-end.

535
01:52:26.960 --> 01:52:38.210
Boardroom: I do believe that the facial recognition should be scattered, the data should be poisoned, the AI should be off the table. You all have a chance and a right to make the right call this day.

536
01:52:38.230 --> 01:52:51.939
Boardroom: Vote no. This city is not ready for the artificial intelligence that's going to come in the next round of flock data. The city is not ready to hold guard blocks in place if that data is hacked by a malicious actor.

537
01:52:51.950 --> 01:53:16.669
Boardroom: And so, I think this city is ready to take it seriously, that no, we do not want flock, no, we do not want surveillance, we are a sanctuary city, and that means we protect everyone, regardless of whether they're a criminal or not, because they have due process and need to be seen in a court of law. So I thank you for your time and your energy, I thank you all for your energy and your time, and if anyone wants to hear more, again, my name is Aiden Hill.

538
01:53:16.670 --> 01:53:26.320
Boardroom: I'm running for Berkeley City Council District 7. So, I really look forward to working with all of you on this, and again, our city deserves sanctuary. Thank you.

539
01:53:26.640 --> 01:53:27.630
Boardroom: Thank you.

540
01:53:33.170 --> 01:53:39.060
Boardroom: I was given an extra minute from… Alright, hi everyone.

541
01:53:39.310 --> 01:53:46.739

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Boardroom: So I agree that it's a false dichotomy that we can only have civil liberty protections or safety. I do think we can have both.

542
01:53:46.900 --> 01:54:03.389
Boardroom: But when it comes to police doing their jobs, I do think they deserve a lot of support. However, history has shown again and again that the federal government has very little regard for our constitutional rights, so the assurances made today about contractual obligations and processes are not persuasive to me.

543
01:54:03.460 --> 01:54:20.970
Boardroom: And we can think about COINTELPRO, when the FBI surveilled, infiltrated, and sabotaged Dr. Martin Luther King Jr, the Black Panthers, and the anti-war movement, the church committee's revelations about the CIA and NSA spying on American citizens, the NSA's mass warrantless wiretapping after 9-11,

544
01:54:20.970 --> 01:54:40.690
Boardroom: exposed by Edward Snowden, the NYPD's documented surveillance of entire Muslim American communities, FBI infiltration of Occupy Wall Street and Black Lives Matter, and the Standing Rock water protectors tracked by private contractors working hand-in-hand with police. There's just a very long history of, inevitably, this data getting into the Fed's hands.

545
01:54:41.420 --> 01:54:55.379
Boardroom: So, I know the police need assistance, and they deserve assistance. I know that all of you council members are here just trying to do your jobs, and I really appreciate your time. This resistance, I'm sure, is inconvenient to many, but I think we need to recognize the broader context that we're in.

546
01:54:55.380 --> 01:55:14.940
Boardroom: And I think that this may be a monkey's paw. I think many people here ultimately have no confidence that a company like this actually has the technological capability to actually keep the federal government out. We heard tonight that they have new security professionals, but I don't think many respectable information security officers would take a job with a company like this, so I ask that we find another way.

547
01:55:16.460 --> 01:55:17.560
Boardroom: Thank you.

548
01:55:22.440 --> 01:55:26.489
Boardroom: Sorry, who's… 1 minute? So I have 2 minutes altogether.

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549
01:55:26.490 --> 01:55:51.479
Boardroom: Two minutes. Two extra minutes. The city attorney told you Flock's seeming willingness to agree to major overhauls the city proposes, coupled with widespread media reports of other jurisdictions canceling their Flock contracts, which likely has put financial pressure on the company, suggests that Flock may be willing to agree to major changes to secure a deal, even though its technical team will not in practice be able to implement those changes.

550
01:55:51.480 --> 01:55:53.490
Boardroom: Said your city attorney.

551
01:55:53.490 --> 01:56:16.160
Boardroom: And from Flock Safety's own website, here's how it rewards its top salespeople. A one-week group vacation that they call Eagles Club, and this is what they say. Eagles Club isn't a participation trophy. You have to outperform, outwork, and out-execute in a room full of elite sellers. Eagles Club is not something that appears at the end of the year as a surprise. It becomes a steady motivator throughout.

552
01:56:16.160 --> 01:56:41.129
Boardroom: For James, that motivation extends beyond the individual. He said. It's always in the back of my mind. My wife's asking, where is it this year? We're both invested in getting there. This job brings the whole household into it. The winds, the stress, everything. It's a culture thing. Everyone's thinking about it. It's competitive, but in a motivating way. That shared energy pushes people to raise their level over time.

553
01:56:41.130 --> 01:56:51.979
Boardroom: salespeople. These are the people that are telling you how much Flock cares about keeping our data secure. They're top salespeople salivating for a contract with Progressive Berkeley.

554
01:56:52.180 --> 01:57:01.850
Boardroom: I once worked for a company like that, where the salespeople sold systems promising that they could do things that they actually couldn't do. That company did go out of business, but it took a long time.

555
01:57:03.020 --> 01:57:04.450
Boardroom: Thanks, Kit.

556
01:57:08.010 --> 01:57:27.370

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Boardroom: Good evening, I'm John Kainer, the CEO of the Downtown Berkeley Association and a 36-year resident of Berkeley. We went through a strategic planning process last year, and by far, by far, safety was issue number one with all of our stakeholders and in our community survey. Copies for all of you.

557
01:57:28.050 --> 01:57:32.859
Boardroom: You are in receipt of emails from University Avenue merchants, visit Berkeley.

558
01:57:32.860 --> 01:57:56.970
Boardroom: the importance of safety is paramount for employees, customers, residents, and visitors. Today, I had a conversation with a merchant who's been 45 years in the downtown, said their employees don't feel safe, their people are being assaulted, they're asking for help from our ambassadors and PD. We are implementing next year in January, at a cost of $260,000 a year, a Safety Ambassador program, because

559
01:57:56.970 --> 01:58:01.010
Boardroom: Our stakeholders don't feel safe in our downtown.

560
01:58:01.220 --> 01:58:14.329
Boardroom: These systems have a proven track record. Look at Berkeley, Berkeley Scanner. Please do the right thing. Provide BPD the tools to… Thanks, John. …and provide a safe community for all of us. Thank you.

561
01:58:14.770 --> 01:58:19.570
Boardroom: Hey, folks, come on.

562
01:58:20.540 --> 01:58:22.930
Boardroom: Go ahead. I get 4 minutes.

563
01:58:27.350 --> 01:58:42.920
Boardroom: Good evening. My name's Abigail Lesperance. I'm speaking on behalf of the Berkeley Immigration Collaborative, or BIC. We're five Berkeley-based organizations with decades of experience serving immigrants and asylum seekers in the Bay Area. I am also a District 5 resident.

564
01:58:43.290 --> 01:58:48.339
Boardroom: I was also born and raised in Berkeley, my kids go to Berkeley schools, and I work in Berkeley.

565
01:58:48.520 --> 01:58:58.529

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Boardroom: This City Council has heard from the BIC extensively about the dangers of contracting with Flock. At this time, we want to make one thing clear. If you vote yes on this contract.

566
01:58:58.740 --> 01:59:04.420
Boardroom: You're breaking your commitment to sanctuary, that commitment you made last year in September.

567
01:59:05.280 --> 01:59:14.269
Boardroom: And you are also doing it in the exact moment in this country's history when sanctuary matters most. You all voted on that.

568
01:59:14.910 --> 01:59:34.140
Boardroom: This technology is harmful to immigrants, yes, but it's also harmful to unhoused neighbors who already live under surveillance and constant displacement. It's harmful to black and brown residents because this technology is documented to be racially biased, and the people it misidentifies are the people who are already over-policed. It's harmful to the residents in this room.

569
01:59:35.220 --> 01:59:49.580
Boardroom: who leverage their privilege to show up as observers and as protesters. It is harmful to every person in Berkeley who might one day stand up to an authoritarian federal government. This is not a symbolic battle.

570
01:59:49.950 --> 01:59:57.819
Boardroom: It is a battle to protect sanctuary and democratic control of our city, our technology, and our privacy and our private data.

571
01:59:57.920 --> 02:00:16.549
Boardroom: 79 jurisdictions to date have already canceled their flock contracts. They did it for a reason. In some… the police chiefs themselves led the effort. Just this week, El Cerrito chose sanctuary over flock. You can, too.

572
02:00:16.910 --> 02:00:18.860
Boardroom: The tide is changing.

573
02:00:19.380 --> 02:00:32.519
Boardroom: And the Council can now choose to be on the right side of history, or to bear the responsibility for violating our rights and our safety during the time of authoritarian overreach. The time is now.

574

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02:00:32.690 --> 02:00:43.480
Boardroom: According to public records requests, the federal government accessed Berkeley Police Department's flock data 86,000 times in 2 years.

575
02:00:43.700 --> 02:00:51.020
Boardroom: You say that the contract terms will protect us, but our own city attorney is telling you that no contract terms

576
02:00:51.020 --> 02:01:04.400
Boardroom: will completely protect Berkeley's data, and it will expose Berkeley to between $30 and $60 million in legal liability. I was surprised to hear nobody ask the city attorney any questions about that.

577
02:01:06.180 --> 02:01:12.130
Boardroom: If you approve this contract tonight, you are doing so against the advice of your own counsel.

578
02:01:12.410 --> 02:01:16.950
Boardroom: This, as in your attorney, that is not good governance.

579
02:01:17.610 --> 02:01:34.879
Boardroom: Yesterday, Sarah Hamid of the Electronic Frontier Foundation told El Cerrito City Council how Flock's network architecture is broad, searchable, multi-jurisdiction network where local data is repurposed, relabeled, and reached through side doors that will make it impossible for cities to monitor.

580
02:01:34.880 --> 02:01:58.830
Boardroom: What this means is that we do not and will not know the extent to which Berkeley's data is being used by Flock's AI modeling or federal agencies. The Police Accountability Board found that no other jurisdiction uses one vendor for all of its surveillance technology, and warned you against fully integrating all of Berkeley's data with Flock in this way without first analyzing the vulnerabilities.

581
02:01:58.950 --> 02:02:09.629
Boardroom: To conclude, I want to leave you with the story of Mari Mara Martinez that another gentleman, referenced. She's a U.S. citizen who is a teaching assistant who ice-tracked using Flock.

582
02:02:09.790 --> 02:02:18.779
Boardroom: And they shot her 5 times. Luckily, they didn't kill her. Martinez said she would see bullet scars for her life.

583

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02:02:18.880 --> 02:02:31.250
Boardroom: But she said in her congressional hearing, and I quote, but perhaps even worse, the mental scars will always be there as a reminder of the time my own government tried to execute me. Thank you.

584
02:02:37.950 --> 02:02:40.350
Boardroom: Madam… Madam City Attorney…

585
02:02:40.980 --> 02:02:54.209
Boardroom: Madam City Attorney, did you want to share your statement about that? Yes, thank you, Madam Mayor. Our office is aware that a privileged memo from our office was leaked to the press.

586
02:02:54.340 --> 02:02:56.980
Boardroom: Under established California law.

587
02:02:57.580 --> 02:03:06.710
Boardroom: The attorney-client privilege rests with the City Council, the governing body of the City, and unless you choose to waive it, it's preserved.

588
02:03:06.860 --> 02:03:18.899
Boardroom: Because you haven't waived it. We will not discuss this leaked memo and urge the council members and commissioners and staff to similarly refrain from discussing the contents.

589
02:03:19.190 --> 02:03:20.170
Boardroom: Thank you.

590
02:03:20.420 --> 02:03:22.150
Boardroom: Okay, go ahead. Okay.

591
02:03:22.420 --> 02:03:23.160
Boardroom: Bye.

592
02:03:23.660 --> 02:03:34.440
Boardroom: Hi, I'm Andrew, I'm a District 2 voter who has voted for some of you up here tonight, and I'm really hoping I didn't make a foolish decision. I needed to make sure I come here tonight and remind you that

593
02:03:34.660 --> 02:03:50.610
Boardroom: Many people fought and died for my First, Fourth, and Eighth Amendment rights, and I'm not here gonna be negotiating with some tech

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company over them. Many people behind me with edX can and will make great points regarding how mass surveillance violates their First and Fourth Amendments.

594
02:03:50.830 --> 02:03:53.430
Boardroom: Right? And I'll make a case for the 8th.

595
02:03:53.710 --> 02:03:58.580
Boardroom: If your history teacher was as good as mine, the Eighth Amendment prohibits cruel and unusual punishment.

596
02:03:58.720 --> 02:04:09.369
Boardroom: Every animal, except maybe the honey badger, will have a natural stress response to, being followed, stalked, or, if it feels a prey animal is there.

597
02:04:09.520 --> 02:04:27.949
Boardroom: Humans have the same response. If you set up cameras everywhere, you're creating a giant psychological torture device. This violates the Eighth Amendment. I'll repeat again, I am not going to negotiate over my First, Fourth, and Eighth Amendment rights. Cancel the contract. Thank you.

598
02:04:31.930 --> 02:04:56.919
Boardroom: Good evening, Mayor Ishii and Council members. My name is Musa with Kerr, the Council on American Islamic Relations, and we want to express our opposition to the proposed Flock expansion and any ALPR alternatives. To start, Flock is patently unsafe. Flock's hackable nature makes Berkeley liable for SB34 violations. Flock has been proven to be hacked within 30 seconds due to 51 security vulnerabilities. In one instance, a user was able

599
02:04:56.920 --> 02:05:21.770
Boardroom: to access a 24-7 livestream of a children's playground in the Bay Area. That is terrifying, and that is unconscionable. Flock and ALPRs are a threat to Berkeley residents at large. Berkeley residents need to know that when they drive to seek legal assistance, when they go to their place of worship, or when they attend a protest opposing Israel's genocide in Gaza, that they need to know that they won't be surveilled, kidnapped, or killed by ICE. Berkeley residents should feel safe enough to move through their city

600
02:05:21.770 --> 02:05:27.109
Boardroom: without a large shadow looming over them. Please meet the moment. Say no to MAGA mass surveillance. Thank you.

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601
02:05:28.350 --> 02:05:29.469
Boardroom: Thank you.

602
02:05:33.830 --> 02:05:42.810
Boardroom: Please stand up for public safety and for fact-driven data. What's true is over 6,000

603
02:05:42.890 --> 02:05:56.069
Boardroom: cities and communities chose Flock, because they are effective, because they help stop crime, because they work. Less than 1%

604
02:05:56.300 --> 02:05:58.900
Boardroom: did not back out of Fuck.

605
02:05:58.900 --> 02:05:59.720
Boardroom: But…

606
02:05:59.720 --> 02:06:23.900
Boardroom: So, you represent the constituents that elected you, and they are moderates. They are not the extremists you see here that were rejected across the country and came to Berkeley because it's a beacon of radical extremism. Stand up for your constituents who could not stay here till 2 in the morning because that's how long your meetings last time, and they have to go to work.

607
02:06:23.900 --> 02:06:42.930
Boardroom: vote with a 99%, stand up for public safety. There was a child trafficker, rapist, that tortured a girl and lit her on fire, and Falk put her away. That person was in Berkeley. Thank you. Hold on. Before you speak, folks…

608
02:06:42.940 --> 02:06:46.240
Boardroom: You need to be respectful and let folks speak.

609
02:06:46.560 --> 02:07:04.850
Boardroom: This is… that impacts the time that everyone has to speak, so please let them finish. It's also disrespectful. Go ahead. Thank you. So, my name is Grant Thompson. I'm a District 6 resident. I raised my kids here. I'm a lawyer here. I am not an ideologue. I'm not an extremist, I'm your constituents.

610
02:07:06.520 --> 02:07:17.279

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Boardroom: I wanted to comment, I saw an editorial that the pro-FLOC council members had written, and I wanted to address a couple points that they made in that editorial, and asked if they… they think about it.

611
02:07:17.730 --> 02:07:25.759
Boardroom: So, it said, as a defense to Flock, Flock does not directly give data to ICE or other federal agencies.

612
02:07:27.160 --> 02:07:34.860
Boardroom: I'd like for you to sit with that a second, and think about how you're gonna feel about defending that to a woman who has seen a loved one

613
02:07:35.000 --> 02:07:39.749
Boardroom: taken away and abducted by ICE, because it was indirectly shared.

614
02:07:40.590 --> 02:07:42.170
Boardroom: That's an admission.

615
02:07:42.440 --> 02:07:50.400
Boardroom: that these paper restrictions that you're talking about aren't going to work. We all know this data's gonna get out.

616
02:07:50.950 --> 02:07:58.880
Boardroom: So, you can cancel it now, or you can wait until you get sued… Thank you. …and people start getting involved. Thanks so much.

617
02:08:03.230 --> 02:08:04.939
Boardroom: Guys, he's gonna seed me in one minute.

618
02:08:05.370 --> 02:08:08.170
Boardroom: Sorry, from the… okay, thank you.

619
02:08:08.670 --> 02:08:19.190
Boardroom: Thanks. My name is Lewis, I live in Berkeley, and I had a lot of points I wanted to make today, but I just want to respond to some of the points that Mr. Flock made, in response to Councilmember Blackaby.

620
02:08:19.350 --> 02:08:34.989
Boardroom: He said that if Flock receives subpoenas from the federal government, that they inform the federal government that they do not own

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the data, and they… and they also immediately inform the local agency that the data is being requested for.

621
02:08:34.990 --> 02:08:58.300
Boardroom: That ignores the fact that there are many well-established pathways for federal subpoenas that include a gag order, and that also directly ignores the fact that federal subpoenas are not for the owner of the data, they're for anybody who has access to the data. And there's a reason that Flock maintains this massive database of all of this data. A single subpoena from the federal government to Flock

622
02:08:58.300 --> 02:09:09.720
Boardroom: can track the license plate of someone across the entire United States, including all of California, and there can be no way of a local agency or jurisdiction being made aware of that.

623
02:09:09.720 --> 02:09:12.819
Boardroom: According to the Electronic Frontier Foundation.

624
02:09:13.020 --> 02:09:36.299
Boardroom: there were hundreds of thousands of national security letters, which are these kind of subpoenas, sent by the FBI over the last decade. 97% of them included this kind of gag order, which would mean that the person being subpoenaed cannot notify anyone else. And it's patently ridiculous to think that they are going to be able to just say, oh, well, Berkeley technically owns the data, even though I have access to all the data right here.

625
02:09:36.300 --> 02:09:37.930
Boardroom: That's not what's happening.

626
02:09:38.110 --> 02:09:52.530
Boardroom: Flock is not the company for us to be trusting with this kind of thing. There's a reason that they're… they have this massive dragnet of data. And also, there's a reason that Flock said they have immigration and reproductive filters.

627
02:09:52.830 --> 02:10:07.530
Boardroom: They don't block immigration requests, they have filters, because they specifically market their services to jurisdictions that are using this to crack down on abortion seekers and crack down on immigrants. And when Berkeley gets invaded.

628
02:10:07.530 --> 02:10:13.170

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Boardroom: like Minnesota did, there's gonna be nothing we can do to stop this, because it's already happening now. Your time's up.

629
02:10:20.470 --> 02:10:43.410
Boardroom: Hi, I'm Jocelyn DeSena, SEIU 1021 CSU worker. We're facing a budget deficit and potential layoffs. Risking multi-million dollar lawsuits resulting from Flock's well-established practice of data misuse would be an irresponsible financial decision when the jobs of essential city workers are in your hands. Exorbitant police overtime is already eating up millions of dollars, while critical safety net services are under threat.

630
02:10:43.410 --> 02:11:08.359
Boardroom: You cannot in good conscience allow, for example, health, housing, and community services programs that prevent crises, create real public safety, and instill dignity to be placed on the chopping block while increasing militarized policing and racial profiling that target the already most over-policed community members. We need to balance our budget, not gamble on a bad decision that's extremely unpopular in Berkeley. The 1021 CSU board, COPE delegates, and

631
02:11:08.360 --> 02:11:20.919
Boardroom: concerned members oppose the flock contract. Prioritize Berkeleyans over billionaires, services over surveillance, constituents over corporate contracts, and workers over waste. No flock.

632
02:11:22.600 --> 02:11:24.109
Boardroom: Thanks, Jocelyn.

633
02:11:29.380 --> 02:11:31.370
Boardroom: I have a couple people seating time.

634
02:11:31.520 --> 02:11:44.689
Boardroom: I have one, I have two, and I have one back there. Okay, yeah, just ask… so, I see this person here, and then the person with the pink, and then Tosh. Okay, got it. Three. Alright.

635
02:11:44.970 --> 02:11:47.010
Boardroom: I'm not quite sure who you counted, but…

636
02:11:47.140 --> 02:12:04.079
Boardroom: Okay, my name is Andrea Pritch, and I'm with Berkeley Copwatch, and I just want… and I'm also a District 2 resident, and I just want to assure you all that you do not care about our safety more than we

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do. So we're not here saying, we don't care about safety, we're here because we care desperately about our safety.

637
02:12:04.330 --> 02:12:07.580
Boardroom: And we perceive the threat differently than you do.

638
02:12:07.930 --> 02:12:10.560
Boardroom: What I want to say also is that,

639
02:12:10.660 --> 02:12:28.390
Boardroom: let's be clear that, the crime rate in Berkeley is going down. It was going down before, you employed all the ALPRs and the… I'm sorry, the new flock cameras. So that's a trend that's already happening. And I do… I would defy anybody to come up with an independent

640
02:12:28.520 --> 02:12:47.270
Boardroom: research that says that flock cameras are associated with crime declines. What we have is flock representatives and cops telling you that. Where is the reliable research? Where's the reliable data that's independent? We are fully aware that, we're being asked to trust Flock

641
02:12:47.270 --> 02:12:52.119
Boardroom: I want to comment about national lookup. According to CBS,

642
02:12:52.120 --> 02:13:07.610
Boardroom: The Venturas County Sheriff's Office said it had disabled Flock's national lookup feature in June 2023 to comply with California's law borrowing local agencies from sharing automatic license plate reader data with out-of-state and federal law enforcement agencies.

643
02:13:07.610 --> 02:13:20.209
Boardroom: However, earlier this month, deputies learned that several California law enforcement agencies reported that the national lookup feature had somehow been reactivated without any explanation.

644
02:13:20.450 --> 02:13:25.880
Boardroom: My question, whether it's deception, deviousness, or incompetence.

645
02:13:26.030 --> 02:13:31.340
Boardroom: Now, if this was a job interview, would you hire them? Would you hire them?

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646
02:13:32.720 --> 02:13:44.240
Boardroom: I'm asking you also to consider that the people of Minneapolis who protested, they were told that the authorities will be investigating everybody who participated in the protests. That… that…

647
02:13:44.540 --> 02:13:51.009
Boardroom: And they've got 300 Flock cameras. The CEO of Flock recently referred to organizers with a group called DFLock.

648
02:13:51.150 --> 02:13:59.120
Boardroom: as domestic terrorists, simply because they're doing what we're doing right now. If our current government…

649
02:13:59.690 --> 02:14:07.199
Boardroom: We have, we have this, this, we've given this council a clear mandate about how we want public safety to look.

650
02:14:07.700 --> 02:14:19.539
Boardroom: We did it 5 years ago, and we have not lost track of that vision. We want public safety, we want to reimagine it, and we believe that if there's a crisis with cops, and there's not enough cops, we already told you!

651
02:14:20.500 --> 02:14:26.850
Boardroom: We need a non-police response to calls that don't require somebody with a gun on their hip!

652
02:14:29.010 --> 02:14:40.179
Boardroom: That is a clear way forward that will leave the pressure on these guys and make us all feel a lot better. And you go back and read the city auditor's report, this is not new to you.

653
02:14:40.290 --> 02:14:50.410
Boardroom: Also the issue of liability is real. As you well know, Leaks happen.

654
02:14:54.510 --> 02:15:10.660
Boardroom: If Flock had leaked data, that would be a liability. That could cost this city millions of dollars. So you see how easy it is. I also want to make you aware of a bill called the Surveillance Accountability Act that is currently before Congress.

655
02:15:10.860 --> 02:15:24.540

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Boardroom: And what they propose to do is to restrict warrantless government surveillance by requiring judicial warrants based on probable cause for accessing personal data, including information from data brokers.

656
02:15:25.050 --> 02:15:29.760
Boardroom: If that legislation goes forward, then the fundamental premise…

657
02:15:30.030 --> 02:15:46.040
Boardroom: of this whole totalitarian flock infrastructure gets the floor taken out from under it. Instead of a cop casually, like, where's my girlfriend? And going in there and checking flock's database, they would have to get a judicial warrant.

658
02:15:46.520 --> 02:15:51.419
Boardroom: And that fundamentally alters what is being proposed here today. Thank you.

659
02:15:59.510 --> 02:16:01.650
Boardroom: I've got one minute from…

660
02:16:02.650 --> 02:16:04.100
Boardroom: Yeah, of course in the background.

661
02:16:05.170 --> 02:16:09.930
Boardroom: Good evening, Mayor, members of the City Council, our beautiful community, and Mr. Flock.

662
02:16:10.230 --> 02:16:15.099
Boardroom: I am Solly Alpert, chair of the Berkeley Rent Stabilization Board, speaking in my own capacity.

663
02:16:15.390 --> 02:16:20.660
Boardroom: I'm speaking tonight in opposition to any relationship between the City of Berkeley and Flock Surveillance.

664
02:16:21.110 --> 02:16:27.230
Boardroom: I think that we shouldn't do this, because it's a reckless, irresponsible thing to do during Trump's reign.

665
02:16:27.430 --> 02:16:34.390

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Boardroom: When ICE is shown it is willing to use every tool in its disposal, legal or otherwise, in order to assault our immigrant community.

666
02:16:34.790 --> 02:16:36.839
Boardroom: But even if that weren't the case.

667
02:16:37.129 --> 02:16:42.910
Boardroom: This no-bid contract is a massive boondoggle for a city facing a multi-million dollar deficit.

668
02:16:43.320 --> 02:16:48.270
Boardroom: The draft budget proposes to lay off city workers, cut services.

669
02:16:48.530 --> 02:16:58.479
Boardroom: and reduce funding for affordable housing, which, unlike block surveillance, is actually the number one priority of Berkeley voters in every poll that we've ever done.

670
02:16:58.940 --> 02:17:03.890
Boardroom: This… This is a multi-million dollar no-bid contract.

671
02:17:05.230 --> 02:17:09.550
Boardroom: And even apart from that, the minute the city approves it, you're gonna be sued.

672
02:17:09.600 --> 02:17:28.390
Boardroom: And that's a multi-million dollar lawsuit. And even apart from that, the minute those cameras go up, they're gonna be targeted systematically for, you know, for, decoration. For decoration, yeah. And that's not a threat from me, that's not… I'm not urging that, that's just a reality. We've seen that already throughout the country and in our neighborhood in Oakland, right? So…

673
02:17:28.500 --> 02:17:30.570
Boardroom: How is this council gonna spend public money?

674
02:17:31.120 --> 02:17:48.030
Boardroom: There are going to be multiple measures on the ballot this November, including potentially one from the City Council proposing a, unfortunately, regressive sales tax, where the people will be asked to tax themselves to fund city services. Is this council really going to throw the public's money into surveillance that we do not want.

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675
02:17:48.340 --> 02:17:54.939
Boardroom: Then get sued for multiple millions of dollars, more of the public's money, and then have those cameras all destroyed, and then tell the public.

676
02:17:55.129 --> 02:18:01.760
Boardroom: Will you give us some more money and raise your sales taxes? I think that's a really stupid idea. Thank you.

677
02:18:11.160 --> 02:18:16.059
Boardroom: Hi, I believe I have 2 minutes from a friend over here, and over here.

678
02:18:16.650 --> 02:18:19.529
Boardroom: So, should be 3 minutes total?

679
02:18:20.090 --> 02:18:29.090
Boardroom: Hi, my name's Leah Martins, I'm a Berkeley resident of District 3, I'm a local pastor, I'm also an organizer with East Bay Singing Resistance.

680
02:18:29.139 --> 02:18:43.690
Boardroom: And I'm here to call you in through song, again. Last time we had comment on this, you may remember, I sang to you an invitation to change your mind if you were supporting the flock comment… contract.

681
02:18:43.780 --> 02:18:46.350
Boardroom: Today, I'm gonna sing for you a new song.

682
02:18:46.520 --> 02:18:56.129
Boardroom: And invite any others here who want to sing to join me. And this is an invitation to affirm that how we spend our money matters.

683
02:18:56.280 --> 02:19:10.960
Boardroom: And budgets have moral implications. And we, as a community, are calling you to spend our money in ways that honor our community's values, which are being named here very clearly tonight. So…

684
02:19:11.299 --> 02:19:16.210
Boardroom: You've gotta put your money where your heart is.

685

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:19:16.760 --> 02:19:30.289
Boardroom: Fund the world you long to see. It's time we put our money where our heart is, toward every human, toward every human, living healthy, living free. Let's try that together.

686
02:19:30.299 --> 02:19:41.109
Boardroom: Gotta put your money where your heart… Fund the world you wanna see. Fund the world you long to see. It's time we put, it's time we put our

687
02:19:41.110 --> 02:19:57.379
Boardroom: our money where our heart is. Toward every human, living healthy, living… Let's do that verse one more time. Gotta put your money where our heart is. Fund the world, fund the world you want to see.

688
02:19:57.550 --> 02:20:07.569
Boardroom: It's time we put our money where our heart is. Toward every human, living healthy, living free, amazing! So we're gonna do it alone!

689
02:20:08.650 --> 02:20:14.450
Boardroom: But now we're gonna say, it isn't flock that keeps us safe, it's you and me, right?

690
02:20:14.790 --> 02:20:21.199
Boardroom: Yeah, so that goes like this. So you can put your money where your heart… it isn't flock!

691
02:20:21.380 --> 02:20:35.699
Boardroom: It isn't flock that keeps us safe, it's you and me. It's time we put our money where our heart… toward all our neighbors! All our neighbors, living healthy, living free.

692
02:20:35.700 --> 02:20:58.869
Boardroom: Well, it's time to put your money where our heart. It is a clock! It is a flock that keeps us safe as you and me. It's time we put our money where our heart is. All our neighbors! All our neighbors living healthy, living free! All of Berkeley! All of Berkeley livin' healthy. Every human!

693
02:20:58.970 --> 02:21:03.600
Boardroom: Every human living healthy. All our families!

694
02:21:03.710 --> 02:21:20.460

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Boardroom: All our families living healthy and living free. All our neighbors! All our neighbors living healthy, living free. One more time, every human! Every human living healthy, living free. Thank you, friends!

695
02:21:26.120 --> 02:21:39.869
Boardroom: Okay, George, follow that. Wait and see. I got a minute from the crocheter. Okay. Thank you. Catherine. Okay. Should be enough. So…

696
02:21:40.190 --> 02:21:43.799
Boardroom: George Lipman, I'm a member of the… George, talking to the mic.

697
02:21:44.100 --> 02:21:50.329
Boardroom: Member of the Peace and Justice Commission, and I'm speaking with the, at the request of the,

698
02:21:50.430 --> 02:21:57.600
Boardroom: Chair, Pastor Duane Phillips, who sends his regrets. In this complex issue,

699
02:21:58.690 --> 02:22:00.760
Boardroom: There are some things that are very clear.

700
02:22:02.140 --> 02:22:10.659
Boardroom: We now know that the city's own attorney raised strong concerns about the liability of $30 to $60 million if we go forward with this proposal.

701
02:22:11.420 --> 02:22:19.389
Boardroom: Council, you're responsible for the fiscal health of this city. To go forward with this contract expansion would be a gross failure.

702
02:22:19.590 --> 02:22:26.259
Boardroom: of your fiduciary duty. We love Berkeley, and we want to help keep it safe.

703
02:22:26.480 --> 02:22:28.950
Boardroom: Physically, as well as financially.

704
02:22:29.560 --> 02:22:33.019
Boardroom: Please take seriously your responsibility as well.

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705
02:22:33.130 --> 02:22:37.420
Boardroom: Then, send this troubling contract back to the drawing board.

706
02:22:38.800 --> 02:22:40.800
Boardroom: In a larger frame.

707
02:22:41.420 --> 02:22:52.730
Boardroom: This is a time when the hard-won Reimagining Public Safety Initiative, essentially finding positive solutions to social problems, is on really hard times.

708
02:22:53.230 --> 02:22:57.999
Boardroom: The specialized care unit is no more. Burkdot never got off the ground.

709
02:22:59.170 --> 02:23:03.770
Boardroom: I want to share, at this moment, a few of the findings and functions

710
02:23:03.930 --> 02:23:07.010
Boardroom: that are contained in the Peace and Justice Commission's mandate.

711
02:23:07.640 --> 02:23:08.740
Boardroom: Findings.

712
02:23:09.470 --> 02:23:14.240
Boardroom: H. They're lettered. Our best protection lies in initiating

713
02:23:14.380 --> 02:23:19.939
Boardroom: Devising and promulgating peaceful and just policy alternatives.

714
02:23:21.940 --> 02:23:30.690
Boardroom: Finding Jay, it is the responsibility of one and all to labor hard for peace and justice within forms of appropriate scale.

715
02:23:31.510 --> 02:23:36.959
Boardroom: And two of the functions. Function C. Help develop proposals for the City Council.

716

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02:23:37.200 --> 02:23:45.550
Boardroom: and the school board for actions in furtherance of the goals of peace and justice, and help publicize such actions in the community.

717
02:23:45.840 --> 02:23:47.020
Boardroom: Function F,

718
02:23:47.580 --> 02:23:57.419
Boardroom: Develop ways to resolve conflict which do not involve violence, and which may be applied on a local level, as well as a national level.

719
02:23:57.710 --> 02:24:00.960
Boardroom: This is now the 40th anniversary of the Peace and Justice Commission.

720
02:24:01.260 --> 02:24:17.659
Boardroom: Please reach out to the Peace and Justice Commission for help creating positive solutions. Strengthen the Police Accountability Board, and stop undermining it. Reach out to the Human Welfare and Community Action Commission. We are here to help. Thank you.

721
02:24:18.080 --> 02:24:20.200
Boardroom: Thank you.

722
02:24:30.440 --> 02:24:33.209
Boardroom: Good evening. I have 3 minutes.

723
02:24:34.140 --> 02:24:41.499
Boardroom: Right here. 1, 2… sorry. Oh, just 3 total. Got it. Three total. Yes. Thank you.

724
02:24:41.660 --> 02:24:46.829
Boardroom: Good evening, City Council. My name is Moni Gongobhatai.

725
02:24:47.000 --> 02:24:55.139
Boardroom: I'm a resident in District 1. I'm also a candidate for City Council in the same district.

726
02:24:58.080 --> 02:25:10.149
Boardroom: Before me are the representatives of one of the most knowledgeable, educated cities, not just in the country… in the state or the country, but the world.

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727
02:25:13.160 --> 02:25:23.169
Boardroom: So… It is surprising to me that… a contract with Flock.

728
02:25:23.320 --> 02:25:24.930
Boardroom: would be considered.

729
02:25:25.580 --> 02:25:29.829
Boardroom: Proposed, rather, and then be considered for a vote.

730
02:25:30.320 --> 02:25:33.509
Boardroom: Given all that we know about Flock.

731
02:25:34.750 --> 02:25:45.079
Boardroom: the data is before us, right? All the data that we need. We've heard it from people who came before me and at the other meeting. I also want to address

732
02:25:47.020 --> 02:25:49.649
Boardroom: Two things that I didn't hear addressed.

733
02:25:50.070 --> 02:26:05.039
Boardroom: We know from the city attorney that Flock reactivated the national lookup feature after Ventura County, right here in California, deactivated it to comply with state law. Flock did this without notice or explanation.

734
02:26:05.700 --> 02:26:11.180
Boardroom: So I wonder how we can trust Flock around this future when…

735
02:26:11.280 --> 02:26:17.429
Boardroom: when asked about it earlier today. The other thing we know is that

736
02:26:17.590 --> 02:26:22.109
Boardroom: Cities and towns who have asked to deactivate flock cameras.

737
02:26:23.440 --> 02:26:40.829
Boardroom: were… those cameras were not deactivated, and they had to cover those cameras up. I didn't hear… forgive me if I missed it, but I didn't hear anything… anything to address that. So I'm just wondering how we could go forward with an actor like Flock

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738
02:26:40.890 --> 02:26:49.109
Boardroom: With all these breaches of contracts, with all these civil rights violations and human, constitutional rights violations that we're seeing across the country.

739
02:26:56.210 --> 02:27:08.650
Boardroom: I'm also seeing a lot of people working extremely hard to represent themselves before you, and that's very painful to see, because we elected you to represent us.

740
02:27:15.190 --> 02:27:17.440
Boardroom: And I'm not seeing that right now.

741
02:27:17.610 --> 02:27:22.280
Boardroom: I better move, because I only have 30 seconds.

742
02:27:22.550 --> 02:27:41.910
Boardroom: Since I could not find a single reason… a single good reason to contract with Flock, I came up with another list of reasons to contract with Flock. I'd like to share them with you. Can I have another minute from someone? I'm so sorry. Thank you. I'd like to share my list with you.

743
02:27:41.950 --> 02:27:48.110
Boardroom: If we want to fall behind cities, big and small, we should contract with Flock.

744
02:27:48.500 --> 02:27:59.059
Boardroom: If we want to bring the shame of choosing corporate rhetoric over community safety to our city, into our city, we should contract with Flock.

745
02:27:59.570 --> 02:28:03.710
Boardroom: If we want to be on the wrong side of history in 2026,

746
02:28:03.930 --> 02:28:10.079
Boardroom: At a time we are living under a fascist national regime, we should contract with Flock.

747
02:28:11.170 --> 02:28:18.919

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Boardroom: If we want to support the goals of that fascist national regime and its unraveling of our civil rights, we should contract with Flock.

748
02:28:20.190 --> 02:28:29.799
Boardroom: If we want to dishonor and undermine the struggle for free speech and the struggle to establish Berkeley as a sanctuary city, we should contract with Flock.

749
02:28:31.090 --> 02:28:41.639
Boardroom: If you… City Council, want to turn your backs on the proud immigrants, people of color, queer elders, youth.

750
02:28:41.850 --> 02:28:48.319
Boardroom: and disabled residents, and residents at large, you should contract with Flock. Thanks. Thanks for your time.

751
02:28:48.700 --> 02:28:58.600
Boardroom: You have the power to save the soul of the shiny leaders on the right side of the story again. Your time is up, thank you. Okay, so we're gonna take…

752
02:28:59.040 --> 02:29:17.139
Boardroom: Are you gonna get extra time? Okay, can… can… I think we need to take a break, so I don't want to interrupt your time, so let's just take… yeah, we're gonna take, we are just about at almost 1 hour, so 2 minutes shy, so we're gonna take a 10-minute break that does not count for the public speaking time. Thank you.

753
02:29:24.710 --> 02:29:42.890
Boardroom: Oh, wait, sorry, folks, sorry, one more thing. If you're standing in line, and you're trying to keep your line, we've got cards, and we're gonna give you numbers so that you can remember which order you're in. Thank you.

754
02:29:47.730 --> 02:29:53.200
Boardroom: Yeah. Okay.

755
02:29:53.810 --> 02:30:10.809
Boardroom: Alright, are we starting back up? We are starting back up, folks! Please! Please come back! We lost Nathan. I think Nathan is… was first in line. Yeah, it looked like it was Nathan Meisel, then, Moni Law.

756
02:30:29.750 --> 02:30:32.790

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Boardroom: Caped Crusader… Yeah, I'm like…

757
02:30:38.720 --> 02:30:44.490
Boardroom: Yeah, yeah, water.

758
02:30:49.280 --> 02:30:53.329
Boardroom: Okay, Nathan, come on up!

759
02:31:01.950 --> 02:31:15.930
Boardroom: Okay, everyone be quiet. It's Nathan's turn to speak. Nathan, how many minutes do you have? I think I got 3. No, he already yielded. One here. Two… miss…

760
02:31:16.030 --> 02:31:25.649
Boardroom: Sorry, wait, the third one? Here, oh, Ida, okay, thank you. Okay, who's the third? He raised his hand for somebody else.

761
02:31:25.650 --> 02:31:38.039
Boardroom: No, I got Ida, I got… No, no, you didn't raise your hand for someone else. I haven't seen you yet, so yeah, you're good. And Miss Betty. He was sitting over there before. I know, but I'm writing down who…

762
02:31:38.350 --> 02:31:46.670
Boardroom: Someone else switched it? Okay. Yeah. Okay. Okay. So that's 4 minutes total. Go ahead. Okay.

763
02:31:47.440 --> 02:32:05.609
Boardroom: Alrighty, Madam Mayor and City Council, my name is Nathan Mizell, I am a Renport Commissioner, speaking as an individual. I am the former Vice Chair of the Police Accountability Board. I was the chair of the Reimagining Public Safety Task Force, and I served on the Fair and Imperial Policing Working Group.

764
02:32:06.060 --> 02:32:11.310
Boardroom: The facts are not much different, folks, than they were when I spoke to you about 2 months ago.

765
02:32:11.480 --> 02:32:15.460
Boardroom: All of y'all know the facts.

766
02:32:15.590 --> 02:32:26.330

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Boardroom: They've been told to you by the many public speakers here, they've been told to you in the many memos you've written, they've been told to you in the news reports, they've been told to you by your own city attorney, who I wanna…

767
02:32:26.710 --> 02:32:30.459
Boardroom: Mentioned here, I was quite critical last meeting of the City Attorney's Office.

768
02:32:31.370 --> 02:32:37.999
Boardroom: My bad. You've nailed the analysis on this one, completely. Some of these paragraphs, I would have written myself.

769
02:32:39.680 --> 02:32:45.690
Boardroom: Everyone with the qualities To understand the information.

770
02:32:45.870 --> 02:32:56.170
Boardroom: Whether they're professionals, attorneys, activists, regular people in the public, folks who don't usually come to these meetings right here because this is important to them. Everyone understands.

771
02:32:56.660 --> 02:33:02.939
Boardroom: There is no pace, no place for a flock in our city.

772
02:33:04.540 --> 02:33:07.629
Boardroom: And I know at least 4 of you up there understand that, too.

773
02:33:08.350 --> 02:33:12.760
Boardroom: I'm hoping for 5. And, you know, I saw the op-ed, 4 of your op-ed out.

774
02:33:13.740 --> 02:33:20.009
Boardroom: That's y'all's opinions. I don't think it's very well written, you know, I… I'm sorry. I gotta be honest.

775
02:33:20.230 --> 02:33:28.079
Boardroom: But I'm hoping that for the one council member who we don't quite know yet, what they might do.

776
02:33:28.190 --> 02:33:30.369
Boardroom: That there's some room for convincing.

777

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02:33:30.660 --> 02:33:42.999
Boardroom: Because nothing's gonna change these facts, folks. I've heard so much conversation, of course, around the numbers, and this prevents crime, and the chief tells you it prevents crime, and the guy paid by a flock to tell you it prevents crime is here as well.

778
02:33:44.770 --> 02:33:58.240
Boardroom: If you take the numbers from the op-ed, Lance, I think it was 52 confirmed reports, and again, every crime in the city, obviously serious crimes are serious, right? I've worked on these issues, I've been in courtrooms with folks who've been victims of crime. I take that seriously as well.

779
02:33:59.340 --> 02:34:01.309
Boardroom: If you take all of that.

780
02:34:02.180 --> 02:34:04.540
Boardroom: At face value, no analysis of their data.

781
02:34:05.020 --> 02:34:12.769
Boardroom: It accounts for .52% of reported crime last year. That is the difference we are talking about with Flock.

782
02:34:13.010 --> 02:34:25.179
Boardroom: This is not some miracle technology, it's not making a 20% reduction in crime, 10% reduction, not even a 5% reduction. It's making zero reduction, that's not what it does. The technology finds things after the fact.

783
02:34:25.530 --> 02:34:32.410
Boardroom: 0.52% improvement in clearance rate. 0.52%. A decimal percent improvement.

784
02:34:32.630 --> 02:34:35.300
Boardroom: Is what we're willing to sell out our values for in this city.

785
02:34:45.020 --> 02:34:50.829
Boardroom: I am not resigned to a future where fascist surveillance is the norm.

786
02:34:51.010 --> 02:34:55.840
Boardroom: I am not resigned to a future where our trans and immigrant neighbors

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787
02:34:56.170 --> 02:34:59.879
Boardroom: Are surveilled by a technologies company, and their investors

788
02:35:00.010 --> 02:35:05.350
Boardroom: Who support the orange man upstairs, or maybe downstairs.

789
02:35:07.840 --> 02:35:10.170
Boardroom: I am not resigned to a future.

790
02:35:10.860 --> 02:35:16.689
Boardroom: were a city that once dedicated itself to reimagining public safety. I was there, trust me.

791
02:35:17.480 --> 02:35:26.559
Boardroom: Now decides that the only public safety we can be afforded is a mass surveillance network in the hands of a police chief who constantly violates city law.

792
02:35:26.770 --> 02:35:28.590
Boardroom: Seriously!

793
02:35:30.080 --> 02:35:32.890
Boardroom: I am not resigned to a future.

794
02:35:33.530 --> 02:35:39.109
Boardroom: Where the voices of your constituents Are profoundly ignored.

795
02:35:39.370 --> 02:35:47.830
Boardroom: And are taken for granted, and that our safety is devalued for a technology company that doesn't give a damn about this city, beyond…

796
02:35:48.430 --> 02:35:51.160
Boardroom: Signing a check. Thank you.

797
02:35:56.280 --> 02:36:00.610
Boardroom: Moni… Y'all can make the shades. Nathan, it's Moni's turn. Thank you.

798
02:36:00.790 --> 02:36:03.899
Boardroom: You can make the right decisions. Moni, it's your turn.

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799
02:36:05.550 --> 02:36:10.930
Boardroom: Thank you, Mama Ayanna.

800
02:36:11.360 --> 02:36:16.930
Boardroom: Mayor, Council, staff, and community.

801
02:36:17.060 --> 02:36:28.529
Boardroom: I speak in my personal capacity as a resident of Berkeley, a proud graduate of UC Berkeley , proud mom of Matthew Law. Oh, wait, I have to stop!

802
02:36:28.550 --> 02:36:47.450
Boardroom: The clock. I forgot to get my extra minutes. Oh. I had some people offering. Can you please raise your hands with all those who offered? One, two… Wait, wait, who's the second person? That's one. Oh, I'm sorry, I can't see you, Grace. I couldn't see you around the… Grayson.

803
02:36:47.780 --> 02:36:58.359
Boardroom: Stephanie? Okay, I guess I just have two, and that's a total. Oh, I have another. What's your name, dear? Sorry, could you stand, if I can, so I can see? Yeah, thank you. Okay. I don't know your name. Giselle. Thank you.

804
02:36:58.770 --> 02:37:10.620
Boardroom: So that's a total of 4 minutes, Your Honor? I was gonna say, Your Honor, as a… I'm an attorney in practice, so 25 years is sometimes automatic. You're set. You've used 20 seconds so far, so you've got 3 minutes, 40 seconds left. Go ahead. Thank you.

805
02:37:15.650 --> 02:37:26.129
Boardroom: I have a plea to each of you on the dais to follow the wise words of Maya Angelou. When someone shows you who they are, believe them the first time.

806
02:37:26.130 --> 02:37:47.129
Boardroom: I also speak as a proud employee of the City of Berkeley and a member of SEIU 1021, who was one of many employees who received a letter a couple of weeks ago saying I'm on the chopping block after 15 years with the city, which I love working for, so I may be retired, earlier than expected, but I have bumping rights, but I don't want to

807
02:37:47.130 --> 02:38:02.300

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Boardroom: eliminate a newer employee and have them lose their job so I can keep mine. I ask you, is this worth it, to pay for this, and to lose good city employees? To lose the wellness, the heating warming center that's on the chopping block?

808
02:38:02.300 --> 02:38:22.100
Boardroom: Other things are on the chopping block that are essential cares and needs of the city. I ask you, and I ask you to think of this, finances. Flock's cost is too much in litigation, prior trial lawyer of 25 years, continued to go practice at Washington State. Other cities, 50 other cities, have contracted and ended their contracts

809
02:38:22.100 --> 02:38:27.769
Boardroom: For reasons of irregularity and illegality and exposure to federal

810
02:38:28.000 --> 02:38:39.080
Boardroom: offices of police that should not have had our information, but they did. Why would we subject ourselves with financial losses under litigation as well? As well at not being safe? What's the safety?

811
02:38:39.190 --> 02:38:46.520
Boardroom: I helped start the Berkeley Community Safety Coalition with a number of community members here. The definition of safety

812
02:38:47.170 --> 02:38:49.360
Boardroom: Is that we feel…

813
02:38:49.480 --> 02:39:09.470
Boardroom: No harm. We feel no loss. We feel community connection. We feel no danger. We feel no injury. There are many people who have been harmed by Flock, and we should not be among them. Finally, we have Berkeley values that I plead to you to sustain.

814
02:39:09.790 --> 02:39:18.340
Boardroom: In Berkeley, I was proud to be part of the anti-apartheid movement in South Africa, and Nelson Mandela thanked the people of Berkeley for our work.

815
02:39:18.420 --> 02:39:42.039
Boardroom: He would not be happy with you going with flock. Also, our city, Mayor Gus Northport, bless him, had a loss, a lack of tear gas, police dogs, and helicopters. They did not bring us safety, but community did, because he hired people that were black community members, community

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members for other groups, that were all part of the force of safety. Again, not for harm or danger or injury or loss, but for safety.

816
02:39:42.040 --> 02:39:47.580
Boardroom: Finally, There are words I'd like to share in my last minute.

817
02:39:49.350 --> 02:39:56.149
Boardroom: I lost my sister 6 weeks ago to cancer, and, she was a lawyer as well.

818
02:39:56.350 --> 02:40:04.780
Boardroom: And my parents taught me to stand up for justice. They taught me the words of Micah in the Bible 6-8.

819
02:40:05.040 --> 02:40:06.819
Boardroom: To walk humbly.

820
02:40:07.540 --> 02:40:18.780
Boardroom: To act justly, and to love mercy. That's the city of Berkeley that I am proud of, and hope that you will sustain by your proper vote tonight. Know on flock, please, dear God, please.

821
02:40:22.850 --> 02:40:24.190
Boardroom: Thanks, Moni.

822
02:40:25.100 --> 02:40:36.430
Boardroom: I'm getting another minute. Oh, okay, sorry. I have 34 seconds? Oh, I don't. Oh. Error on the clock? She saw 34 seconds. I don't think you can give your…

823
02:40:36.580 --> 02:40:42.309
Boardroom: You were finished, right, Moni? I guess I'm finished. Yeah, okay, thank you.

824
02:40:45.590 --> 02:40:48.409
Boardroom: Okay, next person, please. Thank you.

825
02:40:49.160 --> 02:40:49.860
Boardroom: Hmm.

826
02:40:54.610 --> 02:41:11.130

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Boardroom: My name is Xoch Sanchez, and I'm a statewide organizing manager with the California Immigrant Policy Center, here in solidarity with the people of Berkeley. I come from Los Angeles County, where for more than 11 months, the federal government has unconstitutionally and illegally raided worksites

827
02:41:11.130 --> 02:41:18.350
Boardroom: School graduations, day labor centers, churches, and community gatherings to target street vendors.

828
02:41:18.610 --> 02:41:30.590
Boardroom: From LA, Long Beach, Ontario, and the Twin Cities of Minnesota, ICE not only separates families, they shoot to kill, and have executed U.S. citizens with impunity.

829
02:41:30.720 --> 02:41:33.639
Boardroom: Do not use Flock to expand surveillance.

830
02:41:34.150 --> 02:41:46.520
Boardroom: As we have seen with the sharing of IRS information to target ITIN holders, and now the data sharing by the California DMV, the federal government will abuse this information and use it to terrorize you.

831
02:41:47.250 --> 02:41:48.779
Boardroom: You directly!

832
02:41:49.000 --> 02:41:55.600
Boardroom: Your neighbors, observers, protesters, people of color, and the working poor.

833
02:41:56.150 --> 02:42:01.699
Boardroom: This city council must not invest in weaponized technology to criminalize the people of Berkeley. Thanks.

834
02:42:05.330 --> 02:42:06.320
Boardroom: Okay.

835
02:42:06.450 --> 02:42:09.630
Boardroom: Folks, I know there's a lot of talking going on, please.

836
02:42:11.780 --> 02:42:20.590
Boardroom: Hi, my name is Micah, I live in District 6, and I am a public school therapist and social worker.

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837
02:42:20.620 --> 02:42:33.729
Boardroom: And when I go to work and I meet with kids and families, it's obvious who I serve. When Flock exploits Filipino workers and meets with billionaire and MAGA stakeholders.

838
02:42:33.800 --> 02:42:40.840
Boardroom: It's obvious who they serve. Y'all are elected public servants, so it should be obvious who y'all serve.

839
02:42:41.480 --> 02:42:42.969
Boardroom: But it's not.

840
02:42:43.410 --> 02:42:51.530
Boardroom: So once again, you have a room full of constituents, beautiful constituents, pleading for y'all to listen.

841
02:42:52.050 --> 02:42:54.090
Boardroom: To our flock disapproval.

842
02:42:54.200 --> 02:43:01.689
Boardroom: I can't believe I have to bite my nails wondering if our sanctuary city of Berkeley is going to listen to us.

843
02:43:01.830 --> 02:43:05.010
Boardroom: Or to listen to MAGA fascist funders.

844
02:43:05.770 --> 02:43:09.640
Boardroom: Who considers extremists and terrorists, too?

845
02:43:10.350 --> 02:43:18.030
Boardroom: Right now, the deal does not make sense financially, morally. Thanks so much. Please let us rest. Thank you.

846
02:43:23.230 --> 02:43:26.530
Boardroom: Michael Lyon,

847
02:43:27.070 --> 02:43:46.020
Boardroom: I was listening to this conversation that's going on about, should this, contract be, accepted? And, all this, stuff is going on about what the compensation should be if something should go wrong.

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848
02:43:46.590 --> 02:43:49.640
Boardroom: I mean, this is insane.

849
02:43:50.120 --> 02:43:57.230
Boardroom: We're talking about somebody's life, somebody's kid being sent out of the country, and for…

850
02:43:57.570 --> 02:44:06.750
Boardroom: for Mr. Flock here, this is just a cost of doing business. Every person who is kidnapped

851
02:44:07.410 --> 02:44:14.209
Boardroom: is, maybe $200,000 out of their profits. It's nothing, it's a drop in the bucket.

852
02:44:16.090 --> 02:44:17.769
Boardroom: Yeah, really, boo.

853
02:44:17.900 --> 02:44:20.880
Boardroom: So… Shit.

854
02:44:21.920 --> 02:44:23.560
Boardroom: You know, someday.

855
02:44:24.690 --> 02:44:29.689
Boardroom: We're gonna be able to overthrow capitalism. Thank you. And get rid of that. Thank you so much.

856
02:44:30.430 --> 02:44:31.770
Boardroom: Thank you.

857
02:44:40.310 --> 02:44:42.830
Boardroom: I have,

858
02:44:43.100 --> 02:44:46.559
Boardroom: One person giving their time. Could I get one more person to give me their time?

859
02:44:47.620 --> 02:44:53.659
Boardroom: If anybody hasn't… Someone in the back is giving you time. Thank you. Okay. Thank you so much. 3 minutes.

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860
02:44:55.310 --> 02:44:59.300
Boardroom: Council members, My name is Derek Rodriguez.

861
02:44:59.460 --> 02:45:05.080
Boardroom: I'm a Berkeley Rent Board candidate, and I'm here speaking separately on behalf of the Cal Berkeley Democrats.

862
02:45:05.650 --> 02:45:09.880
Boardroom: I would first like to recognize the community gathered here today.

863
02:45:11.660 --> 02:45:21.890
Boardroom: And remotely, a community upon which the discussions made today will either strengthen or fracture the ever-precarious public trust in our institutions.

864
02:45:22.390 --> 02:45:26.760
Boardroom: By that, I mean the rapid expansion of a surveillance state.

865
02:45:27.630 --> 02:45:32.449
Boardroom: Being weaponized in ways that threaten the very civil rights generations have fought to protect.

866
02:45:33.510 --> 02:45:37.010
Boardroom: When Benjamin Franklin spoke of liberty over security.

867
02:45:37.110 --> 02:45:42.529
Boardroom: Could he have imagined that our law-abiding residents would be the primary targets of the Patriot Act?

868
02:45:42.880 --> 02:45:46.869
Boardroom: An act that has been in place longer than many of us in this room were alive for.

869
02:45:47.520 --> 02:45:50.840
Boardroom: A weapon that was used to discredit our Islamic community.

870
02:45:51.070 --> 02:45:56.480
Boardroom: And now, we are expected to sacrifice our community once more to flock?

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871
02:45:56.780 --> 02:46:04.900
Boardroom: An organization willing to see our people removed from a society we have poured our blood, sweat, and tears into, all in the name of security and profit?

872
02:46:05.780 --> 02:46:08.229
Boardroom: Where now do the winds blow, council members?

873
02:46:08.810 --> 02:46:15.110
Boardroom: By advocating for Flock, you have shown your distrust for the residents and the faces you see here today.

874
02:46:15.920 --> 02:46:24.459
Boardroom: You are forcing our immigrant community into hiding, but the greatest humiliation of all is the fact that you have forsaken morality for security.

875
02:46:25.130 --> 02:46:28.210
Boardroom: In the eyes of everyone present here today.

876
02:46:28.640 --> 02:46:33.950
Boardroom: I call on you to rescind your supportive flock. If not for the people standing here today.

877
02:46:34.610 --> 02:46:40.789
Boardroom: Then do it for the future generations that may never get to enjoy the freedom many of us take for granted here today.

878
02:46:41.320 --> 02:46:44.240
Boardroom: The question before you is not what keeps us safe today.

879
02:46:44.570 --> 02:46:47.260
Boardroom: But what kind of society will you leave behind tomorrow?

880
02:46:48.000 --> 02:46:53.109
Boardroom: Because I didn't serve my country as an emancipated 17-year-old for surveillance, I did it for them.

881
02:46:54.260 --> 02:47:02.869
Boardroom: The residents of Berkeley here today stand for our immigrants, we stand for our vulnerable, and we stand proud because we stand strongest together.

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882
02:47:03.400 --> 02:47:17.250
Boardroom: We'll be remembered here today for refusing to yield to fear, for refusing to divide our community, and refusing to sacrifice our freedom. The question is whether you will have the backbone to do the same.

883
02:47:30.920 --> 02:47:37.910
Boardroom: My name's Clara, I'm a student and a resident of District 7, and I urge you all to terminate Berkeley's contract with Flock.

884
02:47:37.980 --> 02:47:49.329
Boardroom: We've heard a lot tonight about how Flock doesn't have any direct contracts with ICE or CBP, as if that's supposed to reassure us. As if the fact that you're leading the industry is supposed to impress us.

885
02:47:49.350 --> 02:47:56.730
Boardroom: Even without direct contracts to ICE or CBP, these agencies still have been able to obtain flock camera footage through backdoor methods.

886
02:47:56.730 --> 02:48:15.730
Boardroom: Even if we are to believe the promises that the Flock representative has made tonight, which I do not, and I don't think any of us here do, how can Flock ensure that their data is not accessed by federal agencies without their knowledge or their permission? We've heard a lot about how Flock does not utilize facial recognition technology, as if that is supposed to reassure us.

887
02:48:15.770 --> 02:48:35.850
Boardroom: Even if we believe that this technology can only track people based on their clothing, which I do not, and I don't think any of us do, how are we to be certain that facial recognition technology will not be implemented in the future? That we won't all be back here in a few months or a few years fighting extensions to the contract? The only option is to terminate the contract completely. Thanks so much.

888
02:48:41.500 --> 02:48:54.520
Boardroom: Hi there, I think I have one more minute from the crowd. Thank you. I've heard some technical difficulties are happening on Zoom, so I don't know if someone can take a look at that. People are getting kicked out and having trouble rejoining.

889
02:48:54.760 --> 02:48:58.140

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Boardroom: So I guess I'll go ahead and start. Thank you, go ahead.

890
02:48:59.640 --> 02:49:12.419
Boardroom: Good evening, Council. My name is Jason Martins, and at 3.30 today, I had to take my daughter to the ER, but, thankfully they're fine, but I'm here anyway, because that's how important this issue is.

891
02:49:14.040 --> 02:49:29.210
Boardroom: I've been canvassing for months now in Berkeley. I think I've easily talked to 400 Berkeley citizens about this issue. And what is clear from my experience, and I think corroborated in this room, is that this issue is massively unpopular.

892
02:49:30.510 --> 02:49:39.890
Boardroom: Many people I talk to first express surprise that we are doing this in Berkeley. Then they are… express shock that a majority of the Council is supporting it.

893
02:49:40.200 --> 02:49:48.730
Boardroom: To my fellow residents, I hope we are all learning that our city is not the liberal bastion that I think maybe we all dreamed it was.

894
02:49:49.030 --> 02:49:55.610
Boardroom: To the Council, I would like to know why you are supporting a proposal with overwhelming opposition.

895
02:49:55.760 --> 02:49:57.160
Boardroom: What's in it for you?

896
02:49:57.940 --> 02:50:04.249
Boardroom: I would like to… I'd also like to know what motivates you to go against what is clearly the desire of your constituents.

897
02:50:04.570 --> 02:50:10.240
Boardroom: So I'm here for a third time, to ask you to vote no.

898
02:50:10.380 --> 02:50:17.460
Boardroom: And if you vote yes, I want you to know that we will be hounding you until the contract is canceled. Thank you.

899
02:50:18.450 --> 02:50:19.930
Boardroom: Thank you.

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900
02:50:24.280 --> 02:50:26.870
Boardroom: Hello, I have 2 extra minutes.

901
02:50:29.350 --> 02:50:32.440
Boardroom: Sorry, I saw one here, where was the… oh!

902
02:50:32.700 --> 02:50:38.280
Boardroom: I can't. Okay. Oh, thank you. Okay, great.

903
02:50:42.130 --> 02:50:51.919
Boardroom: My name is Joseph Allman. I live here in Berkeley, and I'm an animal cruelty investigator with the animal rights network, Nonviolent, called Direct Action Everywhere.

904
02:50:52.240 --> 02:50:57.490
Boardroom: I'm here tonight because I'm one of the people Flock has already been used against.

905
02:50:57.670 --> 02:50:59.979
Boardroom: Twice. By law enforcement.

906
02:51:01.500 --> 02:51:04.149
Boardroom: And this is in direct connection with my activism.

907
02:51:04.620 --> 02:51:07.289
Boardroom: According to the Electronic Frontier Foundation.

908
02:51:07.440 --> 02:51:13.980
Boardroom: Released records documented two separate instances of law enforcement querying the flock network to surveil me.

909
02:51:14.310 --> 02:51:17.880
Boardroom: Both tied to my work exposing animal cruelty.

910
02:51:18.090 --> 02:51:23.100
Boardroom: Not for a violent crime. Not for a public safety threat. For activism.

911
02:51:24.230 --> 02:51:36.569

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Boardroom: I currently face two years… correction, two felony charges in six and a half years in prison for rescuing sick, emaciated baby goats from a Meinburg supplier.

912
02:51:36.880 --> 02:51:42.020
Boardroom: a supplier to Whole Foods, and they use the, quote, certified humane label.

913
02:51:42.420 --> 02:51:46.229
Boardroom: The goats that I'm charged with felonies for rescuing were dying.

914
02:51:46.860 --> 02:51:54.549
Boardroom: Necropsies confirmed coccidiosis, severe respiratory infection, and starvation at this facility here in California.

915
02:51:55.210 --> 02:52:00.310
Boardroom: Other goats from that same facility were being dumped by the dozens in a mass grave.

916
02:52:01.370 --> 02:52:04.489
Boardroom: This is what investigators like me try to expose.

917
02:52:04.800 --> 02:52:08.499
Boardroom: And that is the kind of work that Flock is being used to track.

918
02:52:10.440 --> 02:52:29.860
Boardroom: The EFF's investigation this past year documented that my own organization, Direct Action Everywhere, has been targeted across Flock Network, including 9 queries by the Delaware State Police in a single month last year. I was charged in Delaware in connection with that last year, and I was expunged from those charges in Delaware last year.

919
02:52:30.140 --> 02:52:43.419
Boardroom: The same investigation by the EFF found agencies running flock searches tied to No Kings protests, to abortion seekers, and using racial slurs against Romani people. This is the system Berkeley is being asked to renew.

920
02:52:44.240 --> 02:52:53.199
Boardroom: This op-ed… the op-ed from four council members, says Flock is just another piece of an existing surveillance landscape, so refusing it changes little.

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921
02:52:54.060 --> 02:53:00.650
Boardroom: With respect, that is the same exact argument that's been used for the past 20 years for surveillance systems.

922
02:53:02.000 --> 02:53:09.549
Boardroom: You're being asked tonight to renew a contract that has already been used to surveil a Berkeley resident for exposing corporate cruelty.

923
02:53:09.720 --> 02:53:11.209
Boardroom: I am that resident.

924
02:53:11.360 --> 02:53:14.370
Boardroom: I'm asking you directly, reject flock.

925
02:53:17.700 --> 02:53:19.819
Boardroom: Thank you. Thank you.

926
02:53:21.420 --> 02:53:22.680
Boardroom: Mama Ayanna.

927
02:53:26.040 --> 02:53:28.269
Boardroom: Anybody have a minute they can give me?

928
02:53:29.590 --> 02:53:37.569
Boardroom: Thank you. Do… are you taking both? Yeah. Okay, one here… I'll pick it up if I don't use it. And then this person in the back. Okay, thank you.

929
02:53:38.180 --> 02:53:48.939
Boardroom: Greetings, Council. My name is Ayanna Davis. I am currently the Vice President of the newly formed nonprofit Equity for Black Berkeley.

930
02:53:48.970 --> 02:54:07.699
Boardroom: Former Deputy Executive Director for Healthy Black Families. While at Healthy Black Families, with the Mayor Edge Chief of staff, Jack McCormick, and Chris Shield, we formed and created the Black Equity for Black Berkeley Initiative. And…

931
02:54:08.650 --> 02:54:20.670

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Boardroom: as part of that initiative, over 2 years, we did 12 people's assemblies all over the city. We had 16 weeks of advocacy training.

932
02:54:20.930 --> 02:54:26.100
Boardroom: We did 3 community stakeholders convenings.

933
02:54:26.280 --> 02:54:30.140
Boardroom: We… we had… Three focus groups.

934
02:54:30.700 --> 02:54:31.969
Boardroom: And over the…

935
02:54:32.410 --> 02:54:38.599
Boardroom: Over 10 years, I worked with healthy black families. I came in contact with thousands of Berkeley residents.

936
02:54:39.100 --> 02:54:44.719
Boardroom: I am a mother who lost their son to violence. They knew who killed my son.

937
02:54:45.450 --> 02:54:49.130
Boardroom: Even when they closed his cold case, they told me they knew.

938
02:54:50.230 --> 02:54:57.980
Boardroom: Alex Goodwin, my co-worker, Kamika Patterson Smith, her son was killed.

939
02:54:58.190 --> 02:55:05.409
Boardroom: The whole community knew who killed her son. None of the murderers of our sons have been prosecuted.

940
02:55:05.580 --> 02:55:09.490
Boardroom: All right, y'all, you know, but…

941
02:55:09.730 --> 02:55:13.999
Boardroom: My point being, in the course of my experience.

942
02:55:14.710 --> 02:55:27.000
Boardroom: And in the course of our People's Assembly, and the data that we have, that we shared with the city, at no point was mass surveillance a priority for the people.

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943
02:55:28.330 --> 02:55:32.830
Boardroom: At no point do we believe mass surveillance has

944
02:55:32.970 --> 02:55:39.239
Boardroom: lowered crime in Berkeley. It is our work that has lowered crime.

945
02:55:39.350 --> 02:55:55.409
Boardroom: Now we're coming together with our neighbors and our community that has lowered crime. It is education. It is outreach. It is shared love and understanding that does it. It is the work of the people.

946
02:55:55.640 --> 02:56:14.570
Boardroom: that creates community and a place where our children can live and grow and thrive. Now, I've lived in the same house on the same street for the past 45 years. My family has been here since the late 1880s, built historical homes that are still standing.

947
02:56:15.240 --> 02:56:23.399
Boardroom: I'm a Berkeley person, and I will tell you I have seen… What has created crime?

948
02:56:23.800 --> 02:56:43.509
Boardroom: And it is poverty. It is the redlining. It is the displacement. It is the unhoused community. If we're spending money on anything, it should be for affordable… not just affordable housing people can live… afford to live in.

949
02:56:47.660 --> 02:56:54.969
Boardroom: Y'all need to put your phones down, I just want to say that. Pay attention to the people. We don't have much time for our voice.

950
02:56:55.110 --> 02:56:57.989
Boardroom: Listen, please, respectfully.

951
02:56:59.420 --> 02:57:01.630
Boardroom: So, I say this to you.

952
02:57:02.860 --> 02:57:18.220
Boardroom: coming together and creating a workforce development coalition and a collaborative as we build the Adeline Corridor. We know you plan on turning San Pablo Avenue into… what is it? What's… what did I hear? Little Manhattan?

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953
02:57:18.560 --> 02:57:20.339
Boardroom: Who's gonna do that work?

954
02:57:20.510 --> 02:57:31.080
Boardroom: We have to get people trained and ready. You need to be a council with vision, and create a community that has employment for the people.

955
02:57:31.140 --> 02:57:43.710
Boardroom: Good jobs. Invest in that. Invest in workforce development. Invest into the Black Arts and Cultural District, into a hub for our youth so they can sell their art. Thank you. Thanks, Mama. I love y'all.

956
02:57:44.140 --> 02:57:45.099
Boardroom: Thank you.

957
02:57:45.420 --> 02:57:52.379
Boardroom: Raise your hand, against flock. Mamayana, thank you.

958
02:57:56.270 --> 02:58:07.019
Boardroom: He's got a minute for Batman. I believe a few people gave me time. Oh, wait, sorry, okay, you have a minute for him. Okay, so, 2 minutes?

959
02:58:08.560 --> 02:58:20.270
Boardroom: Oh, wait, hold on, I can't see that person who's sitting there. Okay, thank you. Okay, go ahead.

960
02:58:21.540 --> 02:58:24.899
Boardroom: I think that's 4, right? Yeah, you have 4 total.

961
02:58:34.290 --> 02:58:37.359
Boardroom: I would expect better from the city.

962
02:58:37.530 --> 02:58:44.860
Boardroom: that has these flags behind them. I would expect better from a city That is this diverse.

963
02:58:45.130 --> 02:58:47.600
Boardroom: That is this? Noted.

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964
02:58:47.710 --> 02:58:49.700
Boardroom: For their civil rights work.

965
02:58:51.270 --> 02:59:03.290
Boardroom: Flock is a known collaborator with the Trump administration. They are a known collaborator with DHS. In fact, DHS…

966
02:59:03.680 --> 02:59:05.910
Boardroom: Has a law in place.

967
02:59:06.140 --> 02:59:13.330
Boardroom: that bars Flock from actually Having them show up in any sort of audit.

968
02:59:13.470 --> 02:59:15.149
Boardroom: People have mentioned it before.

969
02:59:15.360 --> 02:59:22.979
Boardroom: And, can you remind me, what was that county, or what was that city, that actively violates that rule?

970
02:59:23.180 --> 02:59:28.069
Boardroom: A couple! I can't even figure out which, because it's that notable.

971
02:59:28.650 --> 02:59:32.779
Boardroom: None of these counties, none of these cities are paying attention.

972
02:59:33.140 --> 02:59:35.610
Boardroom: They're gonna go fly flagrantly!

973
02:59:36.160 --> 02:59:38.100
Boardroom: In the face of federal law.

974
02:59:38.390 --> 02:59:49.549
Boardroom: And the same thing is gonna happen with that guy's boss. That man's boss does not care about you. That man's boss does not care that two people were murdered

975
02:59:49.710 --> 02:59:51.050

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Boardroom: In Minneapolis.

976
02:59:51.360 --> 02:59:55.200
Boardroom: That a teacher was stalked and shot!

977
02:59:55.340 --> 02:59:59.060
Boardroom: Five times, seven holes, like the cops said.

978
03:00:00.040 --> 03:00:05.430
Boardroom: We do not need this needless violence brought into the Bay Area.

979
03:00:05.550 --> 03:00:07.050
Boardroom: I'm from San Jose!

980
03:00:07.440 --> 03:00:11.000
Boardroom: We failed to stop our flock contract because Mayor Matt Mahan

981
03:00:11.270 --> 03:00:13.029
Boardroom: It's bought and paid for by them.

982
03:00:14.620 --> 03:00:16.840
Boardroom: Don't make the same mistake as that man!

983
03:00:17.870 --> 03:00:22.550
Boardroom: You have the chance, right now, To make a better world.

984
03:00:23.250 --> 03:00:25.639
Boardroom: For your community, to be an example!

985
03:00:26.100 --> 03:00:29.899
Boardroom: to the rest of the world. Berkeley has always been an example

986
03:00:30.150 --> 03:00:32.829
Boardroom: From a civil rights perspective, in my opinion.

987
03:00:34.010 --> 03:00:46.000
Boardroom: Hey, put down your phone, buddy. I'm not done talking. This… this is the moment where you decide whether or not you are complicit

988

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03:00:46.440 --> 03:00:51.180
Boardroom: In the hunt of vulnerable people.

989
03:00:51.750 --> 03:00:56.649
Boardroom: This is the moment where you decide whether or not You wish.

990
03:00:57.230 --> 03:01:01.879
Boardroom: to allow… Trans folks to be hunted.

991
03:01:02.250 --> 03:01:10.490
Boardroom: Whether you allow day laborers to be stalked, Whether you allow Mothers to be killed!

992
03:01:12.070 --> 03:01:16.319
Boardroom: I hope to pray to God that you make the right decision here today.

993
03:01:16.880 --> 03:01:23.550
Boardroom: Because your decision has an impact on the rest of the Bay Area. Your decision is not

994
03:01:24.180 --> 03:01:25.529
Boardroom: In a bubble here.

995
03:01:26.570 --> 03:01:28.930
Boardroom: All of these individuals have been…

996
03:01:29.200 --> 03:01:38.809
Boardroom: Pleading you and begging you to make the right decision, the clear decision, which is, don't even bother with a contract with Flock.

997
03:01:39.680 --> 03:01:42.540
Boardroom: Send that man packing with nothing.

998
03:01:43.350 --> 03:01:46.269
Boardroom: Because he deserves nothing!

999
03:01:46.490 --> 03:01:47.440
Boardroom: From you!

1000
03:01:48.030 --> 03:01:51.750

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Boardroom: He deserves nothing from Berkeley!

1001
03:01:52.190 --> 03:01:58.590
Boardroom: Because they will take, and take, and take, until… Nothing is left.

1002
03:01:58.730 --> 03:02:05.689
Boardroom: You will not see a dime of that money if something goes wrong, because they will fight it in litigation.

1003
03:02:06.220 --> 03:02:08.339
Boardroom: You will not see a dime!

1004
03:02:08.550 --> 03:02:13.769
Boardroom: of sympathy from the federal government when it happens, and it will happen.

1005
03:02:15.400 --> 03:02:21.939
Boardroom: Do not be a coward and a traitor to your people, who are looking to you to be their voice.

1006
03:02:24.330 --> 03:02:27.730
Boardroom: You have the chance to make the right choice here!

1007
03:02:28.090 --> 03:02:30.869
Boardroom: And in case it wasn't clear, you keep that.

1008
03:02:31.410 --> 03:02:32.939
Boardroom: At the White House!

1009
03:02:34.460 --> 03:02:35.590
Boardroom: Okay.

1010
03:02:44.950 --> 03:02:59.660
Boardroom: Go ahead. Hi again. I'm David Allen, a Berkeley resident. This massive surveillance expansion is far past the point where quantitative becomes qualitative. The hardware may already be used in Berkeley, but it builds a network

1011
03:02:59.660 --> 03:03:05.930
Boardroom: That has the ability to track a person from their work, to their appointments, to their family and their home.

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1012
03:03:06.730 --> 03:03:21.840
Boardroom: That's facilitated by their patent-pending individual recognition, their attempt to digitally fingerprint each of us without using the words facial recognition. There are many factors that the individual recognition machine learning uses that Chandler left out.

1013
03:03:22.980 --> 03:03:30.970
Boardroom: It uses race, it uses body characteristics, it uses walking gait. I have that patent in my hand.

1014
03:03:31.860 --> 03:03:34.280
Boardroom: It is software, not hardware.

1015
03:03:34.730 --> 03:03:48.029
Boardroom: And tonight, the Berkeley PD said that they would use that capability if it was available. Flock pushes every boundary. It took 404 Media doing an expose for Flock to back off

1016
03:03:48.210 --> 03:03:50.610
Boardroom: Thank you.

1017
03:03:52.760 --> 03:04:09.830
Boardroom: I had, an additional minute from Skip, is supposed to be in the room, with a blue sweatshirt. Skip? Okay. Okay, thank you. Thank you. Okay, Flock's saying that they will not data share with ICE or Border Patrol is a red herring, because under this current…

1018
03:04:09.860 --> 03:04:20.640
Boardroom: at federal administration, everything is upside down. No federal agency at this point can be trusted to not engage in an abuse of power.

1019
03:04:21.700 --> 03:04:23.429
Boardroom: Office of Civil Rights.

1020
03:04:23.700 --> 03:04:35.020
Boardroom: Created to protect civil rights of persons, are now entrusted with actually investigating transgender Treatment?

1021
03:04:35.290 --> 03:04:55.200
Boardroom: and immigration. That's what they're doing at the Office of Civil Rights. Employees are being placed on leave if they have advancing

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claims that they already had open, including for women that are in the country under the Violence Against Women's Act, because they're immigrants.

1022
03:04:55.550 --> 03:05:01.760
Boardroom: A $295,000, or a $29… yeah, $95,000 fine.

1023
03:05:02.120 --> 03:05:09.959
Boardroom: It may sound overwhelming to us in the room, but it's nothing to a billionaire investor. It's a drop in the bucket.

1024
03:05:10.190 --> 03:05:15.029
Boardroom: Follow the investors, you follow the genuine interests.

1025
03:05:15.190 --> 03:05:20.519
Boardroom: So you heard recently a report from the city auditor

1026
03:05:20.520 --> 03:05:37.400
Boardroom: non-competing, competitive contracts. And there seemed to be a commitment that going forward, all contracts were going to be competitive. So what's the difference here? Why is there no non-competitive con… why is there not competition here? Why is everything directed towards Flock?

1027
03:05:37.620 --> 03:05:40.730
Boardroom: At their word. And,

1028
03:05:42.490 --> 03:05:46.690
Boardroom: It's the same as declaring that we're a sanctuary city.

1029
03:05:46.840 --> 03:05:51.840
Boardroom: And then engaging with Flock, who has violated the rights.

1030
03:05:53.570 --> 03:05:56.170
Boardroom: We can't be both. It's inconsistent.

1031
03:05:56.700 --> 03:05:58.630
Boardroom: Thank you. Thanks, Carol.

1032
03:06:03.090 --> 03:06:12.980

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Boardroom: Hi, I just had something I wanted to point out, which is that earlier this meeting, I heard Jen Lewis refer to a term we weren't sure about when referencing the Flock database.

1033
03:06:12.980 --> 03:06:29.049
Boardroom: And I assume that Jen Lewis is referring to the time when Berkeley's flock data was searched with the terms ICE and CBP, because that did happen. If this is what she's talking about, I think that that's an appalling way to downplay the severity of those search terms.

1034
03:06:29.440 --> 03:06:40.319
Boardroom: DBD can say that they've prevented this kind of search from happening again by turning off the statewide lookup feature on the database so that other agencies can't access the data, but last meeting, Jen Lewis said herself.

1035
03:06:40.320 --> 03:06:56.219
Boardroom: that SFPD and OPD and other counties and police departments would also have access to this data. Any police officer from any of those counties could access and share Berkeley data. You can say that you own the data, but you have not addressed that the other police departments have access to it and you don't control them.

1036
03:06:56.220 --> 03:07:07.080
Boardroom: SWOX database already searched with the terms ICE and CBP. I don't know why we're speaking about federal access as a hypothetical. It's not a hypothetical. It's already happened. Thank you.

1037
03:07:12.470 --> 03:07:34.060
Boardroom: No one block rejects the contract. I want to speak to a spineless and absurd op-ed that we saw come out this week that was full of disingenuous arguments and outright lies. There are some lines you should still be afraid to cross, and this is one. Being a foot soldier of fascism

1038
03:07:34.060 --> 03:07:35.330
Boardroom: is one.

1039
03:07:35.330 --> 03:07:48.230
Boardroom: And if you don't care about us, which we are seeing from this op-ed is your case, you should care about the litigation that is coming your way, because it is coming, and it is going to be brutal.

1040
03:07:48.230 --> 03:08:02.560

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Boardroom: When legislators fail us, it is up to litigation to represent us, and that fact is so sad, and it is absurd and appalling that you could even think of bringing us to that case.

1041
03:08:03.290 --> 03:08:10.399
Boardroom: Reject the contract. No one flock. Listen to everybody here tonight. Listen to them. Listen to them!

1042
03:08:12.690 --> 03:08:13.910
Boardroom: Thank you.

1043
03:08:20.360 --> 03:08:32.310
Boardroom: My name is Sophia, I'm a resident of District 3. The job of any place that calls itself a sanctuary city is to gum up the gears of fascism and authoritarianism however we can!

1044
03:08:32.310 --> 03:08:46.189
Boardroom: Why in the world would you choose instead to serve up weapons on a silver platter that will be used and have already been used against not only the most vulnerable and over-policed among us, but also against anyone who dares speak out against the government?

1045
03:08:46.370 --> 03:08:57.289
Boardroom: The only way Berkeley can prevent sharing data with ICE or with the feds is to not generate and not hold that data in the first place. And certainly not to store it with Flock.

1046
03:08:58.220 --> 03:09:00.939
Boardroom: Stand with your people, reject flock.

1047
03:09:01.050 --> 03:09:03.939
Boardroom: And don't do the fascist's job for them.

1048
03:09:04.060 --> 03:09:06.000
Boardroom: Thank you.

1049
03:09:09.380 --> 03:09:10.600
Boardroom: 2 minutes.

1050
03:09:11.970 --> 03:09:22.309
Boardroom: Oh, sorry, hold on. I need two people to raise their hand. Okay, one… and then, this person in the back corner, can you stand so I can just… oh, thank you, great.

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1051
03:09:25.510 --> 03:09:26.320
Boardroom: Go?

1052
03:09:26.800 --> 03:09:38.420
Boardroom: It looks as if the headlines tomorrow may sadly read, Berkeley City Council threw away $2 million in spite of a $30 million budget deficit. Crime is down.

1053
03:09:38.980 --> 03:09:46.960
Boardroom: The police chief understandably wants the latest bells and whistles, but the Berkeley City Council is supposed to be the adult in the room.

1054
03:09:47.150 --> 03:09:56.160
Boardroom: Other methods of fighting crime are better proven, less expensive, keep the money in our community, and help locals.

1055
03:09:56.600 --> 03:10:00.429
Boardroom: The police, again, don't need every new bell and whistle.

1056
03:10:00.590 --> 03:10:11.029
Boardroom: These cameras put the city at risk of liability, up to $60 million, according to the city attorney. Federal legislation could force us to take the cameras down.

1057
03:10:11.270 --> 03:10:14.300
Boardroom: Because of the deficit, we might lose a fire station.

1058
03:10:14.690 --> 03:10:21.950
Boardroom: Crisis mental health services might be on the block. Your constituents want fire stations, not cameras.

1059
03:10:22.700 --> 03:10:33.359
Boardroom: We don't need to throw away $2 million and risk multi-million dollar lawsuits for new bells and whistles when crime is down. Don't waste our money.

1060
03:10:34.710 --> 03:10:48.610
Boardroom: As the former chair of the Berkeley Police Accountability Board stated, council members O'Keefe, Humbert, Kesarwani, and Taplin, in their published op-ed piece, seem to have knowingly misrepresented some things.

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1061
03:10:49.000 --> 03:10:58.630
Boardroom: They didn't mention that the Police Accountability Board strongly advised against this contract. They didn't mention that the liability risk that they're aware of.

1062
03:10:58.730 --> 03:11:14.800
Boardroom: They do acknowledge that Flock has altered data sharing without permission, but imply that there's something we can do to manage that risk, which isn't the case. They make false comparisons with our tracking devices on our phones, which we can control.

1063
03:11:15.120 --> 03:11:33.270
Boardroom: They imply that crimes were solved which, would not have been solved without flock, even though there's no way to prove that, and it conflicts with University of California Law Center analysis. They don't mention that crime is markedly down already. They don't mention the budget deficit that this purchase would exacerbate.

1064
03:11:33.650 --> 03:11:40.410
Boardroom: Brent Blackaby, in his recent email to constituents, makes similar misrepresentations and omissions.

1065
03:11:40.780 --> 03:11:48.120
Boardroom: Public officials who mislead their constituents should consider whether this position of trust is really the right place.

1066
03:11:48.940 --> 03:12:08.210
Boardroom: The Police Accountability Board says that the contract process broke city procedural rules. That should be enough to vote no. The Police Accountability Board advises in general against a flock contract. That should be enough to vote no. The City Attorney tells us that the contract puts us at risk of a $60 million lawsuit.

1067
03:12:08.210 --> 03:12:22.449
Boardroom: liability, that should be enough to vote no. The city council members who plan to vote yes admit this company has already shared data without permission. That should be enough to vote no. The majority of citizens who have given feedback do not want this contract.

1068
03:12:22.480 --> 03:12:30.710
Boardroom: That should be enough to vote no. There is a budget deficit, and other things are more important. Thank you. That should be enough to vote no. Thank you so much.

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1069
03:12:39.690 --> 03:12:42.039
Boardroom: These are not license plate readers?

1070
03:12:42.210 --> 03:12:51.359
Boardroom: One of them? Sure. That's a license plate reader. A network of them that surrounds us and tracks our every movement, puts it in a database, can be queried.

1071
03:12:52.200 --> 03:12:56.829
Boardroom: That's a pattern of life logger detector. It's just wrong.

1072
03:12:57.470 --> 03:13:08.819
Boardroom: And then, okay, if it's just the city of Berkeley doing this, just for, you know, solving 50 more crimes in a year, okay. I'm still pissed off about it, but it's way worse than that.

1073
03:13:08.960 --> 03:13:13.160
Boardroom: I want you to ask Mr. Flock over there, again, pointedly.

1074
03:13:13.680 --> 03:13:19.309
Boardroom: If the federal government asks for Berkeley citizens' data with a gag order.

1075
03:13:20.050 --> 03:13:21.260
Boardroom: Will you give it to them?

1076
03:13:21.790 --> 03:13:32.300
Boardroom: Will we know? Because the answer is yes, they will give it to them. No, we will never know. That means we are just serving ourselves up on a silver platter to fascism.

1077
03:13:32.640 --> 03:13:38.779
Boardroom: Don't do this. History will not look kindly on this moment. Anyone who votes yes will be shamed.

1078
03:13:38.940 --> 03:13:42.000
Boardroom: Please do not vote yes. Thank you.

1079
03:13:49.370 --> 03:14:13.740
Boardroom: Hello, my name is Jacob, I'm on the Disaster and Fire Safety Commission, but I'm just here as an individual today. In addition to what everyone else said, which I 100% agree with, one of the things that I

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wanted to talk about is the risk of data leaking to a third party. I think all of us have credit card numbers or phone numbers that are kind of out there on the internet, and we can never take them back. But imagine if that's where you're most likely to be at 5

1080
03:14:13.740 --> 03:14:26.919
Boardroom: 30 on any given day, or where your kids go to school. Once this information is made, it can't be unmade, and there's no amount of monetary compensation that can take that back.

1081
03:14:27.220 --> 03:14:29.529
Boardroom: And so this is something that…

1082
03:14:29.720 --> 03:14:34.429
Boardroom: we… once we take this step, it's crossing a Rubicon. We can't take it back.

1083
03:14:34.770 --> 03:14:52.689
Boardroom: And we will always be at risk, no matter what safeguards we impart, no matter what we do, we will always be at risk of this type of incredibly sensitive data, my data, where I physically am, at any given point, being open to the highest bidder. Thank you very much. Thank you.

1084
03:14:58.060 --> 03:15:07.020
Boardroom: Hi, I'm a South Berkeley District 3 resident and community organizer. The only thing that makes me feel safe in the city is my neighbors.

1085
03:15:07.020 --> 03:15:25.600
Boardroom: Other organizers who are working for affordable housing, who are working for better education, who are working for safer, transit for everybody, food security, these people in this room, who I've seen show up over and over to implore you guys to not contract with Flock for all of the many, many, many reasons listed.

1086
03:15:25.600 --> 03:15:33.799
Boardroom: I've also been a victim of a violent crime in the East Bay, and I have never once felt like surveillance technology would keep me safe.

1087
03:15:33.830 --> 03:15:46.570
Boardroom: What's kept me safe are the other people in my community on the streets, looking out for each other. Police don't keep us safe, and surveillance certainly doesn't keep us safe. So thank you to everyone else speaking out, because we keep each other safe.

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1088
03:15:47.040 --> 03:15:48.559
Boardroom: Thank you.

1089
03:15:52.860 --> 03:15:54.449
Boardroom: Could I have an extra minute, please?

1090
03:15:55.320 --> 03:15:56.239
Boardroom: Thank you.

1091
03:15:56.960 --> 03:16:00.710
Boardroom: Sorry, can I… I can't quite see who that person is. Oh, thank you, go ahead.

1092
03:16:02.480 --> 03:16:12.940
Boardroom: Hello, my name is Allison, I live in District 4, and I wanted to highlight one of the ways that Flock data and technology has already been misused, is currently being misused.

1093
03:16:13.060 --> 03:16:15.289
Boardroom: And that's in the,

1094
03:16:15.610 --> 03:16:28.099
Boardroom: the use of police, some of which are in our San Francisco Police Department, using license plates, flock license plate readers to stalk and surveil romantic partners, their romantic partners.

1095
03:16:28.360 --> 03:16:42.340
Boardroom: And if you know anything, if anyone knows anything about power and control, surveillance on an interpersonal level, on a systemic level, surveillance is a classic tactic of power and control, and power control is what constitutes abuse.

1096
03:16:42.510 --> 03:16:55.389
Boardroom: And so on both an interpersonal and structural level, expanding state and police department overreach to surveil us is enabling abuse on a systemic level.

1097
03:16:55.970 --> 03:17:13.950
Boardroom: I have worked in the domestic violence field, I have lived in… I've experienced domestic violence, my family's experienced domestic violence. Surveillance by way of cameras and tracking, has always been a factor of controlling people and not causing safety. I do not feel safe

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1098
03:17:14.370 --> 03:17:24.970
Boardroom: At the thought of police departments, documented 48% of officers are documented to have domestic violence crimes?

1099
03:17:25.290 --> 03:17:29.390
Boardroom: And that's what's documented, so that's a definite under-representation.

1100
03:17:29.680 --> 03:17:33.710
Boardroom: I don't feel safe putting more tools in their hands.

1101
03:17:34.320 --> 03:17:53.249
Boardroom: That's not my vision of safety. Meanwhile, domestic violence and IPV services in the Bay Area specifically are so drastically underfunded, are currently at risk of being struck away further, and so please, I urge you to stop doing the work of the abuser, the state as the abuser.

1102
03:17:54.020 --> 03:18:05.659
Boardroom: and actually invest in services that keep people safe and don't traumatize survivors further. The idea of being surveilled is traumatic for survivors. Thank you. Thank you.

1103
03:18:11.630 --> 03:18:34.359
Boardroom: I'm in D3, Mr. Flock could tell you that. His cameras are outside my house. There's a false equivalence being asserted that surveillance of safety, which is being strategically deployed, tied the fact that the opposite is true. Surveillance is not public safety. There is no actual demonstrated need for any of this technology. And even if there was, the Berkeley Criminal Law and Justice Center's independent policy review showed this technology doesn't actually help solve crimes or even work.

1104
03:18:34.360 --> 03:18:40.490
Boardroom: It does create steep data privacy risks for the city. People will die in ICE custody as a result of getting flocked.

1105
03:18:40.490 --> 03:18:52.340
Boardroom: or getting shot in the street by fascist federal agents with the help of this technology. And it doesn't matter what vendor you use for your mass surveillance dragnet. Once that data is collected, no matter what encryption you use, no matter who owns the data, not you.

1106

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03:18:52.870 --> 03:19:05.550
Boardroom: It exists and can be acquired with a warrant. The only truly safe choice is not collecting it. This is not a safety company. It's a data broker who answers to the highest bidder, and you're selling us out and making us pay for it.

1107
03:19:07.050 --> 03:19:08.290
Boardroom: Thank you.

1108
03:19:11.710 --> 03:19:14.210
Boardroom: Can I get a lion or two? Anybody?

1109
03:19:14.500 --> 03:19:17.329
Boardroom: Okay. Hold on a second.

1110
03:19:17.960 --> 03:19:24.199
Boardroom: You're gonna take those, too? Okay. Yeah, yeah, I'll take a couple minutes. So…

1111
03:19:24.290 --> 03:19:38.119
Boardroom: I'm here, I was just speaking in El Cerrito a couple nights ago, where we were very successful vanquishing the situation from our city, and I was one of the core organizers there. I spent a lot of time, a lot of people spent quite a long time.

1112
03:19:38.350 --> 03:19:51.849
Boardroom: organizing that. And now, several of the members of that organizing group are considering running for city council because of, well, frankly, how they were treated by Mayor Gabe Quinto, who's up for re-election.

1113
03:19:51.960 --> 03:19:53.630
Boardroom: In quite a short time.

1114
03:19:54.080 --> 03:20:12.490
Boardroom: I believe in August. Running uncontested as well, I might add. So, you know, there's a lot of people in this room tonight who are very motivated, and there's a lot of people up here on this city council who might be coming up for election. And so I would encourage everybody here, if you're serious about this, you can just get the votes next time it comes up.

1115
03:20:12.710 --> 03:20:15.420
Boardroom: And everybody on this council maybe could consider that.

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1116
03:20:16.460 --> 03:20:19.809
Boardroom: Furthermore, okay, I also want to cover a little bit of technical stuff.

1117
03:20:20.090 --> 03:20:31.239
Boardroom: So I run a small consulting company specializing in cloud infrastructure, networking, and security. I work for a lot of AI startups in San Francisco.

1118
03:20:31.440 --> 03:20:39.019
Boardroom: One of my primary objectives with these companies is to help them comply with regulations around data and how it's managed.

1119
03:20:39.500 --> 03:20:42.169
Boardroom: So, network segmentation.

1120
03:20:42.340 --> 03:20:54.640
Boardroom: concepts like data sovereignty. This is basically the notion of where the data lives, who owns it, what region of the world it's stored in, who has access to it, under what legal frameworks can it be shared, etc.

1121
03:20:56.070 --> 03:21:04.980
Boardroom: The situation with Flock is that the data is being stored in a central location. It's not being co-located within your city.

1122
03:21:05.120 --> 03:21:07.939
Boardroom: it's being stored. I don't know, maybe you can explain.

1123
03:21:08.190 --> 03:21:11.659
Boardroom: What region it's being stored in, what cloud provider it's being stored in.

1124
03:21:11.880 --> 03:21:13.920
Boardroom: AWS, perhaps.

1125
03:21:15.140 --> 03:21:20.479
Boardroom: These are concerns, I mean, I don't know if anybody knows the answer to this, but that really strongly affects

1126
03:21:20.530 --> 03:21:37.649

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Boardroom: the access control of the data. And, you know, the thing is, no matter what they tell you about the policies and how Flock manages the data, they're still subject to federal law. Federal law supersedes any local law, or any company policy, or any contract stipulation.

1127
03:21:37.850 --> 03:21:47.320
Boardroom: And there's a few laws on the books. The Cloud Act of 2019, FISA, which is from 1978, and the FBI has the ability to send national security letters.

1128
03:21:47.530 --> 03:22:01.149
Boardroom: Now, if the FBI sends a national security letter, oftentimes it's attached with a gag order, and this gag order would legally prevent Flock from informing any of their clients that the data was requisitioned by the government.

1129
03:22:01.290 --> 03:22:05.949
Boardroom: This means that even the lawyers at Flock would not be informed.

1130
03:22:06.070 --> 03:22:08.679
Boardroom: There are reported cases of this.

1131
03:22:08.920 --> 03:22:14.359
Boardroom: And so, if you have time to ask him a question, get him up here on the mic and tell you.

1132
03:22:14.590 --> 03:22:20.879
Boardroom: If the federal government asks for the data, will they be legally allowed to inform you that that occurred?

1133
03:22:21.720 --> 03:22:24.810
Boardroom: Can I get one more minute, anybody? Thank you.

1134
03:22:25.020 --> 03:22:37.490
Boardroom: Can I get one more minute? We're… actually, I want to make sure we have everyone speak, so, I mean, you're welcome to get another minute, but there are still folks who haven't spoken yet. But I have one more very important thing to say, can I? Okay. Alright. We got one more.

1135
03:22:37.860 --> 03:22:44.560
Boardroom: There's a little bit more… in terms of… Audit logs. So…

1136

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03:22:44.750 --> 03:22:59.839
Boardroom: One of the only tools available for a city, or an independent set of researchers to use to determine, you know, what Flock is doing with the data is through an audit log. And Flock provides audit logs on their website to every municipality.

1137
03:23:00.090 --> 03:23:06.000
Boardroom: However, there has been recent reporting, as recently as April, from a website called Footnote4A,

1138
03:23:06.270 --> 03:23:13.420
Boardroom: Where they're basically analyzing the logs that are publicly available, and finding that between 3% and 7% of the logs

1139
03:23:13.450 --> 03:23:30.110
Boardroom: are changing. Now, we're talking about audit logs, this should be an immutable piece of data. And when this data is queried, and then queried again a week later, they're finding unique IDs to have changed, timestamps to have changed, strong circumstantial evidence that the books are being cooked

1140
03:23:30.150 --> 03:23:31.569
Boardroom: On the flock side.

1141
03:23:33.620 --> 03:23:42.679
Boardroom: I mean, the question is, like, if they're providing audit logs, can they cryptographically sign the logs, and can a third party… Thank you. Thanks for your time. Thank you.

1142
03:23:48.340 --> 03:23:57.170
Boardroom: Hello, everybody. I have 2 minutes. I have Ziggy and Paul Blake back there, so 3 minutes, please. So…

1143
03:23:57.510 --> 03:24:08.470
Boardroom: Let's be clear, surveillance cameras are a supremacist tool of an authoritarian society. Okay, I'm gonna say that again.

1144
03:24:08.470 --> 03:24:10.480
Boardroom: Surveillance cameras!

1145
03:24:10.480 --> 03:24:33.019
Boardroom: are a supremacist tool of an authoritarian society. How do we know? Some of you have lived under such regimes, where they have been… where you've been surveilled. How do you think Israel was so successful

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at assassinating so many Iranian officials? Because Iran is surveilled. Every corner of Iran is surveilled.

1146
03:24:33.060 --> 03:24:48.080
Boardroom: Look around. The fascist countries have surveillance. This is not a tool that we want to use here in our community. And who is safer? We keep thinking, oh, this is a safety. Who is safer?

1147
03:24:48.710 --> 03:24:53.710
Boardroom: You have been given… you have been provided data by the BPD, But have…

1148
03:24:53.840 --> 03:25:00.600
Boardroom: Do you even collect the data of how many times you wrongfully pull over people because of bad

1149
03:25:00.620 --> 03:25:19.130
Boardroom: Data by a flock? Okay? These cameras, did they tell y'all anything about this? No. Have you asked? How many times have they harmed people? Tremendous harm to people that they pull over, detain, they've impounded cars, and caused

1150
03:25:19.520 --> 03:25:30.999
Boardroom: innocent people harm. We heard about a woman who was shot 5 times, 7 holes, and a man from our community here who's an activist who has been harmed, okay?

1151
03:25:31.180 --> 03:25:33.889
Boardroom: There's a lot to this story. It's…

1152
03:25:33.950 --> 03:25:53.160
Boardroom: I've taken a tally. So far, we've had 97 minutes, that's me 97 people who oppose this. 3 who have supported it. Okay, in a democracy, that would be overwhelming that, of course, you represent us. We all elected you, okay? Or maybe you're with

1153
03:25:53.160 --> 03:26:06.730
Boardroom: My former council member, before I got redistricted, who doesn't happen to be on the dais at this moment, so they'll be go unnamed, when I had a private conversation with them in 2020, and I asked, are you getting lots of calls

1154
03:26:06.730 --> 03:26:13.460

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Boardroom: for, you know, the… this was about the police budget, this was in 2020 with George Floyd, about the, the, you know,

1155
03:26:13.460 --> 03:26:26.550
Boardroom: the police budget should go up, and this person said, no, but I was elected to make a decision, and I was elected to make a decision about what I think is best. Not what the community said, but what…

1156
03:26:26.550 --> 03:26:40.949
Boardroom: This person literally said that to me. So, you all, are you gonna take that authoritarian, like, you were elected to make, because you're the parent, and you're the big brother, that you're supposed to make the decision for your constituents in your community, or…

1157
03:26:41.090 --> 03:27:00.779
Boardroom: Are we part of a democracy? Are you representing us? Okay, the audit, the audit was just brought up. If you do vote for this, who's going to ensure compliance with this complex contract? It can't be Flock, it can't be BPD, who's it gonna be? Flip the Berkeley City Council, flip BCC.org, check it out. Thanks, Lana.

1158
03:27:08.340 --> 03:27:14.619
Boardroom: Go ahead and move the mic so we can hear you. I'm… I'm Zan Joy, I'm a little hoarse.

1159
03:27:14.970 --> 03:27:30.689
Boardroom: 50 fucking years ago, I came to California. I came to the Bay Area. Why did I come here? I had a 5-year-old child. I was 24 years old. I came here because Berkeley promised to be

1160
03:27:30.980 --> 03:27:33.439
Boardroom: The kind of country

1161
03:27:33.900 --> 03:27:48.030
Boardroom: of that generation, that 50s and 60s generation that believed what our teachers told us about social justice, about civil rights, about ending war. And Berkeley stood for that when I came here.

1162
03:27:49.040 --> 03:27:54.229
Boardroom: I've been so proud. I've been an activist and a business owner in Berkeley for…

1163
03:27:54.340 --> 03:28:03.540

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Boardroom: almost 50 years, and I've been so proud to be here. But this is not making me proud. This is making me so ashamed, and I

1164
03:28:03.720 --> 03:28:11.179
Boardroom: I'd lived in 7 states before I came here, so I didn't… I came here… I knew what I was coming to. I…

1165
03:28:12.140 --> 03:28:25.949
Boardroom: I'm not gonna say anything new. Thank you. Can I have one more minute? Thanks so much. Okay. I'm gonna take that minute from the person in the back. Okay. Thank you. I'm not saying anything new, but what I am gonna say, you all know

1166
03:28:26.200 --> 03:28:35.680
Boardroom: You all know all the information. Those of you that are voting yes, I ask you to look inside yourself and figure out what

1167
03:28:36.710 --> 03:28:42.939
Boardroom: What lack of morality, what lack of humanity is letting you vote for this?

1168
03:28:43.260 --> 03:28:44.190
Boardroom: you accept?

1169
03:28:45.250 --> 03:28:55.940
Boardroom: We can be safe through surveillance when these women have said, we know how we're going to be safe. Equity is the only thing that's going to get us safe, providing and

1170
03:28:56.170 --> 03:28:57.170
Boardroom: poverty!

1171
03:28:59.490 --> 03:29:08.920
Boardroom: Caring for everyone in the city, that's the only thing that will make us safe, not surveillance. That's all. Thank you.

1172
03:29:14.090 --> 03:29:18.250
Boardroom: I just want to check, is there two people left? There's two people?

1173
03:29:19.080 --> 03:29:20.420
Boardroom: Er… 3?

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1174
03:29:22.270 --> 03:29:25.620
Boardroom: I agree. Okay. Okay, go ahead.

1175
03:29:28.240 --> 03:29:32.560
Boardroom: Hello, I'm Roberto, I believe I'm in District 4. I'm not actually sure.

1176
03:29:33.010 --> 03:29:40.840
Boardroom: I don't have anything novel to say, I actually have notes here that just say, I'm tired. So that's really good.

1177
03:29:41.210 --> 03:29:48.080
Boardroom: It's been a tough past… 10 months for me?

1178
03:29:48.590 --> 03:29:54.959
Boardroom: I wouldn't call myself a activist. I'm definitely not an extremist. I am employed.

1179
03:29:55.460 --> 03:29:58.220
Boardroom: I'm just very tired.

1180
03:29:58.420 --> 03:30:02.629
Boardroom: And I feel like if flock happens.

1181
03:30:03.380 --> 03:30:06.589
Boardroom: It's kind of over for myself and…

1182
03:30:06.720 --> 03:30:09.690
Boardroom: My friends and my community.

1183
03:30:10.250 --> 03:30:16.520
Boardroom: I feel you can probably guess why, and the activism that I don't want to be doing.

1184
03:30:16.840 --> 03:30:25.290
Boardroom: Flock just dooms us. It's over. There's nothing else for us. So, yeah, that's it. I'm tired. Goodbye.

1185
03:30:25.500 --> 03:30:26.700
Boardroom: Thank you.

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1186
03:30:31.280 --> 03:30:36.230
Boardroom: Good evening, my name is Sophia O'Brien. Can I have a minute from someone?

1187
03:30:36.730 --> 03:30:38.390
Boardroom: There. Okay.

1188
03:30:38.580 --> 03:30:39.450
Boardroom: Okay.

1189
03:30:39.820 --> 03:30:43.910
Boardroom: My name is Sophia O'Brien, I was born and raised in District 4.

1190
03:30:43.910 --> 03:31:07.960
Boardroom: At a time when this city is discussing cuts to critical public resources and safety net programs, while hundreds fill your inboxes and this room to demand investment in our communities, this council, well, many from this council, plans to spend millions expanding surveillance infrastructure. $2 million plus millions more in inevitable lawsuits that could go towards preventing crises.

1191
03:31:07.960 --> 03:31:32.800
Boardroom: supporting vulnerable residents, and strengthening community services, which is public safety. Instead, our tax dollars are being directed toward expanding systems tied to policing, federal abductions, racial profiling, and mass incarceration. If you really cared about public safety, you would invest more money into our schools to make sure that our teachers can afford to live in our city. You would invest more money into affordable

1192
03:31:32.800 --> 03:31:45.059
Boardroom: housing and ensure the most basic social net for the most vulnerable in our community is met, not sell those same people out as data points so a billion-dollar company can make more off of my community.

1193
03:31:45.060 --> 03:32:01.569
Boardroom: Like many have said, you are a public servant, and therefore, I hope you will act in the interest of your constituents, and if not, that will be a stain on this city for years to come, and something that you, as an individual, will never live down as long as you are an elected official in our city.

1194

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03:32:01.980 --> 03:32:12.670
Boardroom: To move forward with this expansion, despite the legal warnings, the oversight concerns, the moral failures, and the erosion of public trust would be a profound mistake.

1195
03:32:12.930 --> 03:32:18.269
Boardroom: The first rule of fascism, and the most important rule, is do not obey in advance.

1196
03:32:18.310 --> 03:32:35.869
Boardroom: Now please, for the first time in forever, stand on the right side of history and do not sell out your constituents, the public, in the interest of public safety, because the public is telling you exactly what will make us more unsafe. So please vote no on this.

1197
03:32:35.870 --> 03:32:41.949
Boardroom: contract on the expansion of more flock in our city. The public does not want this.

1198
03:32:41.970 --> 03:32:43.530
Boardroom: Thank you.

1199
03:32:49.680 --> 03:32:52.259
Boardroom: Alright, our final in-person speaker. Go ahead.

1200
03:32:52.410 --> 03:32:55.229
Boardroom: I'm Gail Alcock from District 2.

1201
03:32:55.410 --> 03:32:57.199
Boardroom: And I,

1202
03:32:58.040 --> 03:33:12.309
Boardroom: I think flock is a big mistake, and I was really, proud, when I was at home to be listening to the… all the information that came, and I just hope that it's not news to you.

1203
03:33:12.510 --> 03:33:20.849
Boardroom: any of things that you have heard tonight. It's not news. Is that correct? You… you didn't hear anything that you didn't already know.

1204
03:33:21.630 --> 03:33:25.789
Boardroom: I'm just assuming that that's the truth. But you do have…

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1205
03:33:26.090 --> 03:33:44.029
Boardroom: these commissions, and they do a lot of research. And then apparently, there's this very organized group that is tremendously committed and dedicated, and has brought so much information. But really, I think that you all knew anyway.

1206
03:33:44.310 --> 03:33:50.000
Boardroom: Because… I knew, without knowing a lot of information, that this is creepy.

1207
03:33:50.330 --> 03:33:53.919
Boardroom: I mean, you don't need to know much.

1208
03:33:54.240 --> 03:33:55.760
Boardroom: Thank you.

1209
03:34:01.160 --> 03:34:17.269
Boardroom: Okay, we're gonna take, we've finished with our in-person comment. If you are online for online comment, we have an hour of online comment. Please raise your hand so you can get in the queue, and in the meantime, we are gonna take another 10-minute stretch break. Thank you.

1210
03:34:26.310 --> 03:34:39.199
Boardroom: Okay, the microphones are on. Okay, hello everyone. We are going to take online public comment now.

1211
03:34:39.440 --> 03:34:40.960
Boardroom: for…

1212
03:34:41.240 --> 03:35:00.390
Boardroom: Item number 1A, which is the Public Safety Technology, Surveillance Technology Ordinance of Police Equipment Ordinance, Approvals, Policy Updates, and Contract Authority. So, Clerk, can you please… Okay. Go ahead and start it. The first speaker, has a phone number ending in 405.

1213
03:35:03.230 --> 03:35:14.499
1510****405: Hi, Derek, and I heard I live in District 1. I came to Berkeley in 1952, educated in Berkeley.

1214
03:35:15.320 --> 03:35:22.829
1510****405: And I look… Like, another ditto person.

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1215
03:35:23.500 --> 03:35:26.329
1510****405: Huh? The thing, show me the money.

1216
03:35:26.800 --> 03:35:36.040
1510****405: The fuck gave us a billion dollars. The answer should be, no, we will not take, we will not be bought.

1217
03:35:36.630 --> 03:35:45.419
1510****405: And if the idea that we are paying to be bought is just, outrageous.

1218
03:35:45.760 --> 03:35:55.129
1510****405: I, I, I do think… I'm on the board of directors of four local corporations.

1219
03:35:55.690 --> 03:36:08.940
1510****405: To the best of my knowledge, not one director, not one constituent of these corporations would vote to endorse any candidate who endorses.

1220
03:36:08.940 --> 03:36:09.600
Boardroom: Thank you.

1221
03:36:09.600 --> 03:36:11.270
1510****405: surveillance.

1222
03:36:11.390 --> 03:36:12.390
1510****405: Thank you.

1223
03:36:14.130 --> 03:36:18.900
Boardroom: Okay, next is… Roddy?

1224
03:36:25.040 --> 03:36:27.020
Radhi G: Thank you for your service.

1225
03:36:27.130 --> 03:36:44.610
Radhi G: And there are two questions that I have for Mr. Flock. I really just have these two questions, and I'm really interested in hearing. They're just yes and no questions, if that's possible. One question is, are there any scenarios in which Flock would have to share data with the federal government

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1226
03:36:44.870 --> 03:36:57.059
Radhi G: And then, are there any scenarios in which Flock would have to share data with the federal government and not be able to tell the city of Berkeley or the local police? Yes or no?

1227
03:36:58.960 --> 03:37:04.920
Boardroom: Sorry, we don't respond to questions during the comment period, but those were also asked and answered.

1228
03:37:06.680 --> 03:37:07.710
Radhi G: All good, thank you.

1229
03:37:08.510 --> 03:37:09.930
Boardroom: Okay.

1230
03:37:10.840 --> 03:37:14.050
Boardroom: Next is, Beth Rossner.

1231
03:37:17.230 --> 03:37:22.559
Beth Roessner: Good evening, Mayor and Council. This is Beth Rossner, CEO of the Berkeley Chamber of Commerce.

1232
03:37:22.930 --> 03:37:31.280
Beth Roessner: The Chamber supports moving forward with thoughtfully managed public safety technology and the strong oversight framework in Item 1A.

1233
03:37:31.480 --> 03:37:49.290
Beth Roessner: For Berkeley businesses, public safety and economic vitality are closely connected. Employees, customers, and visitors need to feel safe in our commercial districts and public spaces, and tools that improve emergency response and investigations can provide real public benefit.

1234
03:37:49.700 --> 03:37:59.380
Beth Roessner: We're concerned about creating a gap in public safety capabilities if existing systems are discontinued before replacement tools or policies are fully in place.

1235
03:37:59.510 --> 03:38:06.039
Beth Roessner: At the same time, we recognize the legitimate concerns around privacy, data security, and vendor accountability.

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1236
03:38:06.190 --> 03:38:12.550
Beth Roessner: Strong safeguards, transparency, auditing, and local control over data must remain paramount.

1237
03:38:12.750 --> 03:38:21.089
Beth Roessner: We appreciate the work being done to strengthen oversight while protecting Berkeley's values and keeping the city safe and welcoming for all. Thank you.

1238
03:38:21.090 --> 03:38:21.770
Boardroom: Thank you.

1239
03:38:22.620 --> 03:38:25.689
Boardroom: Next is Della… Della Luna?

1240
03:38:35.690 --> 03:38:38.929
Della Luna (she/her) Huichun: Yes, thank you. I was going to…

1241
03:38:39.260 --> 03:38:58.229
Della Luna (she/her) Huichun: say that this… this item has taken up so much of our time, and it feels like, with so much of the public being against it, it shouldn't even be on the table. It's now to committee, multiple times, and then I think we're up till 1 o'clock in the morning talking about it, and now again, and I feel like it just reflects that you all are not

1242
03:38:58.290 --> 03:39:02.170
Della Luna (she/her) Huichun: Doing your jobs, because we don't elect you

1243
03:39:02.790 --> 03:39:19.739
Della Luna (she/her) Huichun: I guess what I want to say is you all are professionals in your own rights, and each of you has a set of expertise, but no one, as individuals or collectively, has the expertise to sign a contract that's going to murder, death, kill the constituents. And we didn't elect you for you to then negotiate contracts.

1244
03:39:19.740 --> 03:39:29.139
Della Luna (she/her) Huichun: So there's, like, a sleight of hand going on where we do elect you to be city council, but the intention is not for you then to turn around and murder, death, kill us. So,

1245
03:39:29.670 --> 03:39:41.430

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Della Luna (she/her) Huichun: Yes, you all represent the people, and the people do not want this, and the notion that Flock can just sit there, the Mr. Flock can be there, and you all just ask questions back and forth, and somehow that's good enough.

1246
03:39:42.650 --> 03:39:44.710
Boardroom: Next is Laura Hill.

1247
03:39:46.380 --> 03:39:49.220
Boardroom: Wait a second… Sorry.

1248
03:39:52.410 --> 03:39:53.630
Boardroom: Laura Hill?

1249
03:39:56.200 --> 03:40:06.150
Laura Hill: Good evening, my name is Laura, and I'm speaking on behalf of the Bay Area Council. We are a business association and policy advocacy organization representing nearly 400 of the region's employers.

1250
03:40:06.150 --> 03:40:23.930
Laura Hill: Three years ago, 125 East Bay employers asked us to form a coalition in response to concerns about safety and the future of the region. This coalition strongly supports the continued use of ALPR and related technology in Berkeley. Technology is a critical public safety tool, particularly for departments facing staffing challenges.

1251
03:40:23.930 --> 03:40:41.309
Laura Hill: On the ground every day, these tools help officers recover stolen property, prevent human trafficking, and identify suspects in violent crimes. We've also seen across the East Bay and the broader region that this technology can be implemented with appropriate safeguards that balance the needs of community privacy with public safety.

1252
03:40:41.330 --> 03:40:53.080
Laura Hill: Finally, and importantly, since many nearby cities are already applying this technology, using compatible tools strengthens coordination and safety across jurisdictions. Thank you for your consideration and your continued leadership in Berkeley.

1253
03:40:55.340 --> 03:40:58.670
Boardroom: Next is… Tracy Rosenberg.

1254
03:41:05.160 --> 03:41:06.809

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Tracy Rosenberg: Yes, one second.

1255
03:41:10.720 --> 03:41:30.169
Tracy Rosenberg: Tracy Rosenberg from Oakland Privacy. Let's be clear. While fully aware of dozens of local sanctuary ordinances, California, SB34, and SB54, Flock chose to let Customs and Border Patrol into their database and told absolutely no one.

1256
03:41:30.420 --> 03:41:34.810
Tracy Rosenberg: In my news today, Shaker Heights… Shaker Heights, oh…

1257
03:41:34.900 --> 03:41:38.440
Tracy Rosenberg: Ohio, a city with a sanctuary policy.

1258
03:41:38.530 --> 03:41:48.639
Tracy Rosenberg: pronounced that other agencies searched their flock database for the purpose of immigration enforcement 207…

1259
03:41:48.640 --> 03:41:59.760
Tracy Rosenberg: 273 times in the last 3 months, this year. It is happening, and it is continuing to happen every single day. You can't

1260
03:42:00.110 --> 03:42:05.769
Tracy Rosenberg: negotiate With companies that are lying to you. No on the contract.

1261
03:42:06.540 --> 03:42:07.590
Boardroom: Thank you.

1262
03:42:08.610 --> 03:42:11.610
Boardroom: Next speaker is Wendy Alfsson.

1263
03:42:22.600 --> 03:42:29.859
Wendy Alfsen: Thank you, Mayor and Council. Speaking on behalf of the Berkeley Friends Meeting.

1264
03:42:29.980 --> 03:42:37.750
Wendy Alfsen: In opposition to the approval of these 8 items on your… Agenda.

1265
03:42:38.810 --> 03:42:43.919

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Wendy Alfsen: Just like to point out that each of them merits a separate agenda item.

1266
03:42:44.120 --> 03:43:02.140
Wendy Alfsen: With the opportunity for consideration. It's been very difficult throughout this process to have any attention on the policies that underlie all of this. I'd like to point out that in addition to all of the other things that have been

1267
03:43:02.270 --> 03:43:06.439
Wendy Alfsen: been raised, particularly by the Police Accountability Board.

1268
03:43:06.790 --> 03:43:08.649
Wendy Alfsen: I ask you to expect.

1269
03:43:08.800 --> 03:43:14.169
Wendy Alfsen: Pay special attention to their recommendations, their most recent

1270
03:43:14.800 --> 03:43:17.879
Wendy Alfsen: one of May 6th on the…

1271
03:43:19.880 --> 03:43:26.190
Wendy Alfsen: Purchase… whole purchase order contracting issue, really requires.

1272
03:43:26.190 --> 03:43:27.460
Boardroom: Thank you.

1273
03:43:29.190 --> 03:43:31.870
Boardroom: Next is Audrey Kramer.

1274
03:43:34.700 --> 03:43:51.769
Audrey Kramer: Good evening, City Council and Mayor. My name is Audrey Kramer, and I am a sophomore at UC Berkeley and a District 6 resident. I am currently looking at the City Manager's proposed 27-28 budget and balancing plan, and so my question for you today is, why are we sitting here? Berkeley is in a ridiculous budget deficit.

1275
03:43:51.770 --> 03:43:58.730
Audrey Kramer: On page 52 of this report, the city manager outlines the 8 policemen that Berkeley is firing this year.

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1276
03:43:58.730 --> 03:44:18.439
Audrey Kramer: Every department in this city is losing 10% of its budget, and Flock is clearly highly unpopular, so I would suggest that you use this exorbitant amount of money to follow the Police Accountability Board's recommendation for an RFP on this matter, or use this money for literally anything else. Thank you so much for your time. Have a good evening. Thank you, thank you.

1277
03:44:18.700 --> 03:44:19.770
Boardroom: Thank you.

1278
03:44:20.910 --> 03:44:23.229
Boardroom: Next is Eduardo.

1279
03:44:29.210 --> 03:44:30.570
Eduardo: I'm Latino.

1280
03:44:31.600 --> 03:44:50.159
Eduardo: And when extremist ideological experiments go wrong, people die. Socialist extremist policies failed Cuba and Venezuela. Millions suffered. Here in California, DSA-driven defunding of police helped create this out-of-control crime wave. And now you want us to do what? Keep trusting your failed social experiment?

1281
03:44:50.160 --> 03:45:04.860
Eduardo: Here in Berkeley, even common sense liberals are now called fascists and bullied into silence. Look, the city's number one job is still to protect residents and businesses with proven tools, not gamble with public safety based on ideology and zero evidence.

1282
03:45:04.860 --> 03:45:20.309
Eduardo: What happens when cities turn off flock? Richmond stopped cameras a few months, auto thefts jump by a third. That's not theory, that's documented facts. So who's paying the highest price? It's working-class black and brown families.

1283
03:45:20.310 --> 03:45:31.950
Eduardo: Most are single-car households, and when that one car is stolen, it's not a small inconvenience. People lose jobs, kids miss school, families lose their homes, stolen cars become stolen lives.

1284
03:45:31.950 --> 03:45:32.730
Boardroom: Thank you. Thank you.

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1285
03:45:32.900 --> 03:45:33.630
Eduardo: Proof.

1286
03:45:34.630 --> 03:45:36.780
Boardroom: Time is up, thank you.

1287
03:45:36.990 --> 03:45:39.919
Boardroom: Next is, Devin.

1288
03:45:47.610 --> 03:45:50.940
Boardroom: Devin, you should… You should be able to unmute.

1289
03:45:56.690 --> 03:45:59.359
Boardroom: Last call for Devin.

1290
03:46:00.590 --> 03:46:01.920
Boardroom: Alright.

1291
03:46:03.580 --> 03:46:07.260
Boardroom: Let's go to MR.

1292
03:46:10.090 --> 03:46:20.099
mr: Hello, I'm a resident, a data engineer, and a former defense technologist. I'm embarrassed to have Shoshana O'Keefe as my representative. Block is not a public safety company, they are a data broker.

1293
03:46:20.100 --> 03:46:33.589
mr: As a data engineer, I'm telling you that the oversight narrative for this contract is technically infeasible. The city and the Berkeley Police Department will absolutely not have the independent technical capacity to oversee, monitor, or manage Berkeley data generated by FLOC.

1294
03:46:33.680 --> 03:46:52.399
mr: As a survivor myself, I completely reject the use of survivor trauma as justification for warrantless mass surveillance. Commercial surveillance companies and their products do not address the causes of violence or crime, and survivors, too, deserve, want, and have rights to privacy. Shame on you for invoking survivor trauma to enable mass surveillance.

1295

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03:46:57.590 --> 03:47:03.709
Boardroom: Thank you, and just a reminder to folks to not refer to specific council members. You have to refer to us as a body.

1296
03:47:04.260 --> 03:47:08.019
Boardroom: Okay, one more try for, Devin.

1297
03:47:08.800 --> 03:47:10.740
Boardroom: Devin, you should be able to unmute.

1298
03:47:14.020 --> 03:47:15.920
Boardroom: Mmm… okay.

1299
03:47:16.530 --> 03:47:17.620
Boardroom: No, Devin.

1300
03:47:18.380 --> 03:47:21.639
Boardroom: Next is, Makai Freeman.

1301
03:47:23.270 --> 03:47:25.779
Boardroom: Can you give her extra time, please? Thank you.

1302
03:47:29.040 --> 03:47:30.470
Michai Freeman CIS She/Her: Good afternoon.

1303
03:47:33.560 --> 03:47:35.070
Michai Freeman CIS She/Her: I'm not replicant.

1304
03:47:35.680 --> 03:47:37.110
Michai Freeman CIS She/Her: Any urgency.

1305
03:47:38.820 --> 03:47:44.950
Michai Freeman CIS She/Her: Tonight, that might… So, let's try… Residence.

1306
03:47:46.550 --> 03:47:50.260
Michai Freeman CIS She/Her: We recently saw… The reversal.

1307
03:47:52.090 --> 03:47:53.600
Michai Freeman CIS She/Her: of voting rights.

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1308
03:47:54.220 --> 03:47:55.740
Michai Freeman CIS She/Her: In the Kelly student.

1309
03:47:57.510 --> 03:47:59.069
Michai Freeman CIS She/Her: We know what happened.

1310
03:47:59.910 --> 03:48:06.600
Michai Freeman CIS She/Her: Doing current self… We know we have… They're struck.

1311
03:48:07.560 --> 03:48:08.980
Michai Freeman CIS She/Her: Father's a document.

1312
03:48:09.930 --> 03:48:11.129
Michai Freeman CIS She/Her: the patent.

1313
03:48:12.100 --> 03:48:13.860
Michai Freeman CIS She/Her: I thank our fleets.

1314
03:48:14.270 --> 03:48:15.459
Michai Freeman CIS She/Her: Oh, I'm serious.

1315
03:48:16.680 --> 03:48:18.180
Michai Freeman CIS She/Her: We treat us well.

1316
03:48:19.700 --> 03:48:26.699
Michai Freeman CIS She/Her: I am… I can… I am… Care that consultation.

1317
03:48:28.770 --> 03:48:33.229
Michai Freeman CIS She/Her: But you know… All of you on the diet.

1318
03:48:34.130 --> 03:48:37.970
Michai Freeman CIS She/Her: No, it's going to… abuses.

1319
03:48:40.390 --> 03:48:43.500
Michai Freeman CIS She/Her: You are… Our public servant.

1320
03:48:45.170 --> 03:48:46.689
Michai Freeman CIS She/Her: When's up top.

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1321
03:48:48.360 --> 03:48:49.760
Michai Freeman CIS She/Her: Says no.

1322
03:48:50.730 --> 03:48:51.960
Michai Freeman CIS She/Her: Listen.

1323
03:48:53.940 --> 03:48:55.990
Michai Freeman CIS She/Her: Honored representatives.

1324
03:48:56.800 --> 03:49:01.320
Michai Freeman CIS She/Her: on his loads… Who had dinner loot?

1325
03:49:03.140 --> 03:49:04.640
Michai Freeman CIS She/Her: And children are here.

1326
03:49:05.270 --> 03:49:06.720
Michai Freeman CIS She/Her: Without the parents.

1327
03:49:07.800 --> 03:49:09.380
Michai Freeman CIS She/Her: Family members?

1328
03:49:11.460 --> 03:49:12.870
Michai Freeman CIS She/Her: It is the source.

1329
03:49:13.210 --> 03:49:14.650
Michai Freeman CIS She/Her: dichotomy.

1330
03:49:16.130 --> 03:49:19.810
Michai Freeman CIS She/Her: So, she doesn't want… Prevailed.

1331
03:49:20.890 --> 03:49:22.390
Michai Freeman CIS She/Her: Don't care about.

1332
03:49:23.230 --> 03:49:24.520
Michai Freeman CIS She/Her: Public safety.

1333
03:49:26.480 --> 03:49:27.880
Michai Freeman CIS She/Her: And for art.

1334

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03:49:28.560 --> 03:49:29.540
Michai Freeman CIS She/Her: That's it?

1335
03:49:30.830 --> 03:49:32.440
Michai Freeman CIS She/Her: They have an un…

1336
03:49:32.490 --> 03:49:34.610
Boardroom: Thanks, Makai.

1337
03:49:37.930 --> 03:49:44.399
Boardroom: Next is a phone number ending in 453.

1338
03:49:46.600 --> 03:49:48.470
Boardroom: I think that's Chair Cayetano.

1339
03:49:50.120 --> 03:49:51.530
Boardroom: He needs a minute.

1340
03:49:53.130 --> 03:49:54.619
Boardroom: I'm here to fill out the minute?

1341
03:49:57.190 --> 03:50:04.240
Boardroom: He needs to ask for that minute. Chair Cayetano, can you hear us? Can we just give him an extra minute?

1342
03:50:05.820 --> 03:50:07.519
Boardroom: Needs to unmute first.

1343
03:50:09.360 --> 03:50:14.669
Boardroom: Phone number ending in 453, you should be able to unmute star 6 to unmute.

1344
03:50:16.490 --> 03:50:17.639
Boardroom: There you go. Very good.

1345
03:50:17.640 --> 03:50:25.869
1650****453: Hi, everyone. Josh Cayetano, Chair of the Police Accountability Board. I believe I have, 3 extra minutes from people online, if they could raise their hand. We have 4 minutes total.

1346
03:50:25.900 --> 03:50:29.400

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Boardroom: Could you give us their names? Because a lot of people are raising their hands.

1347
03:50:30.200 --> 03:50:35.349
1650****453: Oh, I don't know what their names are listed as. Chip, Adriana, and Layla?

1348
03:50:40.460 --> 03:50:42.430
1650****453: One of them is calling on by phone.

1349
03:50:43.540 --> 03:50:45.410
Boardroom: Oh, Chip? Did you say Chip?

1350
03:50:46.410 --> 03:50:47.110
1650****453: Yep.

1351
03:50:49.360 --> 03:50:54.579
Boardroom: I don't see… Okay, one more time. Chip, what were the other two?

1352
03:50:55.590 --> 03:50:56.839
1650****453: Adriana and Layla.

1353
03:50:57.870 --> 03:51:00.060
Boardroom: Okay, I see Adriana.

1354
03:51:00.770 --> 03:51:01.950
Boardroom: This is concealing.

1355
03:51:01.950 --> 03:51:02.829
1650****453: And Layla?

1356
03:51:06.480 --> 03:51:09.359
Boardroom: I see Adriana and Layla on there, do you see them, Mark?

1357
03:51:09.610 --> 03:51:11.700
Boardroom: Chip Anthony, 2453.

1358
03:51:12.940 --> 03:51:14.090
Boardroom: Thank you.

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1359
03:51:14.780 --> 03:51:19.349
Boardroom: See, Adriana… Was it Layla was the other one?

1360
03:51:20.580 --> 03:51:24.290
Boardroom: Layla and… Naz Rolahi.

1361
03:51:24.290 --> 03:51:26.499
1650****453: Yes, that's right. Yes, that's… yes, that's right.

1362
03:51:26.500 --> 03:51:38.079
Boardroom: I'll see Chip Moore on, though, so… We'll get you that… Josh… well, I'll see if I can get you that third minute in here, but just, let's, for now, check on those other two. I want to make sure we keep moving. Yeah. So we've got 3 minutes.

1363
03:51:38.310 --> 03:51:44.539
Boardroom: more gets on, then that would be a fourth. Oh. Your third minute, I've got your third minute here.

1364
03:51:45.050 --> 03:51:47.020
1650****453: Okay, so 4 total, right? Okay, thank you.

1365
03:51:47.770 --> 03:51:54.780
1650****453: My name is Josh Caitano, I'm the chair of the Police Accountability Board, also a graduate of Berkeley Law and a D3 resident.

1366
03:51:54.820 --> 03:52:11.059
1650****453: First, I would just like to note that nobody has asked BPD or Finance about their supplemental and why they are no longer standing behind their first proposed resolution. I can tell you why. The PAB sent a letter this week where we explained that BPD has failed residents of Berkeley

1367
03:52:11.060 --> 03:52:15.930
1650****453: By exclusively pursuing a contract with Flock, without a competitive procurement process.

1368
03:52:15.930 --> 03:52:22.790
1650****453: Even after the City Council sent them back to the drawing board on flock in Fall 2025, and the City did that again this spring.

1369
03:52:22.790 --> 03:52:38.350

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1650****453: And so they've had to pivot. The city manager said, during the comment section that we do this all the time, and that's exactly the issue. It's one the city auditor recently faulted the city for. 40% of its contracts were not competitively bid when the default rule is a competitive process.

1370
03:52:38.350 --> 03:52:51.669
1650****453: He also compared this to a contract for a truck or a pencil. But we're not talking about trucks and pencils, we're talking about the largest expansion of police surveillance technology in Berkeley's history. Now BPD is trying to claim that Flock is the best out there.

1371
03:52:51.670 --> 03:53:00.360
1650****453: that nobody else has a comparable product, that this is what's best for Berkeley, that they cannot back that up without a competitive process, and that's something Berkeley and deserve.

1372
03:53:00.630 --> 03:53:05.770
1650****453: Second, and speaking for myself now, there's also been a lot of talk about safety from flock supporters.

1373
03:53:05.970 --> 03:53:18.539
1650****453: But flock does not keep our community safe. We do. I recently spoke with leaders in Elmwood and Dean 3 who are monitoring the neighborhood around Sylvia Mendez, making sure children are safe and protected from ice. That is safety.

1374
03:53:18.650 --> 03:53:37.140
1650****453: I also talk every month with members of the Mayor of Sanctuary City Task Force, with people who are tirelessly coordinating mutual aid for our community. That is safety. And I spoke with members… some members of BPD and Live Free, who are building relationships in schools and on the streets with people in high-risk areas. That is safety. Flock does not make us safe. We do.

1375
03:53:37.840 --> 03:53:41.350
1650****453: Third, there's also been a lot of talk from flock supporters about accountability.

1376
03:53:41.490 --> 03:53:47.779
1650****453: Go out to those supporters and ask them what their track record is on police accountability in Berkeley.

1377
03:53:48.040 --> 03:53:57.099

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1650****453: DPD buried their audit on the last pages of a report, but they had identified Berkeley's own data with search for ICE and DHS. They didn't bring that to the Council's attention. We did.

1378
03:53:57.150 --> 03:54:12.369
1650****453: DPD did not have the courage to say what that was, and call it what it was, a betrayal of our trust, and said they explained it away. And still, what I hear them saying is that they don't know exactly what that was, but I think that sitting there today, if they're asking for you to contract with Flock, they should admit it.

1379
03:54:12.780 --> 03:54:17.170
1650****453: Why should we trust what they say if they can't admit, even with their own audit log they're showing?

1380
03:54:18.360 --> 03:54:26.269
1650****453: For the last 3 years, our own… our accountability institutions have been undermined, subverted, and defunded, and tonight, this accountability can start.

1381
03:54:26.510 --> 03:54:28.769
1650****453: Make them… make it happen. Thank you all.

1382
03:54:33.340 --> 03:54:34.450
Boardroom: Thanks, Josh.

1383
03:54:35.080 --> 03:54:39.089
Boardroom: Okay, next is Kelsey Jackson.

1384
03:54:42.810 --> 03:54:52.550
Kelsea Jackson, PhD: Thank you. Yes, my name is Dr. Kelsey Jackson. I'm in District 1, and I'm concerned about the similarities in surveillance between Israel and the United States in this moment.

1385
03:54:52.890 --> 03:55:17.009
Kelsea Jackson, PhD: I'm an expert in the perceptions of intercultural empathy, peace, and the other between Palestinians and Israelis. I spent time in the Middle East. I spent time in Palestine and Israel. I walked around the inside of the wall of Palestine at a military checkpoint where headstones littered the brush while I stared down… sorry, while I was stared down by four Israeli soldiers, each holding their AK-47s as they watched me.

1386
03:55:17.100 --> 03:55:33.540

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Kelsea Jackson, PhD: While in Palestine 10 years ago, I saw firsthand the detriment of overt surveillance, and saw firsthand the way it impeded the lives of Palestinians. They weren't able to self-organize, they weren't able to gather, they weren't able to protest without threat of being imprisoned or killed.

1387
03:55:33.860 --> 03:55:44.230
Kelsea Jackson, PhD: Israel uses the same surveillance technology in their red wolf and Blue Wolf surveillance as Flock, and it's now being embedded into our cities, our communities, to our neighbors.

1388
03:55:44.650 --> 03:55:48.360
Kelsea Jackson, PhD: We are on a dangerous path to normalizing mass surveillance and infringing on.

1389
03:55:48.570 --> 03:55:49.840
Boardroom: Share a comment.

1390
03:55:50.320 --> 03:55:55.090
Boardroom: Next is, Tim McKenzie. Tim McKenzie.

1391
03:55:55.860 --> 03:56:06.960
Tim MacKenzie: Hi, my name is Tim McKenzie. I'm a member of the Democratic Socialists of America. I'm here to encourage you to get rid of ALPRs, cancel the flock contract.

1392
03:56:06.960 --> 03:56:19.209
Tim MacKenzie: I actually believe Mr. Flock, saying that they are an industry leader, and honestly, that's embarrassing for the industry. Flock only just introduced two-factor authentication.

1393
03:56:19.390 --> 03:56:29.649
Tim MacKenzie: that was just admitted at Sunnyvale City Council last month. They haven't been… they have had less data security than applying for a job.

1394
03:56:29.710 --> 03:56:42.870
Tim MacKenzie: It is really impossible to believe that they will be able to protect the data, and it's been illegal in California to share data outside of the state for a decade, and they have spent years

1395
03:56:42.870 --> 03:56:49.880
Tim MacKenzie: doing that, having a nationwide lookup tool. They have already broken trust. They cannot be relied upon.

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1396
03:56:49.920 --> 03:56:52.289
Tim MacKenzie: You need to cancel the contract. Thank you.

1397
03:56:54.560 --> 03:56:55.560
Boardroom: Thank you.

1398
03:56:57.650 --> 03:57:01.400
Boardroom: Next is Mary Lynn Morales.

1399
03:57:04.500 --> 03:57:05.740
Mary Lynn Morales: Hi, thank you.

1400
03:57:06.910 --> 03:57:18.710
Mary Lynn Morales: I'm a long-time Berkeley resident, a homeowner, and a small business owner in Berkeley, and, members of the City Council, I beseech you, in the strongest possible terms, do not

1401
03:57:18.810 --> 03:57:23.820
Mary Lynn Morales: renew the flock contract, as proposed.

1402
03:57:24.130 --> 03:57:37.160
Mary Lynn Morales: I am more afraid of flock than I am afraid of crime in Berkeley. Crime is already down, everyone has talked about it. We don't need to expand our invasions of privacy and further militarize our police force.

1403
03:57:38.750 --> 03:57:42.710
Mary Lynn Morales: Save us from the constant fear of Big Brother. Please.

1404
03:57:42.880 --> 03:57:43.890
Mary Lynn Morales: Please.

1405
03:57:44.610 --> 03:57:45.430
Mary Lynn Morales: Thank you.

1406
03:57:46.040 --> 03:57:47.320
Boardroom: Thank you.

1407
03:57:49.750 --> 03:57:52.089
Boardroom: Next is Jordan.

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1408
03:57:55.800 --> 03:57:57.470
Jordan Harger: Hi, can you hear me?

1409
03:57:58.020 --> 03:57:58.820
Jordan Harger: Yes.

1410
03:57:58.830 --> 03:57:59.970
Jordan Harger: Cool.

1411
03:57:59.970 --> 03:58:24.970
Jordan Harger: My name's Jordan, I lived in Berkeley for about 22, 23 years, recently moved, still very connected to this community, I go to UC Berkeley Law, and I am joining the overwhelming chorus of people who are asking you to drop the flock contract. I'd like to also expand upon that and say, I think that as we've built this grassroots power and this grassroots movement against flock, we've also seen

1412
03:58:24.970 --> 03:58:41.970
Jordan Harger: people more broadly take a stand against mass surveillance in general, and that includes drones, and that includes ShotSpotter, and that includes all of these technologies that get woven together into this intricate web of mass surveillance that we are trying to prevent and cannot escape.

1413
03:58:42.100 --> 03:58:53.710
Jordan Harger: And… I had other things to say, but I think you're gonna vote how you're gonna vote. I don't know if us saying this is gonna sway anyone, but I wanted to add my voice to the chorus, and I hope that you listen to your constituents.

1414
03:58:54.120 --> 03:58:55.160
Boardroom: Thank you.

1415
03:59:02.170 --> 03:59:05.869
Boardroom: So another instance of Wendy Alfsson here,

1416
03:59:07.350 --> 03:59:09.550
Boardroom: Is this Wendy or somebody else?

1417
03:59:10.480 --> 03:59:12.939
Wendy Alfsen: Hi, my name is Marilyn Cleveland.

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1418
03:59:12.940 --> 03:59:13.610
Boardroom: Okay.

1419
03:59:13.610 --> 03:59:21.799
Wendy Alfsen: And I'm a resident of Berkeley and a retired attorney who spent 30 years advising public entities concerning public contracts.

1420
03:59:22.060 --> 03:59:35.090
Wendy Alfsen: The Daily Cal recently published an article about a leaked city attorney memo describing the city's exposure to multi-million dollar lawsuits if the council proceeds to renew and expand the flock contracts.

1421
03:59:35.090 --> 03:59:42.839
Wendy Alfsen: The article states that the proposed contract follows Flock's standard terms and conditions. Public entities, including Berkeley.

1422
03:59:42.990 --> 03:59:46.020
Wendy Alfsen: Should start with their own contracting

1423
03:59:46.050 --> 04:00:00.140
Wendy Alfsen: Procedures from the city's form of contract, not from a standard form that the private entity trying to contract with the city provides, even if that… another public entity has accepted those terms.

1424
04:00:00.140 --> 04:00:15.259
Wendy Alfsen: Piggybacking on another public entity's contract is one way to comply with the California Public Contract Code. Piggybacking does not waive the city's responsibility to comply with applicable state and municipal requirements, including sanctuary laws and military.

1425
04:00:15.260 --> 04:00:15.960
Boardroom: equipment.

1426
04:00:15.960 --> 04:00:16.890
Wendy Alfsen: recording requirements.

1427
04:00:16.890 --> 04:00:18.550
Boardroom: That's your time.

1428
04:00:20.770 --> 04:00:23.369
Boardroom: Next is Zachary.

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1429
04:00:27.790 --> 04:00:28.430
Zachary Russ: Hi!

1430
04:00:29.570 --> 04:00:32.709
Zachary Russ: I'm Zach, a D1 resident,

1431
04:00:33.090 --> 04:00:52.970
Zachary Russ: I think that cameras and ALPRs are a useful tool for solving crimes and getting convictions, and we should stand against crime, but this is about something different. This is aggregation. There are other ways to get these tools that don't grant automatic third-party access, and this is really a conversation about civil liberties.

1432
04:00:53.050 --> 04:01:08.640
Zachary Russ: I was lucky enough to be born and lived in a world before the Patriot Act. Year and year… year after year, our rights are trimmed back, and on average, we saw a drop of 4 deaths per year due to terrorism before and after the Patriot Act.

1433
04:01:08.640 --> 04:01:20.110
Zachary Russ: We could have asked everyone just to wear seatbelts, and it probably would have been more effective. A contract with Flock will not fix our criminal justice system, and it will not be in a step in the right direction.

1434
04:01:20.370 --> 04:01:31.590
Zachary Russ: We need to aggregate… sorry, it will aggregate our data into their cloud so that it can be served up the very moment a whiskey-soaked FISA warrant shows up with NSPM7 written on it.

1435
04:01:31.590 --> 04:01:32.220
Boardroom: Thank you so much for your time.

1436
04:01:32.220 --> 04:01:32.930
Zachary Russ: project.

1437
04:01:34.310 --> 04:01:37.500
Boardroom: Next is Fabiola.

1438
04:01:40.420 --> 04:01:56.829
F. Fabiola d5: F. Fabiola D5, Madam Mayor and the City Council members, I urge you all to heed the warning from the City Attorney regarding the

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potential liability Berkeley faces if it renews its contract with Flock. Please don't waste our money.

1439
04:01:56.870 --> 04:02:13.700
F. Fabiola d5: Regarding that op-ed my city council member co-wrote in the BS that claims flock keeps us safe, well, that's BS. The op-ed talks about arrests made for crimes that were committed. Where's the public safety there? Crimes were committed! They were not prevented.

1440
04:02:13.700 --> 04:02:28.729
F. Fabiola d5: Fraud does not make us safe. Again, this proposal represents the largest expansion of surveillance infrastructure in the city's history, and directly undermines Berkeley's long-standing commitment to being a sanctuary city.

1441
04:02:29.090 --> 04:02:35.390
F. Fabiola d5: To those op-ed writers, supporting this surveillance system is totally MAGA.

1442
04:02:35.600 --> 04:02:38.200
F. Fabiola d5: Please vote no to renew the flawed contract.

1443
04:02:38.410 --> 04:02:39.540
Boardroom: Thank you. Thank you.

1444
04:02:42.920 --> 04:02:45.460
Boardroom: Next is Keon.

1445
04:02:45.960 --> 04:02:47.500
Boardroom: Keion Bliss.

1446
04:02:52.570 --> 04:02:56.629
Keyan Bliss: Can you hear me? Can you hear me, hear me, hear me, hear me, hear me?

1447
04:02:56.630 --> 04:02:57.570
Boardroom: echoing.

1448
04:03:01.570 --> 04:03:02.770
Keyan Bliss: Apologies, can you hear me now?

1449
04:03:02.770 --> 04:03:04.550

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Boardroom: Yep, can hear you now.

1450
04:03:06.150 --> 04:03:15.140
Keyan Bliss: Yeah, just, wanted to say that BPD and council members argue that up to,

1451
04:03:15.190 --> 04:03:26.240
Keyan Bliss: $2 million for private surveillance technology is needed to compensate for BPD staffing challenges. The department's running well below… like, because the department's running well below authorized strength.

1452
04:03:26.240 --> 04:03:51.069
Keyan Bliss: But it's actually a false choice. Technology and staffing have never been interchangeable. In reality, ALPR cameras generate leads, but require officers to actually investigate them. And BPD's reduced staffing means fewer investigators available to follow up on ALPR hits. And peer-reviewed research already suggests ALPR's effectiveness depends on dedicated units. Creating that capacity requires staffing, not cameras, but BPD itself

1453
04:03:51.220 --> 04:04:09.300
Keyan Bliss: calls this technology a resource multiplier, even as it's ready to fund that resource multiplier by eliminating up to 6 sworn officer positions. So, BBD's argument for Flock actually highlights the need to actually invest in people, rather than the surveillance technology.

1454
04:04:09.300 --> 04:04:16.579
Boardroom: Thanks so much next is Ralph. Ralph, you should be able to unmute.

1455
04:04:25.710 --> 04:04:26.520
Boardroom: Ralph?

1456
04:04:32.550 --> 04:04:35.710
Boardroom: Ralph Brown, can you hear us? Can you please unmute?

1457
04:04:38.870 --> 04:04:39.800
Boardroom: Nope.

1458
04:04:40.140 --> 04:04:41.850
Boardroom: Okay, we'll come back to you. We'll come back.

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1459
04:04:42.030 --> 04:04:44.429
Boardroom: Next is Catherine Lewis.

1460
04:04:44.810 --> 04:04:45.620
Boardroom: Beautiful.

1461
04:04:49.070 --> 04:04:50.010
Catherine Lewis: Hello.

1462
04:04:51.690 --> 04:04:53.240
Catherine Lewis: I'm here tonight.

1463
04:04:54.190 --> 04:04:58.160
Catherine Lewis: And can only think about how this body

1464
04:04:58.900 --> 04:05:04.800
Catherine Lewis: Has failed its residents, its constituents, over and over again.

1465
04:05:05.170 --> 04:05:10.680
Catherine Lewis: I can only think of the infants in Gaza, 4 days old.

1466
04:05:10.960 --> 04:05:15.989
Catherine Lewis: Who were bombed in their apartment because of surveillance.

1467
04:05:16.570 --> 04:05:20.450
Catherine Lewis: You've all heard of the Palestine Laboratory.

1468
04:05:21.420 --> 04:05:24.829
Catherine Lewis: Well, the Berkeley City Council is complicit.

1469
04:05:25.290 --> 04:05:31.749
Catherine Lewis: Because they failed failed to condemn genocide in Gaza.

1470
04:05:32.030 --> 04:05:33.839
Catherine Lewis: And continue to fail.

1471
04:05:34.320 --> 04:05:36.440
Catherine Lewis: Don't fail the children.

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1472
04:05:36.840 --> 04:05:38.899
Catherine Lewis: of Berkeley, as well.

1473
04:05:39.730 --> 04:05:44.829
Catherine Lewis: Say no to flock. We do not need this surveillance. What a waste.

1474
04:05:45.380 --> 04:05:48.119
Catherine Lewis: Look into your hearts and do the right thing.

1475
04:05:49.110 --> 04:05:49.840
Catherine Lewis: That's true.

1476
04:05:49.840 --> 04:05:50.719
Boardroom: Thank you.

1477
04:05:52.250 --> 04:05:57.250
Boardroom: Go back to Ralph Brown. Ralph, are you there?

1478
04:05:59.880 --> 04:06:01.100
Boardroom: Go ahead and unmute.

1479
04:06:04.190 --> 04:06:06.270
Boardroom: Okay.

1480
04:06:06.270 --> 04:06:07.139
Ralph Brown: Can you hear me?

1481
04:06:07.140 --> 04:06:08.649
Boardroom: Yes, yes, there you go.

1482
04:06:09.930 --> 04:06:10.680
Ralph Brown: Excellent.

1483
04:06:11.280 --> 04:06:18.400
Ralph Brown: Just wanting to note, from the supporters, there's a lot of money that's actually invested in…

1484
04:06:19.900 --> 04:06:36.910

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Ralph Brown: In, Berkeley City Council members, from some of the supporters, like Bay Area Council, who is, most notably a prime backer of Flock in the Bay Area. And, that comes out to an amount of about, $81,000.

1485
04:06:37.280 --> 04:06:38.760
Ralph Brown: And

1486
04:06:39.830 --> 04:06:48.549
Ralph Brown: the… also with the Berkeley Police Officers Association, for, existing members of City Council.

1487
04:06:49.120 --> 04:06:52.209
Ralph Brown: I mean, it comes out to, even more.

1488
04:06:53.900 --> 04:07:03.890
Ralph Brown: You should actually, be listening. I hope you are actually listening to what concerned constituents are actually telling you to do as it comes to,

1489
04:07:04.020 --> 04:07:06.940
Ralph Brown: The surveillance, it's not actually keeping you safe.

1490
04:07:07.040 --> 04:07:14.580
Ralph Brown: What it is, is just a feel-good measure for a lot of these folks, and it doesn't actually guarantee safety for most people.

1491
04:07:14.580 --> 04:07:16.069
Boardroom: Thanks. Your time's up.

1492
04:07:16.730 --> 04:07:18.560
Boardroom: Next is Almira.

1493
04:07:22.830 --> 04:07:38.089
Almira Tanner: Hi there, my name is Almira, I'm a resident of District 5, and I've known about Flock for a little bit, but it wasn't until I got an email from the Electronic Frontier Foundation telling me that the organization that I lead, Direct Action Everywhere.

1494
04:07:38.090 --> 04:07:44.340
Almira Tanner: has showed up in searches that they've done, looking into Flock over 50 different times.

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1495
04:07:44.360 --> 04:08:00.500
Almira Tanner: And over 50 times, people who have been doing, public property protests have been surveilled, and their license plates have been tracked. And this is happening to residents of Berkeley. I am your constituent, this is happening to my friends who are your constituents.

1496
04:08:00.570 --> 04:08:17.330
Almira Tanner: So this is not a hypothetical. This has already been used to suppress free speech and intimidate people trying to make the world a better place, and I strongly encourage you to vote no on this contract to protect, people in Berkeley and everywhere who are fighting for a better world. Thank you.

1497
04:08:20.650 --> 04:08:23.880
Boardroom: Thank you. Next is, Mimi.

1498
04:08:25.100 --> 04:08:27.360
Boardroom: Mimi, you should be able to unmute, there you go.

1499
04:08:27.720 --> 04:08:32.420
Mimi Main: Hi there, my name is Bimi, I'm… I lived for 8 years in District 8.

1500
04:08:32.750 --> 04:08:38.399
Mimi Main: And I thought and hoped when I moved to Berkeley that this would be a place that reflects my values.

1501
04:08:38.730 --> 04:08:45.189
Mimi Main: the hundreds of people that have spoken tonight, and the hundreds of people that have spoken at the Tear Gas Commission meeting.

1502
04:08:45.420 --> 04:08:47.490
Mimi Main: Those people reflect my values.

1503
04:08:47.790 --> 04:08:54.990
Mimi Main: The people I've been working with at our BUSD school and in my neighborhood to set up Community Watch and mutual aid networks.

1504
04:08:55.330 --> 04:08:57.610
Mimi Main: Those people reflect my values.

1505
04:08:58.360 --> 04:09:06.949

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Mimi Main: I feel like I really shouldn't have to worry about the Berkeley City Council embracing, and the City of Berkeley embracing the approaches and tools of fascism.

1506
04:09:07.230 --> 04:09:10.930
Mimi Main: I'm appalled, I'm livid that we're all here again tonight.

1507
04:09:11.160 --> 04:09:15.729
Mimi Main: This dynamic where your constituents beg you in droves.

1508
04:09:15.860 --> 04:09:31.380
Mimi Main: to act in our best interest, and then the Council acts the opposite. It's… it's awful, it's disgusting, it's gross, and I'm begging you, literally on my knees, please, please, please do not move forward with flock. Thank you.

1509
04:09:35.100 --> 04:09:37.270
Boardroom: Next is Chelsea.

1510
04:09:41.860 --> 04:09:46.460
Chelcie: Hi, my name is Chelsea. I grew up on military bases.

1511
04:09:46.920 --> 04:09:48.980
Chelcie: Just one second, I'm fixing the echo.

1512
04:09:52.270 --> 04:09:54.590
Chelcie: I grew up on military bases.

1513
04:09:55.270 --> 04:10:01.490
Chelcie: Specifically, with… In-depth knowledge about military warfare and psychological warfare.

1514
04:10:02.020 --> 04:10:09.719
Chelcie: What Flock is, is it's an arm for Nazism, it's an arm for the military, and it's a tool for direct psychological warfare and control.

1515
04:10:10.110 --> 04:10:16.540
Chelcie: And… People know this. It's obvious. Follow the money. For example.

1516
04:10:16.770 --> 04:10:20.740
Chelcie: the founders and the people that pay for Flock, Peter Thiel.

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1517
04:10:22.030 --> 04:10:27.820
Chelcie: He's in head… he's in charge of Palantir and sells intelligence tools to ICE, DHS, and the Pentagon.

1518
04:10:28.250 --> 04:10:30.910
Chelcie: Another example, Maritech Capital.

1519
04:10:31.350 --> 04:10:34.309
Chelcie: Gives Flock a lot of money, makes a lot of decisions.

1520
04:10:34.530 --> 04:10:36.590
Chelcie: That's owned by the U.S. military.

1521
04:10:36.820 --> 04:10:44.140
Chelcie: by the Air Force. None of this is subtle. These firms bankroll companies that surveil, detain, or kill on the name of national security.

1522
04:10:44.510 --> 04:10:46.080
Chelcie: We don't want this.

1523
04:10:47.930 --> 04:10:49.020
Chelcie: Furthermore.

1524
04:10:49.530 --> 04:10:51.680
Boardroom: Your time is up.

1525
04:10:51.680 --> 04:10:55.259
Chelcie: I'd like to… No, it's not.

1526
04:10:57.940 --> 04:11:00.380
Boardroom: Next is JL.

1527
04:11:05.660 --> 04:11:06.849
JL: Hi, can you hear me?

1528
04:11:07.390 --> 04:11:08.210
Boardroom: Yes.

1529
04:11:08.800 --> 04:11:22.510

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JL: Thank you. I'm a long-time Berkeley community member. I've seen videos where members of the public can hack into these feeds. That means anyone with the tools could use these feeds to follow women home, or could access playground feed and watch kids.

1530
04:11:23.690 --> 04:11:36.200
JL: which has already been reported in other cities. Or could follow home someone who just bought something expensive and find out where they live in order to rob them. So from those perspectives, Flock actually introduces the possibility for more crimes to happen.

1531
04:11:36.800 --> 04:11:51.260
JL: I've also seen reports where police themselves have used surveillance tools to follow their ex-partners around, not because the partner was part of anything criminal, but rather because the officer was stalking them for personal reasons. As someone else has said, there's no special wording that could possibly be used in a contract.

1532
04:11:51.260 --> 04:12:00.660
JL: that could ensure the data will be safe. You can introduce fines, but this is a slap on the wrist to a company like Flock. Many cities are realizing that these risks… these are risks they do not want to take.

1533
04:12:00.970 --> 04:12:08.530
JL: The legal risk that it opens the city to, and the actual data security risk. Many have canceled their contracts, and this is what Berkeley should do.

1534
04:12:08.880 --> 04:12:13.520
JL: As someone else has said, please heed the warning from the city attorney, and do not waste our money.

1535
04:12:13.520 --> 04:12:15.329
Boardroom: Thanks so much for your comments, though.

1536
04:12:17.790 --> 04:12:19.580
Boardroom: Next is Wilhelmina.

1537
04:12:22.400 --> 04:12:32.860
wilhemina condon’s iPhone: Hi, this is Wilhelmina Condon, I'm in District 7, and I've been watching these and coming to these city council meetings, and I'm…

1538
04:12:32.970 --> 04:12:48.499

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wilhemina condon’s iPhone: completely gobsmacked at how the Council has set themselves up as sort of a paternalistic know-all, completely disregarding their constituents.

1539
04:12:48.760 --> 04:13:00.770
wilhemina condon’s iPhone: To me, this issue in the city of Berkeley is outrageous. It's a no-brainer. There's nothing that I've studied, nothing that I've heard that makes this a good decision.

1540
04:13:01.010 --> 04:13:15.130
wilhemina condon’s iPhone: Please start representing us, not against us. We're not your enemy. We voted for you. We would never have voted for you if you… if we imagined that you would do something like this.

1541
04:13:15.510 --> 04:13:18.359
wilhemina condon’s iPhone: No en flock. Thank you.

1542
04:13:19.050 --> 04:13:20.160
Boardroom: Thank you.

1543
04:13:21.410 --> 04:13:24.149
Boardroom: Next is Todd Andrew.

1544
04:13:29.570 --> 04:13:31.399
Todd Andrew: Oh, hi, Council, can you hear me?

1545
04:13:32.190 --> 04:13:33.090
Boardroom: Yes.

1546
04:13:33.090 --> 04:13:36.750
Todd Andrew: Hey, Todd, Andrew, District 5. I know this is a tough decision.

1547
04:13:37.010 --> 04:13:39.330
Todd Andrew: And, we all know that

1548
04:13:39.790 --> 04:13:43.890
Todd Andrew: Crime was coming down before the implementation of the cameras.

1549
04:13:44.210 --> 04:13:54.369

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Todd Andrew: And we all know that the cameras help to solve crime, so it's a tough decision. But we have a regime at the federal level who has proved lawless and unaccountable

1550
04:13:55.730 --> 04:14:01.990
Todd Andrew: Along with their Immigration and Customs Enforcement and Customs and Border Patrol, agencies.

1551
04:14:02.810 --> 04:14:18.260
Todd Andrew: And we've had capitulations on the part of media, we've had capitulations on the part of law firms and other organizations in this country. Who's to say Flock is not going to do the same thing? I would urge you, can we keep, please, maybe the hardware in place.

1552
04:14:19.140 --> 04:14:26.189
Todd Andrew: for when the Trump regime has been vanquished, and then turn them back on once they are the hell out of here. Thanks a lot.

1553
04:14:26.970 --> 04:14:28.180
Boardroom: Thanks, Todd.

1554
04:14:30.330 --> 04:14:33.910
Boardroom: Next is, jiggy?

1555
04:14:40.670 --> 04:14:47.539
Jiggy Geronimo: Hi, I'm Jiggy Geronimo. I'm a resident of El Cerrito, where we just successfully beat our flock contract, and like others.

1556
04:14:47.540 --> 04:15:04.210
Jiggy Geronimo: I frequently come to Berkeley to visit friends, go to restaurants, and check out your parks, and so while I'm relieved that I'm not going to be surveilled at home, I don't want to be watched when I come to your city. And your decision today is not about cameras, it's about Flock, and I want to talk about how bad and toxic of a company Flock is.

1557
04:15:04.580 --> 04:15:23.909
Jiggy Geronimo: Berkeley is a reputable city with a reputation of being a beacon of progressiveness, so I don't really know what you all are doing contracting with the most disreputable company on the market. Engaging in mass surveillance is going to tarnish your reputation. 50 cities have already canceled their contracts. Even Ring, which is a mass surveillance company, has canceled its contracts.

1558

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04:15:24.570 --> 04:15:33.949
Jiggy Geronimo: You all need to wake up and realize that you are living in 1939 Germany, so whatever you imagine that you would do if you were alive during Nazi Germany, you are doing that right now.

1559
04:15:33.950 --> 04:15:44.729
Jiggy Geronimo: How will you feel in 6 or 12 months when one of your residents starts disappearing because they were protesting? And you have to live with the realization that you greenlit the technology that made that possible. How will you sleep.

1560
04:15:44.730 --> 04:15:45.810
Boardroom: Thank you.

1561
04:15:49.130 --> 04:15:50.800
Boardroom: Next is Jen.

1562
04:15:51.010 --> 04:15:52.900
Boardroom: Jen, you should be able to unmute.

1563
04:15:53.850 --> 04:16:14.280
Jen: Hi, I'm a District 5 resident, and I strongly oppose doing business with Flock, and honestly, I feel a real sense of despair that we're even having this debate. Flock has shown itself to be untrustworthy time and again, and it seems to me to be magical thinking to believe that Berkeley can somehow prevent data sharing when so many other jurisdictions couldn't.

1564
04:16:14.280 --> 04:16:36.339
Jen: The question before the council tonight is not simply one of local safety. I really, really wish it was, but unfortunately, the real question here is whether Berkeley is going to voluntarily contribute to a mass surveillance network that aids inhumane political agendas and imperils the privacy rights, well-being, and sometimes the lives of countless people.

1565
04:16:36.340 --> 04:16:46.020
Jen: Dr. Maya Angelou once said, when people show you who they are, believe them the first time. Flock safety has shown us over and over who they are.

1566
04:16:46.020 --> 04:16:51.520
Jen: Please believe them and vote no on continuing to do business with Flock. Thank you.

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1567
04:16:52.650 --> 04:16:53.600
Boardroom: Thank you.

1568
04:16:55.720 --> 04:16:59.690
Boardroom: Next is the username just says iPhone.

1569
04:17:08.000 --> 04:17:20.089
Iphone.: If you continue to work with Flock, you will be personally responsible for the arrest of women who have abortions, like happened in Texas when police performed a nationwide search of cameras last May.

1570
04:17:20.290 --> 04:17:32.880
Iphone.: block employees accessing videos of children's gymnastics rooms, a playground, a school, a Jewish community center, and a swimming pool in Atlanta, Georgia.

1571
04:17:32.880 --> 04:17:44.639
Iphone.: Police drawing guns on innocent families, including children, which happened in Arkansas. Police dogs mauling innocent Black drivers, like happened in West Hollywood just in March.

1572
04:17:44.810 --> 04:17:55.880
Iphone.: The detention and subsequent torture of immigrants, because according to the ACLU, records revealed that many flock searches were carried out by local officers on behalf of ICE,

1573
04:17:55.900 --> 04:18:10.230
Iphone.: stalking of romantic partners by police, which has already been documented 14 times per the Justice Institute. 75-year-old grandmas being repeatedly pulled over due to misidentified plates, which has happened in Boulder, Colorado, over the last few months.

1574
04:18:10.430 --> 04:18:13.769
Iphone.: And countless other crimes.

1575
04:18:17.490 --> 04:18:20.320
Boardroom: Next is John Lindsay Poland.

1576
04:18:22.070 --> 04:18:31.909
John Lindsay-Poland: Hi, there have been several claims this evening that when Richmond turned off its flock cameras that crime went up, and this is just a misreading of the data.

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1577
04:18:31.910 --> 04:18:49.849
John Lindsay-Poland: Richmond's cameras went on in April 2023. They turned them off in November of 2025. During that period between 2022 and 2024, robbery rates… when the time when the flock cameras were on, robbery rates went up by 29%.

1578
04:18:49.850 --> 04:19:13.449
John Lindsay-Poland: sexual assault went up by 22%, vehicle theft went up by 6.6%, arson went up by 15% from the times when the flood cameras were off. This is just a misstatement of the facts. Crime responds to a lot of other things besides whether people are being watched, and this is just, not a reason, not one more reason that you should be convinced.

1579
04:19:13.450 --> 04:19:16.809
John Lindsay-Poland: Please stand with the people and vote no on the contract.

1580
04:19:17.190 --> 04:19:18.030
Boardroom: Thank you.

1581
04:19:21.480 --> 04:19:24.030
Boardroom: Next is, Amelia.

1582
04:19:26.870 --> 04:19:34.329
Amelia: Hey guys, I'm yet another District 5 resident, ashamed of my representative. Really, really embarrassed.

1583
04:19:35.400 --> 04:19:49.579
Amelia: I know you're not listening. Your own lawyer and auditor have told you not to do this, and you're pushing through anyway. Two weeks ago, you were talking about the $30 million deficit, but suddenly you found the money to pay for the lawsuits that are going to come from this.

1584
04:19:50.160 --> 04:20:00.039
Amelia: Really proud of you for finding the money, love to know where it came from. Seems like there are better ways to spend tens of millions of dollars that your own lawyer have told you you're opening us up to.

1585
04:20:00.120 --> 04:20:19.910
Amelia: BPD's staffing issues have everything to do with the erosion of community trust, and the fact that they're lying to you and us to get to get more toys to play with, to spy on us, is not helping. It's actually hurting their own staffing issues and the community trust that they keep claiming they want to build.

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1586
04:20:20.320 --> 04:20:30.669
Amelia: It's not gonna be built on this. You wanna spy on kids' playgrounds? You want to track down your ex-girlfriend? Do it on somebody else's dime. This is a bad idea, I wish you'd listen, we're all just dancing.

1587
04:20:30.670 --> 04:20:32.120
Boardroom: Your time's up.

1588
04:20:36.400 --> 04:20:40.560
Boardroom: Next is Avery Arbaugh.

1589
04:20:49.530 --> 04:20:50.580
Boardroom: Avery?

1590
04:20:51.240 --> 04:20:52.340
Boardroom: You're unmuted.

1591
04:20:55.460 --> 04:20:58.000
Boardroom: Avery, you're unmuted, can you hear us?

1592
04:21:06.400 --> 04:21:07.870
Boardroom: Avery, are you there?

1593
04:21:11.050 --> 04:21:13.100
Boardroom: Maybe we come back to that. We'll come back.

1594
04:21:14.460 --> 04:21:17.790
Boardroom: Next is Ann Dixon.

1595
04:21:21.920 --> 04:21:36.619
Anne Dixon (Cell phone): Hi there, my name is Ann, and I live in District 1, and I just wanted to also mention that, I believe Trevor has… Trevor Chandler, Mr. Flock, has clear conflicts of interest in this, that he's been…

1596
04:21:36.850 --> 04:21:56.529
Anne Dixon (Cell phone): working with us, he is not only, a board member of that, of the Bay Area Council, which their public safety, initiative has come to these meetings twice. They were in here earlier and pushed Flock. He's also an elected member of the San Francisco Democratic

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1597
04:21:56.930 --> 04:22:04.779
Anne Dixon (Cell phone): already… and I just… this is way too close. It's inappropriate for Berkeley, and I think that Flock has…

1598
04:22:04.890 --> 04:22:08.030
Anne Dixon (Cell phone): Once again, just wasted a bunch of people's time.

1599
04:22:08.220 --> 04:22:20.309
Anne Dixon (Cell phone): They cannot do what they say. And, I mean, this is inappropriate. We cannot… you all cannot actually, like, approve a contract with what is going on right now. Like, this has to be talked about.

1600
04:22:20.480 --> 04:22:21.550
Anne Dixon (Cell phone): Before that.

1601
04:22:21.990 --> 04:22:22.920
Anne Dixon (Cell phone): Thank you.

1602
04:22:25.320 --> 04:22:26.860
Boardroom: Thank you.

1603
04:22:27.050 --> 04:22:32.140
Boardroom: Just so folks know, we've got about 13 speakers left, but only about 11 minutes.

1604
04:22:32.820 --> 04:22:40.750
Boardroom: Oh, sorry, 13 minutes. So it's… so we might lose some folks because of the timing. Next is Vince.

1605
04:22:44.220 --> 04:22:47.010
Vince Montabon: Hi, Vince Montavan, District 5.

1606
04:22:47.200 --> 04:22:49.259
Vince Montabon: Excuse me, District 5.

1607
04:22:49.780 --> 04:22:57.279
Vince Montabon: A lot of the council questions really frustrated me earlier, because I think we got bogged down in

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1608
04:22:57.570 --> 04:23:06.779
Vince Montabon: questions about… Our sanctuary policies, or what language we can put in the contract, or what about this hypothetical?

1609
04:23:07.070 --> 04:23:13.539
Vince Montabon: But… We're basically saying, at the end of the day, we're gonna build the surveillance state

1610
04:23:13.860 --> 04:23:17.739
Vince Montabon: But Berkeley City Council is gonna have control over it.

1611
04:23:18.440 --> 04:23:22.100
Vince Montabon: And I have an issue with that. I'm not comfortable with that.

1612
04:23:22.240 --> 04:23:33.019
Vince Montabon: I don't care if you're a left-wing person, or a right-wing person, or if you're the president, or if you're the city council. I don't want you to be spying on me, no matter who you are. So…

1613
04:23:33.270 --> 04:23:45.369
Vince Montabon: I just feel like this is the type… you know, we like to march for no kings. This is the type of system that a king would build to control the people. So we have to oppose this. Please vote no on this item.

1614
04:23:46.770 --> 04:23:48.090
Boardroom: Thank you.

1615
04:23:48.400 --> 04:23:52.449
Boardroom: Mark, can we try to get Avery back? I think Avery's got their hand up again.

1616
04:23:53.410 --> 04:23:55.590
Boardroom: Yes.

1617
04:23:57.930 --> 04:23:59.350
Boardroom: Oop, 8, 8.

1618
04:23:59.770 --> 04:24:02.210
Boardroom: Okay. Avery, you're unmuted.

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1619
04:24:02.560 --> 04:24:04.049
Avery Arbaugh: Can you hear me this time?

1620
04:24:04.050 --> 04:24:04.740
Boardroom: Yes. Yes.

1621
04:24:05.120 --> 04:24:16.080
Avery Arbaugh: Okay, fantastic. Good evening, Mayor, Knight Mayor, and Council Members. My name is Avery. I'm the chair of the Berkeley Tenants Union and head of the Berkeley Tenant Organizing Task Force.

1622
04:24:16.080 --> 04:24:31.809
Avery Arbaugh: After Measure BB was passed, one of the first things our first building-wide tenants union to enter bargaining with their landlord fought for was a data privacy safety plan to protect their undocumented neighbors from ICE. Berkeley residents care about this issue.

1623
04:24:31.810 --> 04:24:42.990
Avery Arbaugh: I'm proud that, through bargaining and with the pressure of our union, they got a plan in place that means that their personal data is now more secure than the data of the average Berkeley resident.

1624
04:24:42.990 --> 04:24:58.640
Avery Arbaugh: whose license plate is scanned by a flock automatic license plate reader. Berkeley's city government should not be doing a worse job at keeping our data secure than slumlords. Please vote against this contract and keep our neighbors safe. Thank you.

1625
04:24:58.820 --> 04:24:59.779
Boardroom: Thank you.

1626
04:25:03.650 --> 04:25:05.489
Boardroom: Next is NB.

1627
04:25:09.570 --> 04:25:10.620
NB: Hi there.

1628
04:25:12.760 --> 04:25:30.380
NB: So, a lot of people are talking about drones, cameras, software, keeping us safe. As others have said, there's no independent evidence that shows that any of that's… the surveillance methods, decrease crime or improve clearance rates, right? There's no independent studies on this. But I also want to talk about what it means for us to

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1629
04:25:30.680 --> 04:25:31.960
NB: do this.

1630
04:25:32.030 --> 04:25:51.119
NB: even if it did keep us safe, we would be throwing everyone else under the bus in the states and localities that Mr. Flock said, this stuff is legal, right? They follow the law. That means in Texas, they harass trans people and find women getting abortions. In Kansas, where they overnight made trans driver's license illegal.

1631
04:25:51.120 --> 04:26:07.689
NB: They can track them down, so why would we give our money to this company, help train their AI models? It's impossible to remove data from an AI model once it's been trained, we don't have that capability. Why would we do that? Even if it did keep us safe, why would we throw everyone else in the country under the bus, all of our marginalized communities?

1632
04:26:14.750 --> 04:26:18.539
Boardroom: Devin? Devin, you should be able to unmute.

1633
04:26:19.190 --> 04:26:22.340
Devin (he/him): Yeah, yeah, here I am. Can you hear me?

1634
04:26:22.340 --> 04:26:23.200
Boardroom: Yes.

1635
04:26:23.200 --> 04:26:38.259
Devin (he/him): Hi, my name is Dr. Devin Pastika. I've lived in Berkeley for, over 20 years and have been really happy here. I live in District 3 with Ben Bartlett as my council member, and, I just can't believe I just heard that

1636
04:26:38.520 --> 04:26:48.079
Devin (he/him): the license plates are automatically imaged. I… I just… I just can't believe, like, basically a system that…

1637
04:26:48.160 --> 04:27:07.159
Devin (he/him): that I don't consent to, and so many of us don't consent to, will be just, rolled out like this. And I can't believe that El Cerrito voted the flock proposal down, and here in this progressive, left-leaning city that I really have been excited about living.

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1638
04:27:07.220 --> 04:27:16.490
Devin (he/him): Living in, that they're actually believing that a private corporation will be responsible and trustworthy with all of our surveillance data.

1639
04:27:16.590 --> 04:27:24.840
Devin (he/him): And that the courts, of course, and, federal agencies can… can… the courts can.

1640
04:27:25.100 --> 04:27:28.639
Boardroom: Thanks for your comment. Your time's up. Next is Deb.

1641
04:27:31.710 --> 04:27:51.829
deb: Hi, I just wanted to point out what hasn't been discussed, that there's a potential for increasing costs over time with Flock as a subscription service, that they can raise their fees over time, and apparently they've done that with other jurisdictions, so that's kind of another cost that the current council is

1642
04:27:51.830 --> 04:27:54.489
deb: Putting us in for going forward.

1643
04:27:54.490 --> 04:27:55.740
deb: My understanding.

1644
04:27:58.170 --> 04:27:59.100
deb: Fantastic.

1645
04:27:59.100 --> 04:27:59.870
Boardroom: Thank you.

1646
04:28:02.350 --> 04:28:05.289
Boardroom: Next is Ann Parker.

1647
04:28:12.470 --> 04:28:15.019
Boardroom: Ann, are you there? Ann Parker?

1648
04:28:19.240 --> 04:28:27.990
Ann Parker: Let me start over. When I hear mass surveillance being considered as a way of life in Berkeley, I just don't recognize the city I've lived in for 50 years.

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1649
04:28:27.990 --> 04:28:32.020
Ann Parker: As a student, mom, grandma, pediatrician.

1650
04:28:32.020 --> 04:28:53.440
Ann Parker: I'm sure this is not the will of Berkeley residents. What's the city council missing, and why? This is contrary to the reason we live in Berkeley and in this country, a country built on generations of people who've fled fascism and autocracy. Please support democracy and several civil liberties, and not autocracy and distrust.

1651
04:28:53.570 --> 04:29:04.750
Ann Parker: Safety's associated with communities, supporting communities through funding its institutions, not mass surveillance. Please hear us. Hear the majority of those speaking to you tonight.

1652
04:29:04.750 --> 04:29:15.149
Ann Parker: And the majority of citizens in Berkeley vote against surveillance and begin by voting against this contract with FLOX for many reasons presented tonight.

1653
04:29:15.190 --> 04:29:16.320
Ann Parker: Most of us…

1654
04:29:19.890 --> 04:29:22.920
Ann Parker: Most of all, rethink supporting facets.

1655
04:29:23.150 --> 04:29:27.429
Boardroom: Thank you. Thank you. Next is MP.

1656
04:29:34.660 --> 04:29:36.079
MP: Hello, can you hear me?

1657
04:29:36.080 --> 04:29:36.760
Boardroom: Yes.

1658
04:29:37.440 --> 04:29:53.180
MP: Hi, I'm a District 5 resident, and I just wanted to come here tonight to say that, like, I've listened to everybody's wonderful comments, I've learned a lot from everybody here, and whether or not you are

1659
04:29:53.580 --> 04:30:01.490

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MP: Pro or against, or whatever your political leanings are, whether you believe, like, we're living under fascism and whatnot.

1660
04:30:01.730 --> 04:30:17.850
MP: I… it doesn't matter. There has been decades, decades of research into the sorts of things that can be done by a community in a… in civil infrastructures to reduce crime, to stop crime.

1661
04:30:18.340 --> 04:30:40.640
MP: surveillance infrastructure is never one of those things. I mean, somebody brought up the Patriot Act, earlier, and I just wanted to bounce off that, because the Patriot Act has been around longer than I've been alive, and my whole life, I've been hearing about crime, crime, crime, crime. And the Patriot Act is… it gives intelligence agencies and the government the ability.

1662
04:30:40.640 --> 04:30:44.799
Boardroom: Your minute is up, thank you. Next is Whitney Sparks.

1663
04:30:49.100 --> 04:31:14.100
Whitney Sparks: I am a Black mom and tenant organizer in District 7, demanding that you reject and cancel the contract with Flock expansion of the fascist MAGA police surveillance state. Flock is a fascist escalation diametrically and irreconcilably opposed to Berkeley's sanctuary city policy. There is no way to ethically vote to deploy Flock in a quote-unquote sanctuary city, and there's especially no way to ethically ignore a vast majority of Berkeley civil

1664
04:31:14.100 --> 04:31:37.350
Whitney Sparks: constituents, legal counsel, UC Research, and the Police Accountability Board, all of whom overwhelmingly reject this. Listen, no on Flock, cancel the contract, reject Flock, and break democracy. If you still plan to vote for Flock tonight, you should just resign instead. Before expanding the most nefarious surveillance technology in the world, devote resources to essential tech like public Zoom meetings.

1665
04:31:37.350 --> 04:31:53.140
Whitney Sparks: that don't boot constituents multiple times in between pandemics. Do not wait for further harm to come to your constituents, community, and neighbors, like Martinez, shot five times, and the giant psychological toll of knowing that we are being stalked undemocratically by local police and government.

1666
04:31:53.140 --> 04:31:54.240
Boardroom: Your time's up.

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1667
04:31:54.780 --> 04:31:56.820
Boardroom: Next is Gustavo.

1668
04:32:02.600 --> 04:32:08.649
Gustavo: Hi, Gustavo Espinoza, high-performance Computing Machine Learning Engineer.

1669
04:32:08.910 --> 04:32:12.189
Gustavo: One thing I want to bring up is that

1670
04:32:12.800 --> 04:32:19.039
Gustavo: flock, the whole… I mean, in terms of an efficiency thing, the technology's just not…

1671
04:32:19.280 --> 04:32:28.690
Gustavo: efficient. The models are open source, you're able to find them online, and you're essentially just paying for server… $2 million for server costs.

1672
04:32:28.790 --> 04:32:34.590
Gustavo: That doesn't really make sense. You could just hire an engineer to do this stuff for you.

1673
04:32:35.170 --> 04:32:41.359
Gustavo: There's no fiscal reason why you would invest $2 million in flock.

1674
04:32:41.480 --> 04:32:49.029
Gustavo: Lastly, there's something I do want to bring up. There's been a lot of parallel between Palestine and Israel, and it's kind of…

1675
04:32:49.860 --> 04:32:56.440
Gustavo: weird that Mr. Flock used to be associated with AIPAC up until, like, 2018, 2019.

1676
04:32:56.880 --> 04:33:00.010
Gustavo: That's kind of… telling.

1677
04:33:04.090 --> 04:33:07.330
Gustavo: There's more to say about the tech, if anyone's curious.

1678

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04:33:07.599 --> 04:33:22.840
Boardroom: Thanks, your time's up. Next is KC. There's only 3 people left. I'd like to let them go, so… Oh, there's more race in there. Well, I'm gonna take those 3 people that we just said, that were left. KC?

1679
04:33:22.849 --> 04:33:30.419
kc: Hi, this is Karen Chen. I'm a resident of District 4. I've been here for the past 5 years in Berkeley for 6 years.

1680
04:33:30.419 --> 04:33:47.419
kc: I just want to encourage the Council and the Mayor to vote no on this contract, because it is… this type of surveillance technology is very clearly counter to the aim of community safety, and obviously a drain on taxpayer resources. Thank you.

1681
04:33:48.229 --> 04:33:54.559
Boardroom: Thank you. And… okay, and next is Kelly Hammergren.

1682
04:33:56.139 --> 04:33:57.559
Boardroom: Wait,

1683
04:34:07.459 --> 04:34:12.799
Boardroom: Kelly should be able to… Shows that you're unmuted.

1684
04:34:15.109 --> 04:34:17.389
Boardroom: Kelly, can you hear us? You're unmuted.

1685
04:34:21.229 --> 04:34:25.079
Boardroom: Now we can… Come back to Kelly.

1686
04:34:25.399 --> 04:34:27.319
Boardroom: Sea Rock?

1687
04:34:34.529 --> 04:34:35.249
Boardroom: Excuse me.

1688
04:34:35.250 --> 04:34:36.250
Syrak Micael: Hi, hi.

1689
04:34:36.890 --> 04:34:38.110
Syrak Micael: Good evening.

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1690
04:34:38.349 --> 04:34:45.190
Syrak Micael: Mayor and members of the City Council, my name is Sherak McKeel. I actually am right outside, but just came back from the Housing Advisory Commission.

1691
04:34:45.240 --> 04:34:58.729
Syrak Micael: We will not be safe with any version of a Flock contract. Flock, which has already shared data with ICE, will not fight in a court order to protect the city's data. There is nothing we can put in our contract to prevent Flock from sharing this.

1692
04:34:58.730 --> 04:35:13.700
Syrak Micael: and impervious violations of the law and contract by Falk, cities were unaware of data privacy breaches until after they already happened. In several cases, city officials still don't know the extent of what happened with their constituents' data. Violations could happen without any of us knowing.

1693
04:35:13.720 --> 04:35:15.640
Syrak Micael: Law enforcement have violated

1694
04:35:16.180 --> 04:35:37.719
Syrak Micael: fault contracts, and use private data to detain immigrants, punish people seeking abortions, and even stalk ex-partners of police officers. And even if we believe BPD's claim that flock globe resulted in hundreds of thousands of dollars in savings, which I do not, this contract exposes the city to tens of millions of dollars in liability, as documented in the city attorney's memos provided to the Daily Cal. Please listen to the community and stop flock…

1695
04:35:37.720 --> 04:35:39.259
Boardroom: Thanks, Zerok.

1696
04:35:40.110 --> 04:35:46.270
Boardroom: I see, Mark, I see Kelly's iPad, that probably is Kelly. Yes, and that would be our last speaker.

1697
04:35:49.419 --> 04:35:51.349
Kelly’s iPad: Okay, can you hear me this time?

1698
04:35:51.349 --> 04:35:54.469
Boardroom: Yes, we can. You are our final speaker for this evening.

1699

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04:35:54.630 --> 04:35:57.160
Kelly’s iPad: Oh, that's a big responsibility.

1700
04:35:59.580 --> 04:36:07.890
Kelly’s iPad: It's… you know, people have said so much tonight, it's hard to even add anything to that. Fuck.

1701
04:36:07.900 --> 04:36:20.890
Kelly’s iPad: Flock is a nationwide surveillance system. It's the wrong decision, it's the wrong way to go, and I plead with you, plead with you, to say no to FLOC.

1702
04:36:21.470 --> 04:36:23.270
Kelly’s iPad: it,

1703
04:36:23.630 --> 04:36:43.509
Kelly’s iPad: There just isn't anything good that I have been able to find about it, except looking at the Flock website, maybe? But everything else I pick up is about all the problems with Flock, and how data is shared and misused.

1704
04:36:43.650 --> 04:36:49.680
Kelly’s iPad: And we just shouldn't be doing that in the city of Berkeley. So I plead with you.

1705
04:36:50.330 --> 04:36:52.000
Kelly’s iPad: To please say no.

1706
04:36:53.130 --> 04:36:56.179
Kelly’s iPad: And if there hadn't been a line, I'd be there in person.

1707
04:36:56.559 --> 04:36:57.929
Boardroom: Thanks, Kelly.

1708
04:37:01.729 --> 04:37:17.489
Boardroom: Okay! Thank you so much, everyone. I appreciate hearing all of the public comment. We have now had 3 hours of public comment, 2 hours in person, 1 hour online, so we will now move on to Council comments, starting with Councilmember Blackby.

1709
04:37:17.879 --> 04:37:20.259
Boardroom: Great, thank you, Madam Mayor.

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1710
04:37:20.649 --> 04:37:37.299
Boardroom: So we get started, first, I just wanted to thank everyone who came, for speaking out and singing out, as the case may be tonight. Over the past few weeks, and especially the last couple of days, I've heard from many residents on all sides of this issue.

1711
04:37:37.389 --> 04:37:52.109
Boardroom: I appreciate all the thoughtful emails and phone calls we've received, from folks in District 6, from former colleagues on the Police Accountability Board, from local business owners, from members of the Berkeley Immigration Collective, and so many others.

1712
04:37:52.319 --> 04:37:59.189
Boardroom: And today, with the benefit of that feedback and that input, I want to share how I'm making this decision, weighing these many factors.

1713
04:37:59.429 --> 04:38:14.089
Boardroom: The concerns that I've heard, and I know many of us have heard from constituents are real and serious. Data privacy, the risk of federal authorities gaining access to local data, and the safety of vulnerable members of our community.

1714
04:38:14.089 --> 04:38:21.389
Boardroom: Given the Trump administration's aggressively unlawful immigration enforcement actions, those worries are not abstract.

1715
04:38:21.409 --> 04:38:26.029
Boardroom: I take them seriously, and they have shaped how I'm approaching this vote.

1716
04:38:26.789 --> 04:38:31.619
Boardroom: Berkeley's police department is among the finest in the country.

1717
04:38:31.759 --> 04:38:43.189
Boardroom: Chief Lewis, Deputy Chief Tate, Mr. Malmberg, and our officers serve our community every day with professionalism, intelligence, dedication, and compassion.

1718
04:38:43.459 --> 04:38:56.739
Boardroom: I strongly support the work of the BPD and its… and everything they do to keep our community safe every day. I also strongly support the use of modern technology with clear guardrails and frequent audits to advance public safety.

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1719
04:38:56.899 --> 04:39:13.869
Boardroom: ALPR technology has proven… I hope, I think you'll like what I have to say. ALPR technology has proven to be an important investigative tool. Over the past 18 months, FLC ALPRs have assisted Berkeley Police in more than 161 cases, contributing to 83 arrests involving serious crimes.

1720
04:39:13.979 --> 04:39:19.979
Boardroom: Such as attempted homicide, hit and runs, carjackings, assaults, and kidnappings, including

1721
04:39:20.009 --> 04:39:30.879
Boardroom: Six alerts in just one day last week that led to a series of investigative follow-ups. Behind these numbers are real people. I heard earlier tonight

1722
04:39:30.879 --> 04:39:41.039
Boardroom: People are trying to discount the numbers, but these are all real people and families who benefited from timely investigations, and in some cases, the prevention of further harm.

1723
04:39:41.549 --> 04:39:44.439
Boardroom: In District 6 alone, I reviewed the list

1724
04:39:44.599 --> 04:39:51.719
Boardroom: That I got from the department. In District 6 alone, ALPRs have helped us solve a series of home invasion robberies.

1725
04:39:51.939 --> 04:39:53.859
Boardroom: recover stolen vehicles.

1726
04:39:54.179 --> 04:40:02.999
Boardroom: Apprehend a roofing and construction scam ring, yes, those exist, and get justice for a sexual assault victim.

1727
04:40:03.119 --> 04:40:05.929
Boardroom: These people matter, too.

1728
04:40:06.329 --> 04:40:11.479
Boardroom: Some critics have suggested that we hire more police officers instead of licensing technology tools.

1729

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04:40:11.559 --> 04:40:14.429
Boardroom: Unfortunately, this is a false choice.

1730
04:40:14.469 --> 04:40:28.199
Boardroom: Despite focused work on recruitment and retention, BPD has been understaffed for years, not for lack of effort, but this is a hard market to recruit and retain police officers. And in just the past few months, Berkeley has lost

1731
04:40:28.199 --> 04:40:35.189
Boardroom: 6 officers to San Francisco's aggressive recruitment campaign. We can't just hire our way out of this.

1732
04:40:35.189 --> 04:40:39.019
Boardroom: On the contrary, providing officers with effective tools is part

1733
04:40:39.029 --> 04:40:41.669
Boardroom: Of how we recruit and retain them.

1734
04:40:41.769 --> 04:40:45.879
Boardroom: Walking away from modern technology would make our staffing problem worse.

1735
04:40:46.059 --> 04:40:47.189
Boardroom: Not better.

1736
04:40:47.629 --> 04:40:56.539
Boardroom: At the same time, the city must ensure that any public safety technology is procured from a company that can earn and maintain the public's trust.

1737
04:40:56.679 --> 04:41:01.519
Boardroom: That community trust is crucial to me and to everyone up here.

1738
04:41:01.979 --> 04:41:17.659
Boardroom: Flock has faced criticism for past data-sharing practices, rightfully so, involving outside agencies without local authorization. These concerns have understandably created real skepticism within parts of our community. We've heard much of it here tonight, I've heard much of it over the last couple of weeks.

1739
04:41:17.759 --> 04:41:24.889

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Boardroom: They warrant careful consideration before moving forward. I know Flock has indicated that they have taken steps to remediate.

1740
04:41:25.089 --> 04:41:27.929
Boardroom: But the outcome remains to be seen.

1741
04:41:31.629 --> 04:41:50.869
Boardroom: As I mentioned from the start, this technology is important for Berkeley, but equally important is making sure that we get this decision right, and build the public trust that we need in our decision-making process. I have full confidence in Chief Lewis and the professionalism of our officers in uniform and the BPD staff.

1742
04:41:51.239 --> 04:42:03.989
Boardroom: We should be equally sure that the tools that we license meet these same superior standards of performance. I believe tonight it's more important to get it right than to get it fast.

1743
04:42:04.119 --> 04:42:06.809
Boardroom: So I propose that we do take that time.

1744
04:42:07.199 --> 04:42:09.629
Boardroom: So, for the purposes of,

1745
04:42:09.739 --> 04:42:20.379
Boardroom: moving the process forward, and I look forward to comments from my colleagues. I've got a multiple-part motion, and I'll try and lay it out for Mark, because I know he's writing fast.

1746
04:42:20.409 --> 04:42:34.629
Boardroom: So the motion would be, starting with the Chief's updated proposal as the base motion, as amended by the supplemental from, Mayor Ishii, Councilmember, Lunaparra, Councilmember Trega.

1747
04:42:34.629 --> 04:42:45.299
Boardroom: There are sections 1 through 6, 8, and 9. Not to move full… we will not move forward with the MSA, the full MSA execution, as proposed.

1748
04:42:45.409 --> 04:43:01.029
Boardroom: Do you want to say what MSA means? Oh, sorry, we will not move forward with the full contract at this point. We'll refer to the City Manager the initiation of an RFP process in consultation with the Police Accountability Board and BPD for each of the components and for their integration.

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1749
04:43:01.099 --> 04:43:09.659
Boardroom: through that RFP period, extend the ALPR contract, incorporating as many contract changes as possible from the Humbert-Blackaby Supplementals.

1750
04:43:09.769 --> 04:43:27.039
Boardroom: plus the letter that we received back from Flock that indicated, acceptance of some of those contract terms, and to take no action on item 1B on tonight's agenda. So again, I just want to thank everyone. Second. That's my motion, and thank you for, thanks for listening.

1751
04:43:27.339 --> 04:43:30.849
Boardroom: Thank you. A second was from Councilmember Humbert.

1752
04:43:33.539 --> 04:43:49.449
Boardroom: So, yeah, you're in the queue. So, I would also like to ask that we sever the part of your motion that was, referring to our portions, the 1 through 6, 8, and 9 from the supplemental.

1753
04:43:49.639 --> 04:44:00.229
Boardroom: And, I can just request to do that, so I'm gonna, I'm gonna do that. And then, yeah, does anyone else have anything about this particular motion before we continue on?

1754
04:44:00.819 --> 04:44:11.009
Boardroom: Is it separable? Yes, so the sections 1 through 6… let me just pull it up. Yeah, they are referring to…

1755
04:44:11.579 --> 04:44:21.589
Boardroom: The use… the policies around the items themselves, and then… Specifically are asking…

1756
04:44:21.989 --> 04:44:35.869
Boardroom: Number 8 is refer to the City Manager to amend Ordinance 2.99 to include a violation slash termination clause for surveillance technology vendors. And number 9 was refer to the City Manager and City Attorney,

1757
04:44:35.869 --> 04:44:53.269
Boardroom: Additional contractual language to require a vendor to inform the city of any requests for information, including but not limited to subpoenas, discovery requests, or requests under any federal or state law

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at the extent permitted by law it receives related to city-controlled data and safeguard it to the fullest extent allowed by the law.

1758
04:44:53.879 --> 04:45:04.839
Boardroom: And, feel free to pull it up, though, if you want to look at the details of it. And also to clarify, the extension through the RFP period is for a period of up to 12 months. If we…

1759
04:45:04.949 --> 04:45:17.129
Boardroom: figure it out sooner and end up somewhere sooner, you know, we could move sooner, but the extension goes up to 12 months for that RFP period. Okay, thank you. Alright, let's go through the comments. Councilmember Tragub, can I clarify quickly? Yes.

1760
04:45:17.339 --> 04:45:28.759
Boardroom: Are… we are severing the supplemental and not the ALPR? The… the part of the motion that includes

1761
04:45:29.139 --> 04:45:33.669
Boardroom: our supplemental pieces, because then we can just vote on that separately.

1762
04:45:35.029 --> 04:45:42.739
Boardroom: Okay, I think I'm still confused, but I'll just… Okay, we can… we can check in about that. Alright, Councilmember Trekup, or Vice Mayor Trekup.

1763
04:45:43.269 --> 04:45:44.779
Boardroom: Thank you, Madam Mayor.

1764
04:45:45.469 --> 04:45:53.459
Boardroom: Everyone wants to feel and be safe, and based on lived experiences, safety means different things to different people.

1765
04:45:53.659 --> 04:46:02.439
Boardroom: For businesses and many of our residents, it might mean having cameras and other technologies that help deter perpetrators of burglaries and robberies.

1766
04:46:02.789 --> 04:46:17.269
Boardroom: And to many other Berkeley residents, particularly within our most vulnerable communities, it might mean being free from state surveillance and potential prosecution just for their existence in this country.

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1767
04:46:17.319 --> 04:46:23.149
Boardroom: All of these perspectives are ones that I heard from constituents and other Berkeley neighbors.

1768
04:46:23.489 --> 04:46:28.109
Boardroom: All deserve to be held with equal humanity as we make our decision.

1769
04:46:28.519 --> 04:46:31.459
Boardroom: From my first-hand experience as an immigrant.

1770
04:46:31.839 --> 04:46:45.989
Boardroom: And as a member of a vibrant immigrant community, I can tell you that these fears are grounded in the current reality, especially now, in the current national climate, the current administration, where data has been accessed and used

1771
04:46:46.389 --> 04:46:51.259
Boardroom: in their hands in ways that could undermine Berkeley's Sanctuary City commitments.

1772
04:46:51.839 --> 04:47:00.639
Boardroom: BPD has demonstrated that there are great community partners, and approach their work with a strong sensitivity towards all community members.

1773
04:47:01.229 --> 04:47:09.459
Boardroom: I agree that providing our hardworking police officers with effective tools is critically important. I…

1774
04:47:09.949 --> 04:47:19.139
Boardroom: At the same time, vetting these tools with careful consideration is equally as important, and makes all the difference in our community's trust in city government.

1775
04:47:19.459 --> 04:47:25.969
Boardroom: Over the last several months, the prevailing concern and theme among my District 4 constituents has been trust.

1776
04:47:26.089 --> 04:47:36.819

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Boardroom: A preponderance of them, conservatively, nearly 95% of the over 150 who've contacted my office have expressed grave concerns about Flock.

1777
04:47:36.929 --> 04:47:49.969
Boardroom: History and evidence have shown that however well-meaning its admissions may be tonight, the vendor lacks accountability, and therefore cannot be relied on as a trusted partner. I share those concerns.

1778
04:47:50.369 --> 04:47:59.239
Boardroom: Tonight, we're being asked to expand the system without comprehensive documentation of procurement requirements, and without a full evaluation of alternatives.

1779
04:47:59.369 --> 04:48:16.039
Boardroom: We're also being asked to do so without ever assessing the surveillance system as a whole, not just individual components like license plate readers or cameras, but the combined network, including drones and real-time monitoring and its cumulative impact on cost, data use, and civil liberties.

1780
04:48:16.469 --> 04:48:26.689
Boardroom: A competitive RFP process would allow us to define our needs clearly, compare multiple vendors, and consider different system designs.

1781
04:48:27.429 --> 04:48:33.359
Boardroom: Furthermore, diversifying our vendors would create resiliency in our public safety technologies.

1782
04:48:34.269 --> 04:48:50.789
Boardroom: Flock has made at least 4 changes to its standard terms and conditions in the last 7 months, leading to their most recent February 2026 version of the contract. All of these changes deserve consideration before renewing our city's contract with Flock.

1783
04:48:50.989 --> 04:49:02.049
Boardroom: While the city technically owns the data, the company appears to control how and when we can access it, and in what format, raising real questions about what ownership means in practice.

1784
04:49:02.149 --> 04:49:11.609
Boardroom: The company now claims a perpetual right to use our data to improve its services, although those terms, may have been adjusted,

1785

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04:49:12.039 --> 04:49:20.279
Boardroom: And the agreement expands protections against liability for willful misconduct or cross negligence, shifting responsibility away from flock.

1786
04:49:20.419 --> 04:49:27.439
Boardroom: And taken together, these changes would shift control from the city and towards the vendor, increasing long-term risks.

1787
04:49:29.439 --> 04:49:45.019
Boardroom: There are also real concerns about how data might be used beyond our local control. We have heard from residents who worry that surveillance data could be subpoenaed or accessed by federal agencies in ways that conflict with Berkeley's sanctuary city values.

1788
04:49:45.169 --> 04:49:55.189
Boardroom: and our laws. The perception alone of this happening here can erode trust, and public safety depends on people feeling protected, not monitored.

1789
04:49:55.739 --> 04:49:59.449
Boardroom: For all of these reasons, I will support…

1790
04:49:59.619 --> 04:50:02.389
Boardroom: any effort of this Council to pause

1791
04:50:02.899 --> 04:50:08.139
Boardroom: An expansion of this contract, and conduct a formal competitive procurement process.

1792
04:50:08.189 --> 04:50:25.349
Boardroom: We should evaluate alternatives, fully understand the costs and risks, seek legal guidance on these evolving contract terms, and ensure that any system we adopt aligns with our values of transparency, accountability, and civil liberties. This is not about rejecting technology outright.

1793
04:50:25.419 --> 04:50:28.359
Boardroom: It is about making sure we get it right.

1794
04:50:28.559 --> 04:50:31.809
Boardroom: Tonight's decision is not just about a contract.

1795

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04:50:31.979 --> 04:50:43.289
Boardroom: It is about whether we uphold the standards of good governance, protect the rights of our residents, and build the kind of trust on which the community safety depends. Thank you. Thank you.

1796
04:50:44.309 --> 04:50:45.869
Boardroom: Okay…

1797
04:50:48.849 --> 04:50:58.159
Boardroom: Councilmember Lunapar was right. I meant to sever the portion of the contract, which was just the extension of the ALPR. So, thank you. So,

1798
04:50:58.689 --> 04:51:16.159
Boardroom: Are you changing? So, I'm just saying the sever was just the ALPR extension piece, so we'll vote on that piece separately, that's all. Oh, okay, okay, everything else… Everything else will stay together. Okay, that makes more sense. Okay, thank you. Yeah, it does. Okay. Speaking of, it's your turn.

1799
04:51:19.009 --> 04:51:33.129
Boardroom: Okay, thank you very much, Madam Mayor. Thank you, to our Police Chief, Deputy Chief Tate, Mr. Malberg, Ms. Lee, Mr. Chandler, as well as all of the public commenters.

1800
04:51:33.139 --> 04:51:40.059
Boardroom: And, and those who were in person as well as on Zoom, as… and, and I also want to thank those who…

1801
04:51:40.059 --> 04:51:53.359
Boardroom: have emailed, have engaged, with us in other ways who aren't able to be here tonight, as well as those who did so during our last meeting in March. And I know this is a really, contentious issue.

1802
04:51:53.359 --> 04:51:58.459
Boardroom: with, strong opinions, and I just want you to know that

1803
04:51:58.469 --> 04:52:17.549
Boardroom: I have heard your public comments, and like my colleagues, I'm concerned about the data sharing breaches that have occurred in the past with this vendor. I know that we will never have what some are seeking, which is this 100% guarantee that it won't occur in the future.

1804
04:52:17.579 --> 04:52:29.569

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Boardroom: But I do feel reassured by what we heard from Mr. Chandler tonight about the way that Flock has adapted to data security concerns by changing the capabilities of its system.

1805
04:52:29.959 --> 04:52:43.389
Boardroom: One of the public commenters asked why some of us are open to extending or renewing this contract, and so I, you know, I just want to be honest about it. It's… when you are an elected official.

1806
04:52:43.439 --> 04:52:59.829
Boardroom: You don't have the luxury of just listening to who has the time to come to the meeting in person and share their opinion. You have to consider everyone that you represent. I happen to represent 15,000 people in my district.

1807
04:53:00.059 --> 04:53:04.309
Boardroom: Some of them have been victims of serious violent crime.

1808
04:53:04.529 --> 04:53:12.599
Boardroom: A big consideration for me are the crimes that have been solved by the use of automated license plate reader technology.

1809
04:53:12.999 --> 04:53:19.299
Boardroom: you know, some people are talking about stats. You know, in 2025, Berkeley Police made at least 52 arrests

1810
04:53:20.319 --> 04:53:28.809
Boardroom: For burglaries, robberies, sexual assault, and homicide, Homicide.

1811
04:53:29.039 --> 04:53:32.029
Boardroom: Directly from ALPR data.

1812
04:53:32.199 --> 04:53:45.119
Boardroom: And they use a network to assist in 29 other cases. You can disagree, but you cannot interrupt her. And respectfully, I have not heard anyone against the FLOC contract renewal propose how

1813
04:53:45.129 --> 04:53:56.879
Boardroom: How will we solve these serious, violent crimes if we fail to at least extend this contract for 12 months to give ourselves more time to weigh our options?

1814

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04:54:00.099 --> 04:54:11.739
Boardroom: So, as an elected official, I have to think about the worst outcome, and that is the possibility that if we do not extend this contract for at least 12 months.

1815
04:54:12.089 --> 04:54:27.629
Boardroom: that I will be responsible for the serious and dangerous outcome of violent criminals who are not caught and arrested. Hey, folks, please also wave on my conscience with equal weight.

1816
04:54:27.629 --> 04:54:38.899
Boardroom: as the possibility of a data breach. So that is why we have been elected, to make these hard decisions to weigh difficult competing trade-offs.

1817
04:54:39.519 --> 04:54:41.789
Boardroom: And that's what we are doing tonight.

1818
04:54:42.559 --> 04:54:51.479
Boardroom: And I thank you for listening. I listened to you for 3 hours tonight. I listened to you for maybe 5 hours last night, last time in March.

1819
04:54:51.979 --> 04:54:55.179
Boardroom: And I thank you for listening to me.

1820
04:54:55.349 --> 04:54:56.409
Boardroom: Thank you.

1821
04:54:57.159 --> 04:55:09.469
Boardroom: Folks, come on, Nathan! Alright. So, we're gonna go to Councilmember Lunapara, and then we're gonna go online to Councilmember Taplin.

1822
04:55:10.889 --> 04:55:12.589
Boardroom: Thank you.

1823
04:55:12.819 --> 04:55:29.339
Boardroom: We made a promise to our immigrant residents. We told them in January 2025 to go live a normal life, to go to school, to work, to the grocery store, and to believe us that we would do everything in our power to keep them safe. We asked them to place their trust in us.

1824

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04:55:29.669 --> 04:55:33.679
Boardroom: And passing this contract would be a slap in the face to those who did trust us.

1825
04:55:35.809 --> 04:55:53.059
Boardroom: I feel exhausted and deeply, deeply disappointed that our promises to our residents and our values of sanctuary are so shallow, so fragile, that we are not willing to back them up the minute we have to give up even the smallest thing. In this case, technology that we have no proof does anything to deter crime.

1826
04:55:55.319 --> 04:56:08.369
Boardroom: I am so frustrated that we have made our community members and organizations who spend their scarce time and resources fighting endlessly on behalf of our immigrant residents, facing the wrath of the federal government, argue with the City of Berkeley instead.

1827
04:56:08.369 --> 04:56:18.459
Boardroom: They are organizing legal support, they are camping out at day laborer spots to watch out for ice, and we are supposed to be their allies, and instead, we are working as if we were purposely trying to waste their time.

1828
04:56:20.549 --> 04:56:38.289
Boardroom: It is easy… it is easy to say that we support immigrants and transgender people and pregnant people and activists and all marginalized people who are targets of the federal government. It is easy to say that we are willing to stand up to fascism and do everything we can to protect them, and it is much, much harder to actually do it, especially when it gets hard.

1829
04:56:38.569 --> 04:56:56.939
Boardroom: Yesterday, the Trump administration released its new counter… national counterterrorism strategy. It names as one of its top three national security threats what it calls violent secular political groups whose ideology is, quote, anti-American, radically pro-transgender, and anarchist. It explicitly names Antifa.

1830
04:56:56.949 --> 04:57:09.319
Boardroom: It promises, in its own words, to, quote, rapidly identify and neutralize these groups using, again in their words, all tools available to map their membership and cripple them operationally.

1831
04:57:09.319 --> 04:57:18.359

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Boardroom: It is truly naive, to a baffling level, that any of us would think that simple contract language would save us from a government that is openly telling us that they think that they are above the law.

1832
04:57:27.659 --> 04:57:44.489
Boardroom: I also want to respond to this idea that people who support Flock are somehow in the silent majority. In the past month, there was a pretty biased survey that went around Berkeley trying to find that a majority of Berkeley supports Flock.

1833
04:57:44.489 --> 04:57:56.139
Boardroom: And in campaigns, when a survey, a poll isn't released, it usually means it's because it didn't go your way. And we haven't seen the results of that poll, so I think we can take that.

1834
04:58:02.029 --> 04:58:17.589
Boardroom: Okay, with that, I have two, amendments, friendly amendments, that I would like to make to the motion, and I'm gonna share my screen quickly. One of them is what I mentioned earlier around First Amendment.

1835
04:58:17.989 --> 04:58:23.789
Boardroom: The UAS First Amendment authorized use to,

1836
04:58:24.359 --> 04:58:33.259
Boardroom: use the… can everyone see this? Can you make it a bit bigger? It's amending the UAS surveillance use policy.

1837
04:58:33.499 --> 04:58:42.929
Boardroom: To respond to violent criminal activity at mass gatherings or special events only when there is probable cause of a felony and an active threat of serious bodily injury.

1838
04:58:43.349 --> 04:58:59.359
Boardroom: And then my second amendment is, to the ALPR extension, that it should include an referral to create… to include an efficacy assessment and review for compliance to be presented to Council at least 30 days before the end of the extension.

1839
04:59:00.619 --> 04:59:02.609
Boardroom: Thanks. It's acceptable to me.

1840
04:59:03.399 --> 04:59:07.479
Boardroom: Councilmember Humbert, do you… Did you find that acceptable?

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1841
04:59:07.979 --> 04:59:13.179
Boardroom: Yes, Brent does, he says. Councilmember… excuse me, Councilmember Blackaby.

1842
04:59:13.949 --> 04:59:21.939
Boardroom: Yes, okay. Thank you. Thank you. I also was wondering if the police department could quickly explain their,

1843
04:59:22.319 --> 04:59:41.109
Boardroom: their supplemental, and just briefly go over it, because I just want to make sure that everyone understands what that is changing. The only thing that's changing is identifying that, once we are in a space to authorize or get authority to enter into contract, we want to point to the most current and comprehensive procurement vehicle that exists.

1844
04:59:41.139 --> 04:59:52.619
Boardroom: So that was updating to the… to what that vehicle would have been. Thank you. That's helpful. That's it. Thank you. Thank you very much. Okay, going to online with Councilmember Taplin.

1845
04:59:53.170 --> 04:59:59.650
Terry Taplin: Yes, thank you, Madam Mayor, and good evening, everyone. I would like to thank, City Admin, legal.

1846
05:00:00.580 --> 05:00:03.409
Terry Taplin: the PD Director Lee for…

1847
05:00:03.740 --> 05:00:09.769
Terry Taplin: your diligence and your hard work to address the concerns of the Council and the community at each step of this process.

1848
05:00:10.440 --> 05:00:21.129
Terry Taplin: I also want to thank my fellow co-authors, as well as Councilmember Blackaby and the Mayor for calling for additional restrictions and guardrails.

1849
05:00:23.340 --> 05:00:29.929
Terry Taplin: I… completely understand the trepidation and reaction to Washington.

1850
05:00:30.730 --> 05:00:37.219

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Terry Taplin: The city also needs to be able to function and provide basic tools for critical public safety services.

1851
05:00:38.700 --> 05:00:47.180
Terry Taplin: In my view, it would be illogical and impractical to cause for the system to come down this July.

1852
05:00:47.570 --> 05:00:50.320
Terry Taplin: And therefore, I will be supporting the motion. Thank you.

1853
05:00:50.580 --> 05:00:57.379
Boardroom: Thank you. Moving on to Councilmember Humbert. Thank you, Madam Mayor.

1854
05:00:57.780 --> 05:01:06.449
Boardroom: And I want to thank everybody who, appeared here and spoke today. I want to thank, our police leadership.

1855
05:01:06.660 --> 05:01:23.869
Boardroom: and Mr. Chandler for appearing here and responding to questions. I respect the positions of all my colleagues, and I've listened to all the concerns that have been expressed here tonight. I agree that some of the concerns, at least, are justified.

1856
05:01:24.270 --> 05:01:44.049
Boardroom: At the same time, I think there's good evidence that automated license plate readers and other technological tools are creating crucial public safety benefits. A great example was just last week. There was a reference made to it. The block system led to 6 apprehensions in a single day. That's a real result.

1857
05:01:44.200 --> 05:01:49.729
Boardroom: Those are 6 people potentially brought to justice, and potentially untold number of additional crimes.

1858
05:01:49.840 --> 05:02:05.479
Boardroom: prevented. And, you know, I'd also go further afield and mention that Flock ALPRs helped apprehend a heavily armed ex-police officer who apparently intended to kill black Americans at a New York, New Orleans jazz festival.

1859
05:02:05.480 --> 05:02:12.790
Boardroom: within the past couple of weeks. So they do have the potential to save lives. They… I think they probably saved lives there.

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1860
05:02:12.950 --> 05:02:22.399
Boardroom: I believe we can get to a place where we have sufficient protections for our data and the ability to get out of this agreement such that the benefits outweigh the risks.

1861
05:02:22.550 --> 05:02:28.209
Boardroom: I understand and can respect the principled position that any marginal risk in this regard is too much.

1862
05:02:28.520 --> 05:02:38.639
Boardroom: But in my view, but my view remains that our residents face public safety risks every day. Robberies, gunfire, and organized theft.

1863
05:02:38.880 --> 05:02:52.400
Boardroom: These are the real, concrete, everyday safety threats against which I am weighing, and I appreciated Councilmember Kesarwani's comments on this, I am weighing the more marginal impacts of things like data leaks.

1864
05:02:53.120 --> 05:03:10.599
Boardroom: So I'm… I was willing… that said, I believe that the contract provisions I proposed alongside Councilmembers Taplin, Kesserwani, and O'Keefe are essential, and I think Councilmember Blackby's amendments are appropriate, and of course, I've just seconded

1865
05:03:10.660 --> 05:03:13.910
Boardroom: Councilmember, Blackaby's motion.

1866
05:03:14.040 --> 05:03:24.460
Boardroom: So that's really about all I have to say on it. My views have not modified since, we last took this up last, March.

1867
05:03:24.600 --> 05:03:29.219
Boardroom: Thanks. Thank you very much, Councilmember. Going to Councilmember O'Keefe.

1868
05:03:29.390 --> 05:03:47.939
Boardroom: Thank you. I have a little statement, but, first I want to ask about, I guess the motion maker about my supplemental, about the drone UAS. I initially was… thought, well, maybe it doesn't matter anymore, because we're not really doing anything on drones tonight, but I think if we are going to accept

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1869
05:03:48.260 --> 05:04:04.149
Boardroom: I mean, I think there is a marginal use for it, so would you be open to concluding one? Yeah, I think this is where we're gonna move the use policies. I… and I'll just say, my main concern is if DFR is intended to sort of also clear, cases that don't necessarily

1870
05:04:04.270 --> 05:04:11.290
Boardroom: involve, like, imminent risk. So my only concern is one of the… because one of the factors of using the DFR is

1871
05:04:11.510 --> 05:04:15.189
Boardroom: They're… we'd be able to sort of clear cases where we don't need to send an officer.

1872
05:04:15.410 --> 05:04:30.879
Boardroom: And so I just wanted to make sure that that was captured. That's my concern. So you don't support my supplemental? If you want to have a separate vote on it, I'd be open to have a vote on it. Yeah, I would like that, if we could sever that. So we could adopt it, but sever it?

1873
05:04:32.050 --> 05:04:47.470
Boardroom: Okay, so the city attorney has let me know that she has some concerns about the severability, or not the severability, but I guess the severability of the use policy from the flock contract specifically. Do you want to just speak to that now, since we're discussing it?

1874
05:04:47.470 --> 05:04:56.420
Boardroom: Yeah, so, it's not necessarily to the severability, but, there's a little bit of concern. I, I thought the council was gonna…

1875
05:04:56.470 --> 05:05:00.440
Boardroom: Just do the vote on extending the contract.

1876
05:05:00.730 --> 05:05:04.009
Boardroom: And then, kind of do the use policies

1877
05:05:04.310 --> 05:05:11.569
Boardroom: later. Some of the use policies are very flock-specific, so I think we need to take a look at

1878
05:05:12.250 --> 05:05:37.180

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Boardroom: that issue, how specific are the use policies? I think that that was reviewed when we submitted our supplemental, so we can take a quick recess to discuss that, if you think that's appropriate. That would be really helpful. Alright, I do kind of want to let Councilmember Bartlett speak, though, because he hasn't given us all the comments. Yeah. I also wanted to make a statement, if that's okay. Oh, yes. That was my preliminary… Yeah, go ahead. I'll make a statement, and then we'll talk about the drone thing after.

1879
05:05:37.180 --> 05:05:46.149
Boardroom: Yeah, I think… yeah, I'll let you make your comments, and then I'm going to have Councilmember Bartlett make his comments, then we'll take a quick recess. First, I want to move to extend by 15 minutes. Second.

1880
05:05:49.600 --> 05:05:57.220
Boardroom: Okay. To extend to, 11.15 PM, Councilmember Kesarwani? Yes. Taplin? Aye.

1881
05:05:58.270 --> 05:06:06.439
Boardroom: Bartlett? Yes. Trago? Aye. O'Keefe? Yes. Blackaby? Yes. Unupara? Yes. Humbert? Yes. And Mayor Ishii? No.

1882
05:06:06.930 --> 05:06:26.730
Boardroom: Okay. I said, I already said to everyone, I said, we're finishing at 11, that's it. So, go ahead. Continue. Go ahead, Councilmember. I can speak. Okay, thank you. Okay, so I'm happy to support the motion, made by Councilmember Blackaby. I think it's fundamentally reasonable, and I really want to thank him for bringing it so thoughtfully.

1883
05:06:26.980 --> 05:06:29.070
Boardroom: Except for the dwelling part.

1884
05:06:30.230 --> 05:06:35.910
Boardroom: I, I was prepared to go forward tonight,

1885
05:06:36.300 --> 05:06:52.820
Boardroom: with, the original proposal, but really, my Brightline rule is retaining the ALPRs as they exist right now. And so, because that's being proposed, I'm happy to support it. They've really been a valuable tool, and I would not be okay taking them away.

1886
05:06:53.680 --> 05:07:06.329

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Boardroom: I really believe they… taking it… taking away the ALPRs at this point would make our citizens less safe, and, I would actually be breaking a campaign promise, if I, if I were to agree to that.

1887
05:07:06.330 --> 05:07:13.689
Boardroom: So, that is actually, like, that is actually how democracy works. It was something I campaigned on, was, allowing police to have

1888
05:07:13.730 --> 05:07:16.159
Boardroom: Better and more effective technology, and…

1889
05:07:16.480 --> 05:07:18.409
Boardroom: I was lucky to ice on that, so…

1890
05:07:18.560 --> 05:07:22.440
Boardroom: That's important to me. Rolling out…

1891
05:07:23.340 --> 05:07:36.930
Boardroom: But back to the motion that we're debating, it's fine. Rolling out the newer technologies, it can take more time. I think we have a good chance to hopefully build more public trust in the process before making the next step, and that feels appropriate.

1892
05:07:37.180 --> 05:07:45.169
Boardroom: I do have a question, though, about whether it's possible to build public trust.

1893
05:07:49.590 --> 05:08:03.610
Boardroom: Was she talking about my thing? Okay, that's… that misunderstood, but, I don't want to talk about that right now. That's not what that was. I do… Okay, folks, come on, I do wonder, I have to say.

1894
05:08:03.650 --> 05:08:18.939
Boardroom: And I really would appreciate it if you all would listen, and you can yell and jeer after if you like. I… I wonder about the good faith, whether or not people came here in good faith, willing to consider that public trust as possible.

1895
05:08:19.000 --> 05:08:25.209
Boardroom: My position on this topic has been well stated in the op-ed that I authored along with three of my council colleagues.

1896
05:08:25.370 --> 05:08:28.440

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Boardroom: So I won't belabor it here, except to say that…

1897
05:08:28.980 --> 05:08:41.150
Boardroom: you know, it was brought up several times tonight, and always with criticism, and while I understand many disagreed with it, that's fine. I didn't expect everybody to agree with it. I didn't hear anyone

1898
05:08:41.410 --> 05:08:49.220
Boardroom: really refuting its fundamental logic, which is that our surveillance state… Shh, I said you could hear after. Thank you.

1899
05:08:49.220 --> 05:09:13.749
Boardroom: Which is, our surveillance state is really unchanged by whatever it is we do here tonight. If you walked… Hey, folks, you came in here with an iPhone or whatever in your pocket, I have bad news for you. Stop, Nathan. Folks, let her finish speaking, you're just… you're using up our time.

1900
05:09:13.750 --> 05:09:14.339
Boardroom: Come on.

1901
05:09:16.320 --> 05:09:28.180
Boardroom: You are already being surveilled to a level of intensity that pales in comparison to what's being proposed. When I walked to work the other day, I counted 9 cameras that I walked past.

1902
05:09:28.220 --> 05:09:44.280
Boardroom: Do I have any idea if facial recognition was used on the images that captured? No. Do I have any idea what happened to those images? Who can access them? I do not. I'm sorry to tell you that that is our reality, and…

1903
05:09:44.840 --> 05:10:00.409
Boardroom: Folks, please, hey, excuse me! As I said, I understand people can disagree, but that logic is, what's driving my decision here tonight. So I want to implore those here tonight to really think about the logical basis for your outreach, and when we come back here in a year.

1904
05:10:00.540 --> 05:10:03.080
Boardroom: Okay, let her finish speaking!

1905
05:10:03.340 --> 05:10:08.390
Boardroom: Let her finish speaking. I hope we have a more reality-based conversation about what's really at stake.

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1906
05:10:08.390 --> 05:10:19.139
Boardroom: Let her finish speaking. Sit down. Sit down. Order, or we'll take our recess right now. Sit down, Nathan.

1907
05:10:19.140 --> 05:10:37.339
Boardroom: Go ahead. Okay, I guess, I guess… Folks… Okay, I guess I can speak into this moment now. Order. We're hearing from Councilmember Bartlett now. Well, this is, you know, very instructive.

1908
05:10:37.650 --> 05:10:40.389
Boardroom: Context really is king.

1909
05:10:40.640 --> 05:10:45.670
Boardroom: I'm redundant Biden administration, this council deliberated

1910
05:10:45.770 --> 05:11:02.300
Boardroom: and implemented, the Burke Dot, which is a form of this. This was a technology way to kind of remove police bias from, automotive policing. We did put some cameras up, and there was, very little fanfare.

1911
05:11:02.540 --> 05:11:14.250
Boardroom: This is a small grouping. And in that meeting, actually, if you recall, it's a couple years ago, like I said, I fought hard for a motion that I made, to air gap our data.

1912
05:11:14.930 --> 05:11:22.949
Boardroom: And that means to separate it, so it can't be used and can't be shared, without our control. I made that motion, I fought hard for it, and it failed.

1913
05:11:23.180 --> 05:11:29.340
Boardroom: Because I knew that while we were trusting, a Democratic president.

1914
05:11:29.970 --> 05:11:32.169
Boardroom: Things could change. Things always change.

1915
05:11:32.290 --> 05:11:37.180
Boardroom: And that the next administration, because governments can change, governments can go bad.

1916

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05:11:37.750 --> 05:11:40.820
Boardroom: It might be a different context, and now we're in the context now.

1917
05:11:41.550 --> 05:11:48.869
Boardroom: So… It's interesting. And, my district, District 3 is in the house here for sure.

1918
05:11:49.070 --> 05:11:56.890
Boardroom: I gotta tell you, my district is really amazing. You know, these are my family, I love all of you so much. My district is very diverse.

1919
05:11:57.020 --> 05:12:04.480
Boardroom: It has the wealthiest person in Berkeley, Has homeless people, As my mayor.

1920
05:12:04.850 --> 05:12:15.239
Boardroom: Yes, my mayor, and good friend, and neighbor, has, African Americans, seniors, College people, techies.

1921
05:12:15.770 --> 05:12:20.380
Boardroom: Who else? It has people that… it's the Center of Disability Rights in America.

1922
05:12:20.550 --> 05:12:22.920
Boardroom: It has a hospital, it has a…

1923
05:12:23.060 --> 05:12:27.099
Boardroom: Has a BART station, supermarkets, it runs the gamut.

1924
05:12:27.200 --> 05:12:32.440
Boardroom: It has the new homeowners, it has the old homeowners, and to the person.

1925
05:12:33.430 --> 05:12:38.980
Boardroom: Every single person admonished me to not approve this deal.

1926
05:12:42.280 --> 05:12:43.090
Boardroom: And…

1927
05:12:47.680 --> 05:12:57.410

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Boardroom: And it's important because if you, if you know, you know, our tenure, especially the work I've done through these years, you know, they're, they're really, they're really patient.

1928
05:12:57.850 --> 05:13:04.879
Boardroom: They let me do the wild things I like to do, the interesting concepts, they support it, they forgive me when I mess up.

1929
05:13:05.070 --> 05:13:06.470
Boardroom: They teach me.

1930
05:13:06.860 --> 05:13:14.879
Boardroom: They're a really amazing bunch of people, and they let me kind of have my way. But every now and then.

1931
05:13:16.050 --> 05:13:20.420
Boardroom: Every now and then, There's an issue that they care about.

1932
05:13:20.580 --> 05:13:23.100
Boardroom: And when they care about it, I care about it.

1933
05:13:23.310 --> 05:13:25.190
Boardroom: Because I am them, and they are me.

1934
05:13:25.620 --> 05:13:28.319
Boardroom: So, that's my position tonight, the same as yours.

1935
05:13:30.510 --> 05:13:32.410
Boardroom: Thank you. Okay.

1936
05:13:33.450 --> 05:13:35.709
Boardroom: We are gonna take a brief recess.

1937
05:13:37.530 --> 05:13:38.619
Boardroom: Thank you.

1938
05:13:44.520 --> 05:13:49.090
Boardroom: And that's democracy. That's democracy, thank you!

1939
05:13:59.650 --> 05:14:06.330
Boardroom: Alright, folks, please… I need everyone to quiet down.

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1940
05:14:06.550 --> 05:14:11.419
Boardroom: If you can hear me clap once! If you can hear me clap twice!

1941
05:14:11.560 --> 05:14:13.359
Boardroom: If you're gonna hear me clap 3 times!

1942
05:14:14.070 --> 05:14:20.559
Boardroom: Aw, okay. All right. Wow, amazing how much that works. Okay, so…

1943
05:14:20.710 --> 05:14:34.389
Boardroom: We have some clarifications around the motions that I think need to be made, and just generally a couple of clarifications. I have some comments, and then I'd like us to take a vote. So, did you want to clarify something, Councilmember Lunaparos? Oh, sorry, sorry, go ahead.

1944
05:14:34.390 --> 05:14:44.280
Boardroom: Yeah, I wanted to clarify that the poll that I was talking about was not Councilmember O'Keefe's personal Google survey for her constituents. It was a separate paid…

1945
05:14:44.470 --> 05:15:01.350
Boardroom: official poll. I just wanted to clarify that. Okay, thank you. Go ahead, Councilmember Blackaby. Clarification of the motion on the, on the extension portions for up to 12 months and $200K. Just to be clear, there's a dollar figure attached to it. Okay, attached to it. Okay, thank you. Councilmember Trega, did you have something?

1946
05:15:01.510 --> 05:15:05.509
Boardroom: Yeah, I wanted to,

1947
05:15:05.820 --> 05:15:14.319
Boardroom: First of all, I appreciate, this motion, and I know we're going to sever out an item.

1948
05:15:14.450 --> 05:15:20.809
Boardroom: I wanted to see if the maker and seconder would be friendly to… since the…

1949
05:15:21.040 --> 05:15:30.080
Boardroom: the exploration of, what was previously in the MSA, but, is going to be in…

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1950
05:15:30.590 --> 05:15:41.790
Boardroom: A potential negotiation of the 12-month extension if the maker and seconder would be amenable to an exploration of,

1951
05:15:43.280 --> 05:15:52.180
Boardroom: upping the per violation penalty to $290,000 per violation. Yeah, that's acceptable? Yes.

1952
05:15:54.500 --> 05:15:58.880
Boardroom: Thank you. Okay, any other clarifications? Yes, Councilmember O'Keefe, did you have something?

1953
05:15:59.180 --> 05:16:17.379
Boardroom: Oh, yeah, I wanted to ask again if, I think we've gotten some clarification. I would like to, request that we sever out the UAS, use policy, both, as an issue and… well, I guess, do I also make a motion, then? You don't need to… you can request to sever it. I would like to request to sever it, and then I have…

1954
05:16:17.770 --> 05:16:22.690
Boardroom: I can say what I want to be voted on for that.

1955
05:16:23.400 --> 05:16:30.680
Boardroom: Substitute motion? I think that's different… no, no, we're just… we would just vote on it, yeah, separately, and then… So should I say…

1956
05:16:31.250 --> 05:16:35.720
Boardroom: what I want us to vote on now, or should I wait?

1957
05:16:37.310 --> 05:16:55.130
Boardroom: Mark? Well, I'll just say my intention. I would like… my idea is I would like to vote on that separately, and I would like… I will make a motion for that to be, my supplemental and the, edits that Councilmember Lenapara suggested, that are both edits to the UAS policy. So you would…

1958
05:16:55.510 --> 05:17:11.539
Boardroom: likely need to make a motion to amend the main motion if you wanted your amendments in, but the maker and the seconder were not acceptable to a friendly amendment. Yeah, that's what I want to do. So, and just to clarify, I think Councilmember Lunaparaz were already part of it, so…

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1959
05:17:11.930 --> 05:17:17.110
Boardroom: Okay. They were accepted. Well, if we separate out the…
Beautiful.

1960
05:17:17.650 --> 05:17:18.800
Boardroom: Yeah.

1961
05:17:18.950 --> 05:17:20.090
Boardroom: vendors.

1962
05:17:20.240 --> 05:17:28.380
Boardroom: Okay, I'm making a substitute motion to amend it with my submission. No, just a motion to amend. A motion to amend the main motion.

1963
05:17:28.630 --> 05:17:46.300
Boardroom: Motion to amend the motion. Okay, I made that. And so we will vote on that first, is that right? I'll second that. Thank you. So this is a motion to amend the main motion to include Councilmember O'Keefe's amendments to the UAS policy, into what gets adopted.

1964
05:17:46.410 --> 05:17:52.360
Boardroom: Okay, so on the motion to amend, Councilmember Kesnerwani. No.

1965
05:17:52.770 --> 05:17:53.860
Boardroom: Taplin?

1966
05:17:56.790 --> 05:17:57.470
Boardroom: Okay.

1967
05:17:57.470 --> 05:17:58.010
Terry Taplin: No.

1968
05:17:58.280 --> 05:18:00.760
Boardroom: No. Councilmember Bartlett?

1969
05:18:01.480 --> 05:18:03.900
Boardroom: No. Trey Gob?

1970
05:18:04.460 --> 05:18:05.290

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Boardroom: Pass.

1971
05:18:05.570 --> 05:18:08.549
Boardroom: O'Keefe? Yes. Blackaby? No.

1972
05:18:08.810 --> 05:18:10.370
Boardroom: Luna Parra? Yes.

1973
05:18:10.560 --> 05:18:11.780
Boardroom: Humbert? Yes.

1974
05:18:12.030 --> 05:18:13.750
Boardroom: Mayor Ishii? No.

1975
05:18:14.090 --> 05:18:16.660
Boardroom: Councilmember Tregob? Aye.

1976
05:18:16.980 --> 05:18:19.529
Boardroom: Okay, motion… that motion fails. Okay.

1977
05:18:20.250 --> 05:18:38.879
Boardroom: Okay. And so we're back to the main motion. Thank you. I'm gonna give some comments first, and then we'll vote. Okay. So, I want to thank you all so much for being here this evening. I want to thank everyone for coming, for your previous presentations, and also for sitting and listening to our public comment, answering our questions, and engaging in this process.

1978
05:18:38.880 --> 05:19:03.159
Boardroom: I want to make sure folks know, that the police chief has been very helpful in answering our questions and working with us as we worked on our supplemental, in, in good faith, and that my decision here tonight has nothing to do with my trust for the police department. I understand that these tools have helped on a number of different cases. I myself have, have seen

1979
05:19:03.160 --> 05:19:05.539
Boardroom: So many cases that…

1980
05:19:05.540 --> 05:19:18.249
Boardroom: were really heart-wrenching that would not have been solved without these tools, so I do understand, why it is the police department

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is interested in having them. And at the end of the day, I just don't trust Flock.

1981
05:19:23.480 --> 05:19:36.470
Boardroom: I don't trust… I don't trust Flock, and I don't trust our current federal administration. So many communities that we're hearing from are experiencing heightened… are experiencing heightened, justified fear.

1982
05:19:36.540 --> 05:19:46.099
Boardroom: People deserve to live without fear of deportation or detention, to speak out in a protest without feeling intimidated, and to trust our city will protect its residents.

1983
05:19:46.280 --> 05:19:52.370
Boardroom: Legal safeguards are not enough to ensure that federal authorities will respect local laws and protections.

1984
05:19:52.590 --> 05:19:54.439
Boardroom: That's what we're seeing now.

1985
05:19:54.980 --> 05:20:02.149
Boardroom: I want to ensure surveillance technologies we adopt fully align with Berkeley's sanctuary City policies and our deeply held free speech values.

1986
05:20:02.330 --> 05:20:06.660
Boardroom: And Flock needs to be proactive, not just reactive.

1987
05:20:06.980 --> 05:20:15.559
Boardroom: Flock has a responsibility to proactively safeguard data, ensure compliance with contracts, and uphold the legal and ethical standards of the communities that it serves.

1988
05:20:15.870 --> 05:20:24.889
Boardroom: When there are legitimate fears that data could be used to target immigrant communities or suppress First Amendment rights, it becomes difficult to justify the use of flock's products.

1989
05:20:25.790 --> 05:20:42.709
Boardroom: Concerned about the mass… I'm concerned about the mass aggregation of data, with interoperability across all platforms, and the risk that the Interim Director of Police Accountability, Kathy Lee, and PAB cite about over-dependence on one system.

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1990
05:20:42.940 --> 05:20:45.569
Boardroom: Increasing our vulnerability as a city.

1991
05:20:46.430 --> 05:21:01.149
Boardroom: I want to make sure folks understand that the procurement process was done properly, and at the same time, I don't feel that it was sufficient, so I will be supporting the motion that Councilmembers Blackaby and Humbert have made.

1992
05:21:02.650 --> 05:21:14.210
Boardroom: Flock may be the best technology right now, but we know that technology changes rapidly, and our chief has even said that other companies might catch up not too long from now.

1993
05:21:14.930 --> 05:21:16.979
Boardroom: It's not ready for our city yet.

1994
05:21:17.180 --> 05:21:23.809
Boardroom: I don't have full confidence in a company, and I can't support something that I just really don't trust.

1995
05:21:24.400 --> 05:21:31.619
Boardroom: We've heard so much from the community, I really want to thank you all for coming out to speak. I know for some of you, this is a really emotional issue.

1996
05:21:34.370 --> 05:21:38.520
Boardroom: And at the end of the day, I know I can't support a flock contract.

1997
05:21:39.910 --> 05:21:46.570
Boardroom: Because… If this company does not live up to our standards and our values as a city.

1998
05:21:47.000 --> 05:21:48.720
Boardroom: We really can't support it.

1999
05:21:49.040 --> 05:21:56.719
Boardroom: So I want to thank you all again. Thank you to my colleagues this evening. Thank you to the City Manager and City Attorney in your office, all of our staff.

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2000
05:21:57.640 --> 05:21:58.959
Boardroom: For being here.

2001
05:21:59.090 --> 05:22:07.310
Boardroom: And for answering our questions, there's a lot to go through on this issue. It's quite complex, and we have spent many, many, many hours reviewing all of it, so…

2002
05:22:07.720 --> 05:22:11.089
Boardroom: I would like to take a vote. We have,

2003
05:22:11.690 --> 05:22:20.450
Boardroom: two motions, separately. I'd like to vote on the first one, not the ALPR part extension, but on the rest of it first.

2004
05:22:20.730 --> 05:22:30.690
Boardroom: So, can you please take the role on that, Clerk? Okay, so this, this is the severed portion of the main motion, for the…

2005
05:22:30.820 --> 05:22:33.690
Boardroom: The use policies as,

2006
05:22:34.120 --> 05:22:48.050
Boardroom: amended with the supplemental, numbers 1 to 6 and 8 and 9, and the supplemental materials from the Mayor, as well as Councilmember Lunapara's amendments to the UAS and ALPR policies.

2007
05:22:48.650 --> 05:22:59.649
Boardroom: So on that portion of the, of the… Yeah. Does that also include, and then no full MSA, right? That's in that motion. And no full MSA. Okay, thank you.

2008
05:23:01.000 --> 05:23:03.639
Boardroom: And no action on 1B. Right.

2009
05:23:04.840 --> 05:23:05.580
Boardroom: Okay.

2010
05:23:06.650 --> 05:23:11.189
Boardroom: On that portion of the motion, Councilmember Kesarwani? Yes.

2011

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05:23:11.690 --> 05:23:12.600
Boardroom: Taplin?

2012
05:23:12.600 --> 05:23:13.350
Terry Taplin: Yes.

2013
05:23:13.820 --> 05:23:17.030
Boardroom: Bartlett? No. Dragum?

2014
05:23:17.420 --> 05:23:18.200
Boardroom: Pass.

2015
05:23:18.470 --> 05:23:20.809
Boardroom: O'Keefe? Yes.

2016
05:23:20.920 --> 05:23:24.400
Boardroom: Blackaby? Yes. Lunapara? Yes.

2017
05:23:24.580 --> 05:23:25.920
Boardroom: Humbert? Yes.

2018
05:23:26.240 --> 05:23:31.450
Boardroom: Mayor Ishii? Yes. Councilmember, Vice Mayor Trego? Aye.

2019
05:23:31.870 --> 05:23:43.599
Boardroom: Okay, so that portion, is adopted, and then on the other severed portion, which is the referral to the city manager for RFP process for the,

2020
05:23:43.830 --> 05:23:46.770
Boardroom: Other contract authority, other…

2021
05:23:47.250 --> 05:24:00.869
Boardroom: public safety technology, the UAS, the fixed surveillance, and the investigative software. And the extension of the… And the extension of the ALPR contract for 12 months.

2022
05:24:00.870 --> 05:24:08.829
Boardroom: With not to exceed amount $200,000 with amended contract term for $290,000 penalty for violation.

2023

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05:24:09.930 --> 05:24:14.410
Boardroom: So on that portion of the motion, Councilmember Kesarwani? Yes.

2024
05:24:14.620 --> 05:24:15.620
Boardroom: Taplin?

2025
05:24:15.620 --> 05:24:16.480
Terry Taplin: Yes.

2026
05:24:16.730 --> 05:24:17.680
Boardroom: Bartlett.

2027
05:24:19.350 --> 05:24:20.210
Boardroom: No.

2028
05:24:20.680 --> 05:24:22.030
Boardroom: Drago? No.

2029
05:24:22.670 --> 05:24:25.720
Boardroom: O'Keefe? Yes. Blackaby? Yes.

2030
05:24:25.910 --> 05:24:27.520
Boardroom: Unapara? No.

2031
05:24:27.730 --> 05:24:30.950
Boardroom: Humbert? Yes. And Mayor Ishii? No.

2032
05:24:31.580 --> 05:24:32.890
Boardroom: Motion carries.

2033
05:24:33.420 --> 05:24:35.000
Boardroom: Thank you.

2034
05:24:35.120 --> 05:24:42.039
Boardroom: Councilmember O'Keefe, did you want to say something else? I'm sorry. I saw your little… Okay, sorry.

2035
05:24:42.040 --> 05:24:47.750
Boardroom: Okay, alright, thank you all very much for coming this evening, and…

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2036
05:24:47.750 --> 05:25:04.119
Boardroom: We have completed both items on our agenda at this point. Yeah, so there are a few different things that just happened. Oh, my gosh. Okay, Councilmember Blackaby, I'm gonna have you repeat your motion, just so folks… actually, can I just ask, because we're…

2037
05:25:04.120 --> 05:25:20.720
Boardroom: nearing the end, well, actually, I think it would be helpful if you clarified for folks what we just voted on. So, adopted the use policies for the various technologies, did not move forward with the full MSA, the flock, initiating an RFP…

2038
05:25:21.170 --> 05:25:29.430
Boardroom: Sorry. Master Services Agreement, the contract. Did not move forward the contract. Initiating an RFP process for all the components.

2039
05:25:29.550 --> 05:25:36.920
Boardroom: And then, extending the ALPR through the period of that RFP process so that we don't go dark in that period.

2040
05:25:37.310 --> 05:25:39.949
Boardroom: And those were voted on separately, so…

2041
05:25:40.080 --> 05:25:46.579
Boardroom: So the second vote was on extending the ALPR contract, whereas the first part was the rest of it.

2042
05:25:47.010 --> 05:25:48.620
Boardroom: Thank you. Okay.

2043
05:25:48.840 --> 05:25:55.529
Boardroom: Alright, so, in that case, I will see if there's a motion to adjourn. So moved. Second.

2044
05:25:55.660 --> 05:26:00.579
Boardroom: Can we take the roll, please? Okay, to adjourn the meeting, Councilmember Kesarwani.

2045
05:26:00.820 --> 05:26:03.000
Boardroom: Hold on, we're still taking roll.

2046

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05:26:03.000 --> 05:26:03.880
Terry Taplin: Aye.

2047
05:26:03.880 --> 05:26:14.669
Boardroom: Bartlett… Yes. Tragum? Aye. O'Keefe? Yes. Lacabee? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii?

2048
05:26:14.880 --> 05:26:22.000
Boardroom: Yes. Okay. Meeting is adjourned. Meeting is adjourned. Thank you, everyone.

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